

Second Edition



The Attempted ASSASSINATION OF EX-PRESIDENT THEODORE ROOSEVELT



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OF EX-PRESIDENT
THEODORE
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ATTEMPTED ASSASSINATION OF EX-PRESIDENT THEODORE
ROOSEVELT ***



THEODORE ROOSEVELT.

THE ATTEMPTED ASSASSINATION

of

EX-PRESIDENT

Theodore Roosevelt

Written, Compiled, and Edited by

**OLIVER E. REMEY
HENRY F. COCHEMS
WHEELER P. BLOODGOOD**

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of Milwaukee, Wisconsin**

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1912,
by O. E. Remey, Milwaukee**

LIBRARY EDITION.

A Library Edition of this book is in the hands of the printers and will be issued shortly.

This edition will be bound in hard cover. The volume will be neatly bound and suitable for public and private libraries.

The Library Edition will be limited in number.

Those who desire a copy will be mailed a copy as soon as the edition is off the press, if they will send one dollar to the Progressive Publishing Company of Milwaukee, Wis., Room 600 Caswell Block, Milwaukee.

The demand for this edition is rapidly exhausting it.

THIS HISTORICAL NARRATIVE
IS DEDICATED TO
EX-PRESIDENT THEODORE ROOSEVELT
THE GREATEST AMERICAN
OF HIS TIME.

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PREFACE.

At 8:10 o'clock on the night of Oct. 14, 1912, a shot was fired the echo of which swept around the entire world in thirty minutes.

An insane man attempted to end the life of the only living ex-president of the United States and the best known American.

The bullet failed of its mission.

Col. Theodore Roosevelt, carrying the leaden missile intended as a pellet of death in his right side, has recovered. He is spared for many more years of active service for his country.

John Flammang Schrank, the mad man who fired the shot, is in the Northern Hospital for the Insane at Oshkosh, Wis., pronounced by a commission of five alienists a paranoiac. If he recovers he will face trial for assault with intent to kill.

This little book presents an accurate story of the attempt upon the life of the ex-president. The aim of those who present it is that, being an accurate narrative, it shall be a contribution to the history of the United States.

This book is written, compiled and edited by Henry F. Cochems, Chairman of the national speakers' bureau of the Progressive party during the 1912 campaign, and who was with Col. Roosevelt in the automobile when the ex-president was shot, Wheeler P. Bloodgood, Wisconsin representative of the National Progressive committee, and Oliver E. Remey, city editor of the Milwaukee Free Press, who necessarily followed all incidents of the shooting closely.

The story told is an historical narrative in the preparation of which accuracy never has been lost sight of.

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CHRONOLOGY.

October 14, 1912—At 8:10 o'clock P.M., John Flammang Schrank, of New York, a paranoiac, shoots ex-President Theodore Roosevelt in the right side with a 38-caliber bullet as the ex-President is standing in an automobile in front of Hotel Gilpatrick, Milwaukee. Schrank is immediately arrested, after a struggle to recover the revolver and protect him from violence. Col. Roosevelt, bleeding from his wound, is driven to the Auditorium, Milwaukee, and speaks to an audience of 9,000 for eighty minutes. Immediately after his speech he is taken to the Johnston Emergency hospital, Milwaukee, where his wound is dressed. At 12:30 o'clock he is taken on a special train to Chicago, then to Mercy hospital.

October 15, 1912—Schrank is arraigned in District court, Milwaukee, and admits having fired the shot. He is bound over to Municipal court for preliminary hearing.

October 18, 1912—Ex-President Roosevelt passes crisis in Mercy hospital, Chicago.

October 21, 1912—Ex-President Roosevelt leaves Chicago for his home at Oyster Bay, R.I.

October 22, 1912—Ex-President Roosevelt reaches home after a trip not seriously impairing his condition.

October 26, 1912—Ex-President Roosevelt takes first walk out of doors.

October 27, 1912—Ex-President Roosevelt celebrates his fifty-fourth birthday.

October 30, 1912—Ex-President Roosevelt speaks to an audience of 16,000 in Madison Square Garden, New York, over 30,000 having been turned away. He is given an ovation lasting forty-five minutes.

November 1, 1912—Ex-President Roosevelt again speaks to an audience filling Madison Square Garden. But for his request that it cease so that he could speak, the ovation would have exceeded that of October 30.

November 3, 1912—Ex-President Roosevelt makes his last campaign speech at Oyster Bay, R.I.

November 5, 1912—Ex-President Roosevelt votes at Oyster Bay, R.I.

November 12, 1912—John Flammang Schrank pleads guilty to assault with intent to murder before Judge August C. Backus in Municipal court, Milwaukee. Judge Backus appoints a commission of five Milwaukee alienists to determine, as officers of the court, Schrank's sanity.

November 14, 1912—The sanity commission begins examinations of Schrank.

November 22, 1912—The sanity commission reports to Judge A. C. Backus in Municipal court, Milwaukee, that Schrank is insane and was insane at the time he shot ex-President Roosevelt. Schrank is committed to the Northern Hospital for the Insane at Oshkosh, Wis. Judge Backus in making the commitment orders that in the event of recovery Schrank shall face trial on the charge of assault with intent to kill.

November 25, 1912—Schrank is taken to the Northern Hospital for the Insane, Oshkosh, Wis., by deputies from the office of the sheriff of Milwaukee county.

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CHAPTER I.

THE SHOT IS FIRED.

RELATED BY HENRY F. COCHEMS AFTER THE SHOOTING.

At 8:10 o'clock on the night of Oct. 14, 1912, an attempt was made to assassinate Ex-President Theodore Roosevelt in the city of Milwaukee. Col. Roosevelt had dined at the Hotel Gilpatrick with the immediate members of his traveling party. The time having arrived to leave for the Auditorium, where he was due to speak, he left his quarters, and, emerging from the front of the hotel, crossing the walk, stepped into a waiting automobile.

Instantly that he appeared a wild acclaim of applause and welcome greeted him. He settled in his seat, but, responsive to the persistent roar of the crowd, which extended in dense masses for over a block in every direction, he rose in acknowledgement, raising his hat in salute.

At this instant there cracked out the vicious report of a pistol shot, the flash of the gun showing that the would-be assassin had fired from a distance of only four or five feet.

Instantly there was a wild panic and confusion. Elbert E. Martin, one of Col. Roosevelt's stenographers, a powerful athlete and ex-football player, leaped across the machine and bore the would-be assassin to the ground. At the same moment Capt. A. O. Girard, a former Rough Rider and bodyguard

of the ex-President, and several policemen were upon him. Col. Roosevelt's knees bent just a trifle, and his right hand reached forward on the door of the car tonneau. Then he straightened himself and reached back against the upholstered seat, but in the same instant he straightened himself, he again raised his hat, a reassuring smile upon his face, apparently the coolest and least excited of any one in the frenzied mob, who crowding in upon the man who fired the shot, continued to call out:

"Kill him, kill him."

I had stepped into the car beside Col. Roosevelt, about to take my seat when the shot was fired. Throwing my arm about the Colonel's waist, I asked him if he had been hit, and after Col. Roosevelt saying in an aside, "He pinked me, Harry," called out to those who were wildly tearing at the would-be assassin:

"Don't hurt him; bring him to me here!"

The sharp military tone of command was heard in the midst of the general uproar, and Martin, Girard and the policemen dragged Schrank toward where Mr. Roosevelt stood. Arriving at the side of the car, the revolver, grasped by three or four hands of men struggling for possession, was plainly visible, and I succeeded in grasping the barrel of the revolver, and finally in getting it from the possession of a detective. Mr. Martin says that Schrank still had his hands on the revolver at that time. The Colonel then said:

"Officers, take charge of him, and see that there is no violence done to him."

The crowd had quickly cleared from in front of the automobile, and we drove through, Col. Roosevelt waving a hand, the crowd now half-hysterical with frenzied excitement.

After rounding the corner I drew the revolver from my overcoat pocket and saw that it was a 38-caliber long which had been fired. As the Colonel looked at the revolver he said:

"A 38-Colt has an ugly drive."

Mr. McGrath, one of the Colonel's secretaries riding at his right side, said:

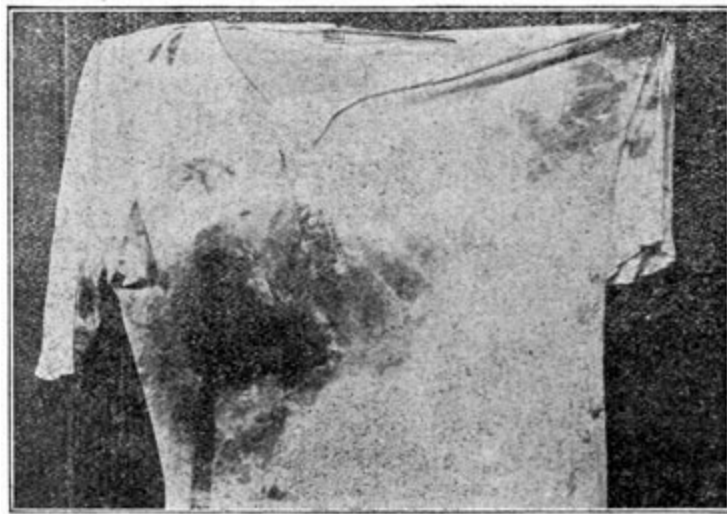
"Why, Colonel, you have a hole in your overcoat. He has shot you."

The Colonel said:

"I know it," and opened his overcoat, which disclosed his white linen, shirt, coat and vest saturated with blood. We all instantly implored and pleaded with the Colonel to drive with the automobile to a hospital, but he turned to me with a characteristic smile and said:

"I know I am good now; I don't know how long I may be. This may be my last talk in this cause to our people, and while I am good I am going to drive to the hall and deliver my speech."

-



Shirts Worn by Ex-President Roosevelt
Showing Extent of Bleeding from Wound
While He Spoke to 9,000 People.

By the time we had arrived at the hall the shock had brought a pallor to his face. On alighting he walked firmly to the large waiting room in the back of the Auditorium stage, and there Doctors Sayle, Terrell and Stratton opened his shirt, exposing his right breast.

Just below the nipple of his right breast appeared a gaping hole. They insisted that under no consideration should he speak, but the Colonel asked:

"Has any one a clean handkerchief?"

Some one extending one, he placed it over the wound, buttoned up his clothes and said:

"Now, gentlemen, let's go in," and advanced to the front of the platform.

I, having been asked to present him to the audience, after admonishing the crowd that there was no occasion for undue excitement, said that an attempt to assassinate Col. Roosevelt had taken place; that the bullet was still in his body, and that he would attempt to make his speech as promised.

As the Colonel stepped forward, some one in the audience said audibly:

"Fake," whereupon the Colonel smilingly said:

"No, it's no fake," and opening his vest, the blood-red stain upon his linen was clearly visible.

A half-stifled expression of horror swept through the audience.

About the first remark uttered in the speech, as the Colonel grinned broadly at the audience, was:

"It takes more than one bullet to kill a Bull Moose. I'm all right, no occasion for any sympathy whatever, but I want to take this occasion within five minutes after having been shot to say some things to our people which I hope no one will question the profound sincerity of."

Throughout his speech, which continued for an hour and twenty minutes, the doctors and his immediate staff of friends, sitting closely behind him, expected that he might at any moment collapse. I was so persuaded of this that I stepped over the front of the high platform to the reporters' section immediately beneath where he was speaking, so that I might catch him if he fell forward.

These precautions, however, were unnecessary, for, while his speech lacked in the characteristic fluency of other speeches, while the shock and

pain caused his argument to be somewhat labored, yet it was with a soldierly firmness and iron determination, which more than all things in Roosevelt's career discloses to the country the real Roosevelt, who at the close of his official service as President in 1909 left that high office the most beloved public figure in our history since Lincoln fell, and the most respected citizen of the world. As was said in an editorial in the Chicago Evening Post:

"There is no false sentiment here; there is no self-seeking. The guards are down. The soul of the man stands forth as it is. In the Valley of the Shadow his own simple declaration of his sincerity, his own revelation of the unselfish quality of his devotion to the greatest movement of his generation, will be the standard by which history will pass upon Theodore Roosevelt its final judgment. This much they cannot take from him, no matter whether he is now to live or to die."

To the men of America, who either love or hate Roosevelt personally, these words from his speech must carry an imperishable lesson:

"The bullet is in me now, so that I cannot make a very long speech. But I will try my best.

"And now, friends, I want to take advantage of this incident to say as solemn a word of warning as I know how to my fellow Americans.

"First of all, I want to say this about myself: I have altogether too many important things to think of to pay any heed or feel any concern over my own death.

"Now I would not speak to you insincerely within five minutes of being shot. I am telling you the literal truth when I say that my concern is for many other things. It is not in the least for my own life.

"I want you to understand that I am ahead of the game anyway. No man has had a happier life than I have had—a happier life in every way.

"I have been able to do certain things that I greatly wished to do, and I am interested in doing other things.

"I can tell you with absolute truthfulness that I am very much uninterested in whether I am shot or not.

"It was just as when I was colonel of my regiment. I always felt that a private was to be excused for feeling at times some pangs of anxiety about his personal safety, but I cannot understand a man fit to be a colonel who can pay any heed to his personal safety when he is occupied, as he ought to be occupied, with the absorbing desire to do his duty.

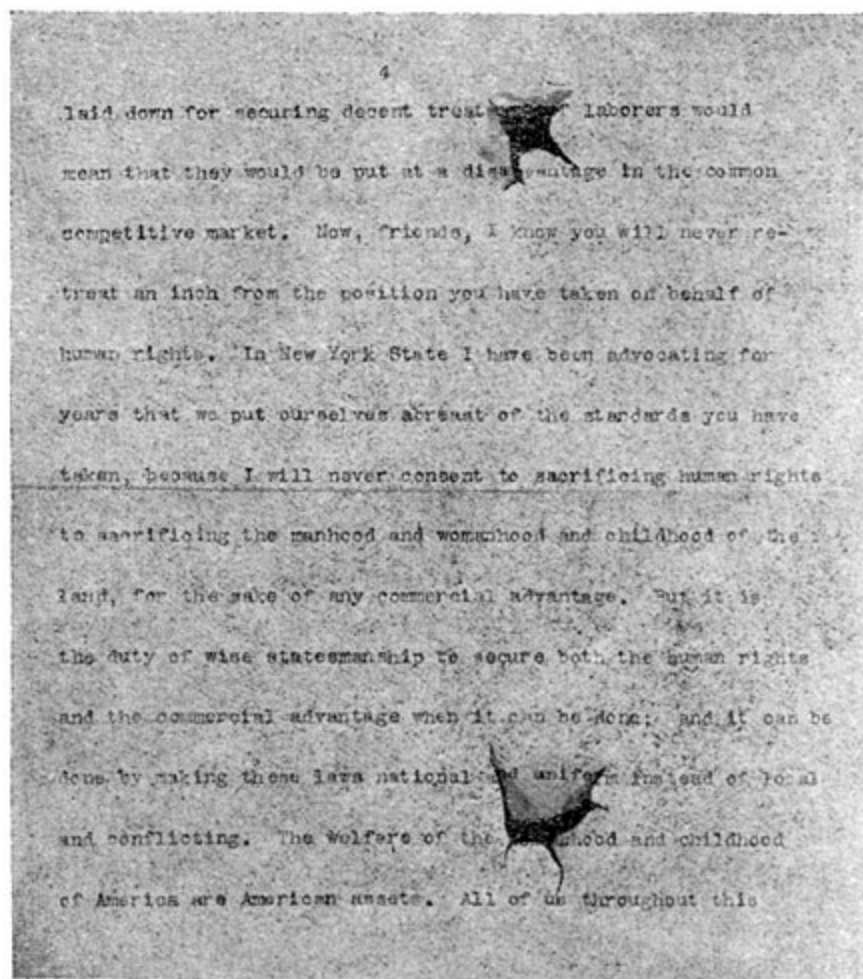
"I am in this cause with my whole heart and soul; I believe in the Progressive movement—a movement for the betterment of mankind, a movement for making life a little easier for all our people, a movement to try to take the burdens off the man and especially the woman in this country who is most oppressed.

"I am absorbed in the success of that movement. I feel uncommonly proud in belonging to that movement.

"Friends, I ask you now this evening to accept what I am saying as absolute truth when I tell you I am not thinking of my own success, I am not thinking of my own life or of anything connected with me personally."

The disabling of Col. Roosevelt at this tragic moment was a great strategic loss in his campaign. The mind of the country was in a pronounced state of indecision. He had started at Detroit, Mich., one week before and had planned to make a great series of sledge hammer speeches upon every vital issue in the campaign, which plan took him to the very close of the fight. He had planned to put his strongest opponent in a defensive position, the effect of which, now that all is over, no man can measure. Stricken

down, an immeasurable loss was sustained. In the years that lie before, when misjudgment and misstatements, which are the petty things born of prejudice, and which die with the breath that gives them life, shall have passed away, this incident and the soldierly conduct of the brave man who was its victim will have a real chastening and wholesome historical significance.



Page from Ex-President Roosevelt's Manuscript of Speech Showing Bullet Holes.

CHAPTER II.

SPEAKS TO GREAT AUDIENCE.^[1]

Standing with his coat and vest opened, holding before him manuscript of the speech he had prepared to deliver, through which were two perforations by Schrank's bullet, the ex-President was given an ovation which shook the mammoth Auditorium, Milwaukee.

The audience seemed unable to realize the truth of the statement of Henry F. Cochems, who had introduced Col. Roosevelt, that the ex-President had been shot. Col. Roosevelt had opened his vest to show blood from his wound.

Even then many in the audience did not comprehend that they were witnessing a scene destined to go down in history—an ex-President of the United States, blood still flowing from the bullet wound of a would-be assassin, delivering a speech from manuscript perforated by the bullet of the assailant.

Col. Roosevelt said:

"Friends, I shall ask you to be as quiet as possible," he said. "I don't know whether you fully understand that I have just been shot, but it takes more than that to kill a bull moose. (Cheers.) But fortunately I had my manuscript, so you see I was going to make a long speech (holds up manuscript with bullet hole) and there is a bullet—there is where the bullet went through and it probably saved me from it going into my heart. The

bullet is in me now, so that I can not make a very long speech, but I will try my best. (Cheers.)

"And now, friends, I want to take advantage of this incident and say a word of a solemn warning, as I know how to my fellow countrymen. First of all, I want to say this about myself: I have altogether too important things to think of to feel any concern over my own death, and now I can not speak to you insincerely within five minutes of being shot. I am telling you the literal truth when I say that my concern is for many other things. It is not in the least for my own life. I want you to understand that I am ahead of the game, anyway. (Applause and cheers.) No man has had a happier life than I have led; a happier life in every way. I have been able to do certain things that I greatly wished to do and I am interested in doing other things. I can tell you with absolute truthfulness that I am very much uninterested in whether I am shot or not. It was just as when I was colonel of my regiment. I always felt that a private was to be excused for feeling at times some pangs of anxiety about his personal safety, but I can not understand a man fit to be a colonel who can pay any heed to his personal safety when he is occupied as he ought to be occupied with the absorbing desire to do his duty. (Applause and cheers.)

"I am in this cause with my whole heart and soul. I believe that the progressive movement is for making life a little easier for all our people; a movement to try to take the burdens off the men and especially the women and children of this country. I am absorbed in the success of that movement.

"Friends, I ask you now this evening to accept what I am saying as absolutely true, when I tell you I am not thinking of my own success. I am not thinking of my life or of anything connected with me personally. I am thinking of the movement. I say this by way of introduction because I want to say something very serious to our people and especially to the newspapers. I don't know anything about who the man was who shot me tonight. He was seized at once by one of the stenographers in my party, Mr. Martin, and I suppose is now in the hands of the police. He shot to kill. He shot—the shot, the bullet went in here—I will show you (opened his vest

and shows bloody stain in the right breast; stain covered the entire lower half of his shirt to the waist).

"I am going to ask you to be as quiet as possible for I am not able to give the challenge of the bull moose quite as loudly. Now I do not know who he was or what party he represented. He was a coward. He stood in the darkness in the crowd around the automobile and when they cheered me and I got up to bow, he stepped forward and shot me in the darkness.

"Now friends, of course, I do not know, as I say, anything about him, but it is a very natural thing that weak and vicious minds should be inflamed to acts of violence by the kind of awful mendacity and abuse that have been heaped upon me for the last three months by the papers in the interest of not only Mr. Debs but of Mr. Wilson and Mr. Taft. (Applause and cheers.)

"Friends, I will disown and repudiate any man of my party who attacks with such foul slander and abuse any opponent of any other party (applause) and now I wish to say seriously to all the daily newspapers, to the republican, the democratic and the socialist parties that they cannot month in and month out and year in and year out make the kind of untruthful, of bitter assault that they have made and not expect that brutal violent natures, or brutal and violent characters, especially when the brutality is accompanied by a not very strong mind; they cannot expect that such natures will be unaffected by it.

"Now friends, I am not speaking for myself at all. I give you my word, I do not care a rap about being shot not a rap. (Applause.)

"I have had a good many experiences in my time and this is one of them. What I care for is my country. (Applause and cheers.) I wish I were able to impress upon my people—our people, the duty to feel strongly but to speak the truth of their opponents. I say now, I have never said one word against any opponent that I can not—on the stump—that I can not defend. I have said nothing that I could not substantiate and nothing that I ought not to

have said—nothing that I—nothing that looking back at I would not say again.

"Now friends, it ought not to be too much to ask that our opponents (speaking to some one on the stage) I am not sick at all. I am all right. I can not tell you of what infinitesimal importance I regard this incident as compared with the great issues at stake in this campaign and I ask it not for my sake, not the least in the world, but for the sake of our common country, that they make up their minds to speak only the truth, and not to use the kind of slander and mendacity which if taken seriously must incite weak and violent natures to crimes of violence. (Applause.) Don't you make any mistake. Don't you pity me. I am all right. I am all right and you can not escape listening to the speech either. (Laughter and applause.)

"And now, friends, this incident that has just occurred—this effort to assassinate me, emphasizes to a peculiar degree the need of this progressive movement. (Applause and cheers.) Friends, every good citizen ought to do everything in his or her power to prevent the coming of the day when we shall see in this country two recognized creeds fighting one another, when we shall see the creed of the 'Havenots' arraigned against the creed of the 'Haves.' When that day comes then such incidents as this tonight will be commonplace in our history. When you make poor men—when you permit the conditions to grow such that the poor man as such will be swayed by his sense of injury against the men who try to hold what they improperly have won, when that day comes, the most awful passions will be let loose and it will be an ill day for our country.

"Now, friends, what we who are in this movement are endeavoring to do is to forestall any such movement by making this a movement for justice now—a movement in which we ask all just men of generous hearts to join with the men who feel in their souls that lift upward which bids them refuse to be satisfied themselves while their fellow countrymen and countrywomen suffer from avoidable misery. Now, friends, what we progressives are trying to do is to enroll rich or poor, whatever their social or industrial position, to stand together for the most elementary rights of

good citizenship, those elementary rights which are the foundation of good citizenship in this great republic of ours.

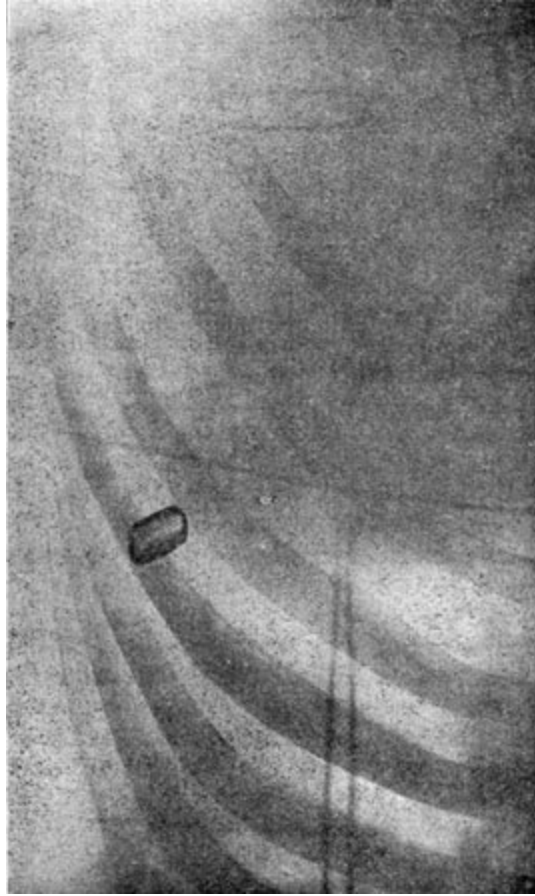
"My friends are a little more nervous than I am. Don't you waste any sympathy on me. I have had an A1 time in life and I am having it now.

"I never in my life had any movement in which I was able to serve with such wholehearted devotion as in this; in which I was able to feel as I do in this that common weal. I have fought for the good of our common country. (Applause.)

"And now, friends, I shall have to cut short much of the speech that I meant to give you, but I want to touch on just two or three of the points.

"In the first place, speaking to you here in Milwaukee, I wish to say that the progressive party is making its appeal to all our fellow citizens without any regard to their creed or to their birthplace. We do not regard as essential the way in which a man worships his God or as being affected by where he was born. We regard it as a matter of spirit and purpose. In New York, while I was police commissioner, the two men from whom I got the most assistance were Jacob Ries, who was born in Denmark and Oliver Van Briesen, who was born in Germany, both of them as fine examples of the best and highest American citizenship as you could find in any part of this country.

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X-Ray Photograph Showing Bullet as it Remains in Theodore Roosevelt.

"I have just been introduced by one of your own men here, Henry Cochems. His grandfather, his father and that father's seven brothers all served in the United States army and they entered it four years after they had come to this country from Germany (applause). Two of them left their lives, spent their lives on the field of battle—I am all right—I am a little sore. Anybody has a right to be sore with a bullet in him. You would find that if I was in battle now I would be leading my men just the same. Just the same way I am going to make this speech.

"At one time I promoted five men for gallantry on the field of battle. Afterward it happened to be found in making some inquiries about that I found that it happened that two of them were Protestants, two Catholics and

one a Jew. One Protestant came from Germany and one was born in Ireland. I did not promote them because of their religion. It just happened that way. If all five of them had been Jews, I would have promoted them, or if all five had been Protestants I would have promoted them; or if they had been Catholics. In that regiment I had a man born in Italy who distinguished himself by gallantry, there was a young fellow, a son of Polish parents, and another who came here when he was a child from Bohemia, who likewise distinguished themselves, and friends, I assure you, that I was incapable of considering any question whatever, but the worth of each individual as a fighting man. If he was a good fighting man, then I saw that Uncle Sam got the benefit from it. That is all. (Applause.)

"I make the same appeal in our citizenship. I ask in our civic life we in the same way pay heed only to the man's quality of citizenship to repudiate as the worst enemy that we can have whoever tries to get us to discriminate for or against any man because of his creed or his birthplace.

"Now, friends, in the same way I want our people to stand by one another without regard to differences or class or occupation. I have always stood by the labor unions. I am going to make one omission tonight. I have prepared my speech because Mr. Wilson had seen fit to attack me by showing up his record in comparison with mine. But I am not going to do that tonight. I am going to simply speak of what I myself have done and of what I think ought to be done in this country of ours. (Applause.)

"It is essential that there should be organizations of labor. This is an era of organization. Capital organizes and therefore labor must organize. (Applause.)

"My appeal for organized labor is twofold, to the outsider and the capitalist I make my appeal to treat the laborers fairly, to recognize the fact that he must organize, that there must be such organization, that it is unfair and unjust—that the laboring man must organize for his own protection and that it is the duty of the rest of us to help him and not hinder him in organizing. That is one-half of the appeal that I make.

"Now the other half is to the labor man himself. My appeal to him is to remember that as he wants justice, so he must do justice. I want every labor man, every labor leader, every organized union man to take the lead in denouncing crime or violence. (Applause.) I want them to take the lead (applause) in denouncing disorder and inciting riot, that in this country we shall proceed under the protection of our laws and with all respect to the laws and I want the labor men to feel in their turn that exactly as justice must be done them so they must do justice. That they must bear their duty as citizens, their duty to this great country of ours and that they must not rest content without unless they do that duty to the fullest degree. (Interruption.)

"I know these doctors when they get hold of me they will never let me go back and there are just a few things more that I want to say to you.

"And here I have got to make one comparison between Mr. Wilson and myself simply because he has invited it and I can not shrink from it.

"Mr. Wilson has seen fit to attack me, to say that I did not do much against the trusts when I was president. I have got two answers to make to that. In the first place what I did and then I want to compare what I did while I was president with what Mr. Wilson did not do while he was governor. (Applause and laughter.)

"When I took office as president"—(turning to stage) "How long have I talked?"

Answer: "Three-quarters of an hour."

"Well, I will take a quarter of an hour more. (Laughter and applause.) When I took office the anti-trust law was practically a dead letter and the interstate commerce law in as poor a condition. I had to revive both laws. I did. I enforced both. It will be easy enough to do now what I did then, but the reason that it is easy now is because I did it when it was hard. (Applause and cheers.)

"Nobody was doing anything. I found speedily that the interstate commerce law by being made more perfect could be a most useful instrument for helping solve some of our industrial problems with the anti-trust law. I speedily found that almost the only positive good achieved by such a successful lawsuit as the Northern Securities suit, for instance, was for establishing the principle that the government was supreme over the big corporation, but that by itself, or that law did not do—did not accomplish any of the things that we ought to have accomplished, and so I began to fight for the amendment of the law along the lines of the interstate commerce, and now we propose, we progressives, to establish an interstate commission having the same power over industrial concerns that the interstate commerce commission has over railroads, so that whenever there is in the future a decision rendered in such important matters as the recent suits against the Standard Oil, the sugar—no, not that—tobacco—the tobacco trust—we will have a commission which will see that the decree of the court is really made effective; that it is not made a merely nominal decree.

"Our opponents have said that we intend to legalize monopoly. Nonsense. They have legalized monopoly. At this moment the Standard Oil and Tobacco trust monopolies are legalized; they are being carried on under the decree of the Supreme Court. (Applause.)

"Our proposal is really to break up monopoly. Our proposal is to put in the law—to lay down certain requirements and then require the commerce commission—the industrial commission to see that the trusts live up to those requirements. Our opponents have spoken as if we were going to let the commission declare what the requirements should be. Not at all. We are going to put the requirements in the law and then see that the commission makes the trust. (Interruption.) You see they don't trust me. (Laughter.) That the commission requires them to obey that law.

"And now, friends, as Mr. Wilson has invited the comparison I only want to say this: Mr. Wilson has said that the states are the proper authorities to deal with the trusts. Well, about 80 per cent of the trusts are organized in

New Jersey. The Standard Oil, the tobacco, the sugar, the beef, all those trusts are organized in New Jersey and Mr. Wilson—and the laws of New Jersey say that their charters can at any time be amended or repealed if they misbehave themselves and it gives the government—the laws give the government ample power to act about those laws and Mr. Wilson has been governor a year and nine months and he has not opened his lips. (Applause and cheers.) The chapter describing of what Mr. Wilson has done about the trusts in New Jersey would read precisely like a chapter describing the snakes in Ireland, which ran: 'There are no snakes in Ireland.' (Laughter and applause.) Mr. Wilson has done precisely and exactly nothing about the trusts.

"I tell you and I told you at the beginning I do not say anything on the stump that I do not believe. I do not say anything I do not know. Let any of Mr. Wilson's friends on Tuesday point out one thing or let Mr. Wilson point out one thing he has done about the trusts as governor of New Jersey. (Applause.)

"And now, friends, I want to say one special thing here——"

(Col. Roosevelt turned to the table upon the stage to reach for his manuscript, but found it in the hands of some one upon the stage. He demanded it back with the words: "Teach them not to grab," which provoked laughter.)

"And now, friends, there is one thing I want to say specially to you people here in Wisconsin. All that I have said so far is what I would say in any part of this union. I have a peculiar right to ask that in this great contest you men and women of Wisconsin shall stand with us. (Applause.) You have taken the lead in progressive movements here in Wisconsin. You have taught the rest of us to look to you for inspiration and leadership. Now, friends, you have made that movement here locally. You will be doing a dreadful injustice to yourselves; you will be doing a dreadful injustice to the rest of us throughout this union if you fail to stand with us now that we are making this national movement (applause) and what I am about to say now

I want you to understand if I speak of Mr. Wilson I speak with no mind of bitterness. I merely want to discuss the difference of policy between the progressive and the democratic party and to ask you to think for yourselves which party you will follow. I will say that, friends, because the republican party is beaten. Nobody need to have any idea that anything can be done with the republican party. (Cheers and applause.)

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John Flammang Schrank.

"When the republican party—not the republican party—when the bosses in the control of the republican party, the Barneses and Penroses last June stole the nomination and wrecked the republican party for good and all. (Applause.) I want to point out to you, nominally, they stole that nomination from me, but really it was from you. (Applause.) They did not like me and the longer they live the less cause they will have to like me. (Applause and laughter.) But while they do not like me, they dread you. You are the people that they dread. They dread the people themselves, and those bosses and the big special interests behind them made up their mind that they would rather see the republican party wrecked than see it come under the control of the people themselves. So I am not dealing with the republican party. There are only two ways you can vote this year. You can be progressive or reactionary. Whether you vote republican or democratic it does not make any difference, you are voting reactionary." (Applause.)

Col. Roosevelt stopped to take a drink of water and the doctors remonstrated with him to stop talking, to which he replied: "It is getting to be better and better as time goes on. (Turning to the audience) If these doctors don't behave themselves I won't let them look at me at all." (Laughter and applause.)

"Now the democratic party in its platform and through the utterances of Mr. Wilson has distinctly committed itself to old flintlock, muzzle loaded doctrine of states right and I have said distinctly that we are for the people's right. We are for the rights of the people. If they can be obtained best through the national government, then we are for national rights. We are for the people's rights however it is necessary to secure them.

"Mr. Wilson has made a long essay against Senator Beveridge's bill to abolish child labor. It is the same kind of an argument that would be made against our bill to prohibit women from working more than eight hours a day in industry. It is the same kind of argument that would have to be made, if it is true, it would apply equally against our proposal to insist that in continuous industries there shall be by law one day's rest in seven and a three-shift eight hour day. You have labor laws here in Wisconsin, and any

Chamber of Commerce will tell you that because of that fact there are industries that will not come into Wisconsin. They prefer to stay outside where they can work children of tender years; where they can work women fourteen and sixteen hours a day, where, if it is a continuous industry, they can work men twelve hours a day and seven days a week.

"Now, friends, I know that you of Wisconsin would never repeal those laws even if they are to your commercial hurt, just as I am trying to get New York to adopt such laws even though it will be to New York's commercial hurt. But if possible, I want to arrange it so that we can have justice without commercial hurt, and you can only get that if you have justice enforced nationally. You won't be burdened in Wisconsin with industries not coming to the state if the same good laws are extended all over the other states. (Applause.) Do you see what I mean? The states all compete in a common market and it is not justice to the employers of a state that has enforced just and proper laws to have them exposed to the competition of another state where no such laws are enforced. Now the democratic platform, their speaker declares that we shall not have such laws. Mr. Wilson has distinctly declared that you shall not have a national law to prohibit the labor of children, to prohibit child labor. He has distinctly declared that we shall not have law to establish a minimum wage for women.

"I ask you to look at our declaration and hear and read our platform about social and industrial justice and then, friends, vote for the progressive ticket without regard to me, without regard to my personality, for only by voting for that platform can you be true to the cause of progress throughout this union." (Applause.)

All through his talk, it was evident that his physicians feared his injury had been more serious than he was willing to admit. That a man with a bullet embedded in his body could stand up there and insist on giving the audience the speech which they had come to hear was almost incredible and it was plain the physicians as well as the other friends of the colonel on the stage were greatly alarmed.

Col. Roosevelt, however, would have none of it. "Sit down, sit down," he said to those who, when he faltered once or twice, half rose to come towards him. He insisted that he was having a good time in spite of his injury.

Finally a motherly looking woman, a few rows of seats back from the stage rose and said, "Mr. Roosevelt, we all wish you would be seated."

To this the colonel quickly replied: "I thank you, madam, but I don't mind it a bit."

To those on the stage, who wished he would adopt the suggestion of being seated, he said: "Good gracious if you saw me in the saddle at the head of my troops with a bullet in me you would not mind."

The only time Col. Roosevelt gave up and took a seat was when he came to a quotation from La Follette's weekly which paid him a tribute of praise for his work as president. This was read by Assemblyman T. J. Mahon, while the colonel rested.

At the conclusion of the reading Col. Roosevelt said that he was the same man now that he was then. He had not been president since 1909 so that what he was described as being then he was now.

T. J. Mahon read this editorial from La Follette's magazine of March 13, 1909:

"Roosevelt steps from the stage gracefully. He has ruled his party to a large extent against its will. He has played a large part of the world's work for the past seven years. The activities of his remarkably forceful personality have been so manifold that it will be long before his true rating will be fixed in the opinion of the race. He is said to think that the three great things done by him are the undertaking of the construction of the Panama canal and its rapid and successful carrying forward,

the making of peace between Russia and Japan, and the sending around the world of the fleet.

"These are important things but many will be slow to think them his great services. The Panama canal will surely serve mankind when in operation; and the manner of organizing this work seems to be fine. But no one can yet say whether this project will be a gigantic success or a gigantic failure; and the task is one which must in the nature of things have been undertaken and carried through some time soon, as historic periods go, anyhow. The peace of Portsmouth was a great thing to be responsible for, and Roosevelt's good offices undoubtedly saved a great and bloody battle in Manchuria. But the war was fought out, and the parties ready to quit, and there is reason to think that it is only when this situation was arrived at that the good offices of the President of the United States were, more or less indirectly, invited. The fleet's cruise was a strong piece of diplomacy, by which we informed Japan that we will send our fleet wherever we please and whenever we please. It worked out well.

"But none of these things, it will seem to many, can compare with some of Roosevelt's other achievements. Perhaps he is loath to take credit as a reformer, for he is prone to spell the word with question marks, and to speak despairingly of 'reform.'

"But for all that, this contention of 'reformers' made reform respectable in the United States, and this rebuke of 'muck-rakers' has been the chief agent in making the history of 'muck-raking' in the United States a national one, conceded to be useful. He has preached from the White House many doctrines; but among them he has left impressed on the American mind the one great truth of economic justice couched in the pithy and stinging phrase 'the square deal.' The task of making reform

respectable in a commercialized world, and of giving the nation a slogan in a phrase, is greater than the man who performed it is likely to think.

"And, then, there is the great and statesmanlike movement for the conservation of our national resources, into which Roosevelt so energetically threw himself at a time when the nation as a whole knew not that we are ruining and bankrupting ourselves as fast as we can. This is probably the greatest thing Roosevelt did, undoubtedly. This globe is the capital stock of the race. It is just so much coal and oil and gas. This may be economized or wasted. This same thing is true of phosphates and other mineral resources. Our water resources are immense, and we are only just beginning to use them. Our forests have been destroyed; they must be restored. Our soils are being depleted; they must be built up and conserved.

"These questions are not of this day only, or of this generation. They belong all to the future. Their consideration requires that high moral tone which regards the earth as the home of a posterity to whom we owe a sacred duty.

"This immense idea, Roosevelt, with high statesmanship, dinned into the ears of the nation until the nation heeded. He held it so high that it attracted the attention of the neighboring nations of the continent, and will so spread and intensify that we will soon see world's conferences devoted to it.

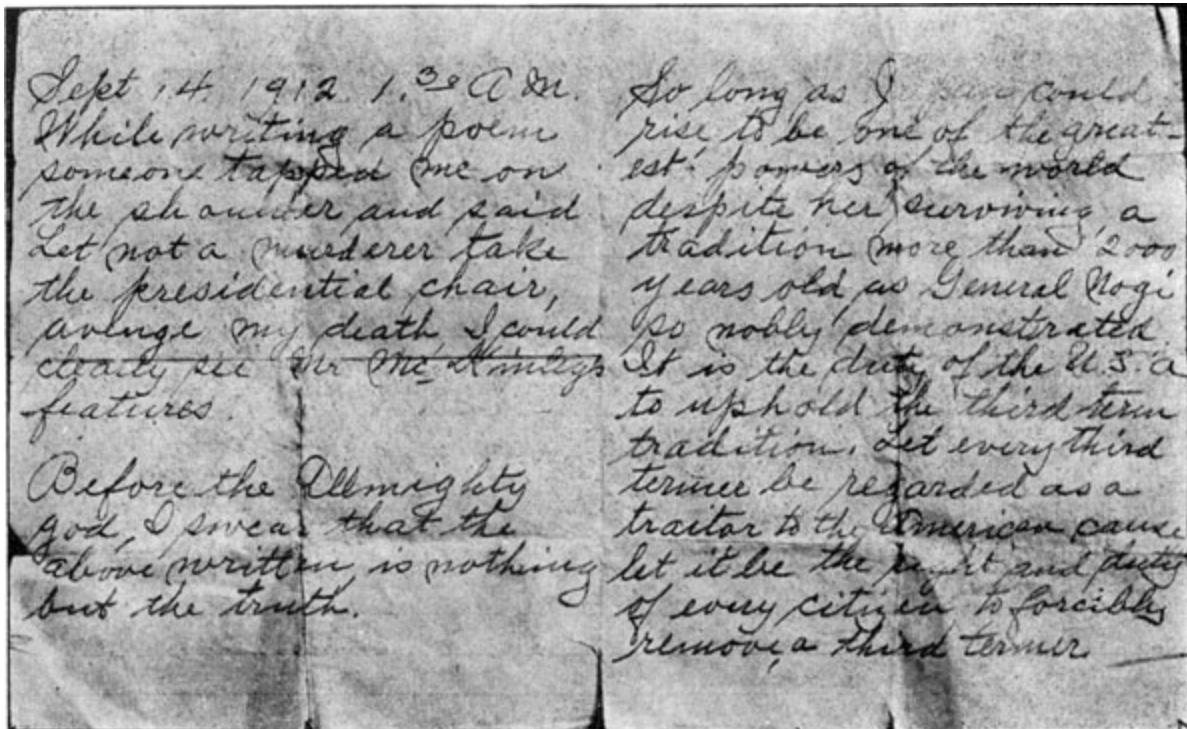
"Nothing can be greater or finer than this. It is so great and so fine that when the historian of the future shall speak of Theodore Roosevelt, he is likely to say that he did many notable things, among them that of inaugurating the movement which finally resulted in the square deal, but that his greatest work was inspiring and actually beginning a world movement for staying terrestrial waste and saving for the human race the

things upon which, and upon which alone, a great and peaceful and progressive and happy race life can be founded.

"What statesman in all history has done anything calling for so wide a view and for a purpose more lofty?"

1 ([Return](#))

Stenographic Report from The Milwaukee Sentinel.



Sept 14, 1912. 1.30 A.M.
While writing a poem
someone tapped me on
the shoulder and said
Let not a murderer take
the presidential chair,
avenger my death I could
clearly see the one's features.
Before the Almighty
god, I swear that the
above written is nothing
but the truth.

So long as I could
rise to be one of the great-
est powers of the world
despite her surviving a
tradition more than 2000
years old as General Hoji
so nobly demonstrated.
It is the duty of the U.S.A
to uphold the third term
tradition. Let every third
term be regarded as a
traitor to the American cause.
let it be the part and duty
of every citizen to forcibly
remove a third term.

Page One of Letter Found in Schrank's Pocket.

CHAPTER III.

ROOSEVELT IN THE EMERGENCY.

After Colonel Roosevelt had finished speaking at the Auditorium, the effect of the shock and loss of blood from the shot, was quite manifest in his appearance. Despite this fact, however, he walked with firm step to an automobile waiting at the rear of the big hall, and guarded by a group of friends, was driven rapidly to the Johnston Emergency hospital. Preparation had there been made for a careful examination and for treatment by Dr. Scurry L. Terrell, who attended Col. Roosevelt during his entire trip, Dr. R. G. Sayle and Dr. T. A. Stratton, both of Milwaukee.

At the hospital, Dr. Joseph Colt Bloodgood, a surgeon of the faculty of Johns-Hopkins university, was invited into the consultation. The Colonel's first thought had been to reassure Mrs. Roosevelt and family against any unnecessary fear, and before he received treatment, he sent a long reassuring telegram, together with a telegram to Seth Bullock, whose telegram was one of the first of the stream of telegrams which began pouring in for news of the patient's condition.

During the preliminary examination of the wound by the doctors in the Johnston Emergency hospital, preparations were completed to secure X-ray pictures under the direction of Dr. J. S. Janssen, Roentgenologist, Milwaukee. Dr. Janssen secured his views and left for his laboratory to develop the negatives.

While these negatives were being secured, it was determined by the doctors that no great additional danger would be incurred if Col. Roosevelt were moved to a train, and by special train to Chicago, which plan he had proposed, so that he might be nearer to the center of his fight. He was moved by ambulance to the train, which left Milwaukee shortly after midnight.

In the meantime, the completion of the X-ray pictures disclosed the fact that the bullet laid between the fourth and fifth ribs, three and one-half inches from the surface of the chest, on the right side, and later examinations disclosed that it had shattered the fourth rib somewhat, and was separated by only a delicate tissue from the pleural cavity.

By a miracle it had spent its force, for had it entered slightly farther, it would almost to a certainty have ended Col. Roosevelt's life.

Upon Dr. Janssen's report of the location of the bullet, there was a period of indecision, during which the train waited, before the surgeons concluded that the patient might be taken to Chicago, despite the deep nature of the wound, without seriously impairing his chances.

Arriving at Chicago about 3 in the morning of October 15, an ambulance was procured and the Colonel taken to Mercy hospital, where he was attended by Dr. John B. Murphy, Dr. Arthur Dean Bevan and Dr. S. L. Terrell.

A week later, during which the surgeons concluded that the wound was not mortal, and having recovered his strength somewhat, he was taken East to his home at Oyster Bay.

The bullet lies where it imbedded itself. It has not been disturbed by probes, because surgeons have concluded that such an effort would incur additional danger.

That the shot fired by Schrank didn't succeed in murdering Col. Roosevelt is a miracle of good fortune. A "thirty-eight" long Colt's cartridge, fired from a pistol frame of "forty-four" caliber design, so built because it gives a heavier drive to the projectile, fired at that close range, meant almost inevitable death.

The aim was taken at a lower portion of Col. Roosevelt's body, but a bystander struck Schrank's arm at the moment of explosion, and elevated the direction of the shot. After passing through the Colonel's heavy military overcoat, and his other clothing, it would have certainly killed him had it not struck in its course practically everything which he carried on his person which could impede its force.

In his coat pocket he had fifty pages of manuscript for the night's speech, which had been doubled, causing the bullet to traverse a hundred pages of manuscript.

It had struck also his spectacle case on the outer concave surface of the gun metal material of which the case was constructed. It had passed through a double fold of his heavy suspenders before reaching his body.

Had anyone of those objects been out of the range of the bullet, Schrank's dastardly purpose would have been accomplished beyond any conjecture.

Just before he went to the operating room in the Emergency hospital Col. Roosevelt directed the following telegram to Mrs. Roosevelt and gave orders that if the telegraph office at Oyster Bay was closed the message should be taken to Sagamore Hill by taxicab.

"Am in excellent shape, made an hour and half speech. The wound is a trivial one. I think they will find that it merely glanced on a rib and went somewhere into a cavity of the body; it certainly did not touch a lung and isn't a particle more serious than one of the injuries any of the boys used continually to be

having. Am at the Emergency hospital at the moment, but anticipate going right on with my engagements. My voice seems to be in good shape. Best love to Ethel.

"THEODORE ROOSEVELT."

The first bulletin issued by surgeons at the Johnston Emergency hospital was:

"The bleeding was insignificant and the wound was immediately cleansed, externally and dressed with sterile gauze by R. G. Sayle, of Milwaukee, consulting surgeon of the Emergency hospital. As the bullet passed through Col. Roosevelt's clothes, doubled manuscript and metal spectacle case, its force was much diminished. The appearance of the wound also presented evidence of a much bent bullet. The colonel is not suffering from shock and is in no pain. His condition was so good that the surgeons did not object to his continuing his journey in his private car to Chicago where he will be placed under surgical care."

(Signed)

"DR. S. L. TERRELL.

"DR. R. G. SAYLE.

"DR. JOSEPH COLT BLOODGOOD,
of the faculty of Johns-Hopkins

University.

"DR. T. A. STRATTON."

The following bulletin was issued just before Col. Roosevelt was taken to the special train which carried him to Chicago:

"Col. Roosevelt has a superficial flesh wound below the right breast with no evidence of injury to the lung.

"The bullet is probably lodged somewhere in the chest walls, because there is but one wound and no signs of any injury to the lung.

"His condition was so good that the surgeons did not try to locate the bullet, nor did they try to probe for it."

"DR. S. L. TERRELL.

"DR. R. G. SAYLE."

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CHAPTER IV.

CAREFUL OF COLLAR BUTTONS.

Miss Regine White, Superintendent of the Johnston Emergency Hospital, cut the gory shirts from Colonel Roosevelt and, after he had been attended by surgeons, tied the hospital shirt, with "Johnston Emergency Hospital" emblazoned across the front, about him.

Miss White, describing the ex-President's stay in the hospital, said:

"Col. Roosevelt is the most unusual patient who ever was ministered to in the Johnston Emergency Hospital, in that he was absolutely calm and unperturbed, and influenced every one about him to be so, although excitement and unrest were in the very atmosphere, and he was suffering much.

"Col. Roosevelt had not been in the hospital fifteen minutes before every one he came in contact with was willing to swear allegiance to the Bull Moose party, and personal allegiance to, the genial Bull Moose himself. He was so friendly and cordial, so natural and free, so happy and genial and so inclined to 'jolly' us all that we felt on terms of intimate friendship with him almost immediately, and yet through all this freedom of manner he maintained a dignity that never for an instant let us forget we were in the presence of a great man.

"It is almost unbelievable that he could have been as unruffled and apparently unconcerned as he was when he really was suffering, and when

he did not know how serious the wound was."

"GOD HELP POOR FOOL."

"I asked the colonel how he felt about the prosecution of the man who shot him," said Miss White, "and he said, 'I've not decided yet, but God help the poor fool under any circumstances!' and the tone he used was one of kindly sympathy and sincerity, and without one trace of malice or sarcasm.

"He seemed kindly interested in everything that any one said to him. Miss Elvine Kucko, one of our nurses, shook hands with him when he was about to go and said she was sorry the shooting had happened in our city. The colonel consoled her by saying it might have happened anywhere. I broke in with a remark to the effect that he would have felt even worse had it been perpetrated by a Milwaukeean, and that we were glad it was a New Yorker who did the deed.

"'You cruel little woman!' the patient ejaculated, and I remembered then that New York was the ex-President's state."

When he was ready to go, Miss White offered him a sealed envelope and told him his cuff buttons, shirt studs and collar buttons were in it.

"No, you can't do that with me," he said, "I want to see! I don't intend to get down to Chicago without the flat button for the back of my collar."

Miss White joined him in a laugh as she pulled open the envelope and counted each one separately into his hand. That flat bone button that he treasured hid itself under one of the others and he had to have a second count before he was satisfied that he was not going to be inconvenienced by its loss when he should next care to wear a collar.

Doctors and nurses questioned the ex-President's coat being warm enough, but he assured them that the coat was one he had worn in the

Spanish-American war, that it was of military make and would keep him warm enough in a steam-heated Pullman.

When the bandages were being strapped on the colonel's chest to keep the dressing in place, one of the doctors, Fred Stratton, a young giant, didn't put one fold as Miss White thought it ought to be. She ordered it put right, and the colonel began to laugh, which isn't to be wondered at when one remembers that Miss White is a tiny, wee bit of fluffy humanity who doesn't look a bit like what one would expect, the superintendent of a big hospital and looked a pigmy beside the big doctor.

To prevent is better than to defend

Sept. 15th 1912.

To the people of the United States

Never let a third term party emblem appear on an official ballot.

September 15, 1901 - 12^o A.M.

I'm willing to die for my country. God has called me to be his instrument. So help me God. First last & every if in favor of God.

in a dream I saw president McKinley sit up in his coffin pointing at a man in a monkey's attire in whom I recognized Theo. Roosevelt. The dead president said This is my murderer, avenge my death.

Innocent Guilty

Page Two of Letter Found in Schrank's Pocket.

"That's nothing," said Dr. R. G. Sayle, "she's been bossing us doctors for the past twenty years!"

"Oh, please—not quite that long——" began Miss White.

"Well, we'll knock off two and make it eighteen," the colonel interposed.

When the wound was dressed doctors and nurses tried to persuade the patient to remain over night, but without success.

"I know if Mrs. Roosevelt were here she would insist upon your staying," Miss White said.

"Young woman, if Mrs. Roosevelt were here I am certain she would insist upon my leaving immediately," her husband made reply, and gazed at the four pretty nurses surrounding him.

When the patient was brought up the elevator and led into the "preparation" room, the first thing to do was to prepare him for care of his wound. Miss White took his eye glasses. The Colonel objected and said he did not want those out of his sight. But when Miss White assured him she would give the glasses her personal attention he seemed content with the arrangement.

One of the physicians asked for a chair for Col. Roosevelt. Miss White said the operating table was ready, and the colonel immediately acquiesced and laid down on the carefully scrubbed pine slab on an iron frame, which has carried the weight of tramps, laborers and other unfortunates picked up in the street, but never before that of an ex-President of the United States.

Miss White was a little diffident about exposing the fact that the president had said a swear word, but she finally admitted that he remarked:

"I don't care a d——n about finding the bullet but I do hope they'll fix it up so I need not continue to suffer."

The doctors washed the wound area, painted it with iodine, itself a somewhat painful operation, and proceeded to the dressing.

One of the doctors told Col. Roosevelt that Miss White was a suffragist, and that after his kind treatment he ought to be converted. Miss White said the Big Bull Moose was a suffragist and that was one of the big planks of his party and the colonel laughed and said of course he believed in it.

When the party left for Chicago Dr. R. G. Sayle took with his antisepticized surgeon's gloves, surgical dressing and instruments to be used in case of hemorrhage before Chicago was reached.

Not a souvenir of the ex-President's visit remains in the hospital. His shirt was turned over to the police, and a blood-soaked handkerchief which was bound upon the wound, and which was picked up by one of the nurses, was found to have an "S" in the corner, so it was evident that it either did not belong to the ex-President or he had not always owned it, and this was discarded.

The Mercy Hospital nurses were appreciative of Col. Roosevelt.

"He was the best patient I ever had," said Miss Welter, and the sentiment was endorsed by Miss Fitzgerald.

"He was consideration itself. He never had a word of complaint all the time he was at the hospital, and his chief worry seemed to be that we were not comfortable. We had expected to find him 'strenuous' and possibly disagreeable. On the contrary, we found him most docile. He chafed at being kept in bed, but he tried not to show it, and he never was ill-humored or peevish, as many patients in a similar position are."

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CHAPTER V.

ARRIVAL AT MERCY HOSPITAL.

Arriving at Mercy Hospital, Chicago, Col. Roosevelt was given further examination on October 15. Several bulletins of his condition were issued. The last official bulletin given out by his staff physicians, J. B. Murphy, A. D. Bevan and Scurry L. Terrell, showed a most favorable condition.

Mrs. Roosevelt reached Chicago with her son Theodore and her daughter Ethel, was driven directly to Mercy Hospital and took charge of her husband as soon as she had greeted him. She was quite composed on her arrival and placidly directed affairs all through. As a result of her presence, the colonel's visiting list was materially cut down, he devoted less time to reading telegrams, and discussed the campaign very little.

Part of the morning he spent in reading cablegrams of sympathy and congratulation on his escape from Emperor William, King George, the President of France, the King of Italy, the King of Spain, the President of Portugal and the Crown Prince and Princess of Germany.

Among his few callers were Col. Cecil Lyon, Medill McCormick, Dr. Alexander Lambert, his family physician, who accompanied Mrs. Roosevelt to Chicago, Dr. Evans of Chicago and Dr. Woods-Hutchinson, a writer on medical topics, a warm personal friend.

As soon as he saw Dr. Lambert the colonel said:

"Lambert, you'd have let me finish that speech if you'd been there after I was shot, wouldn't you?"

"Perhaps so," returned the doctor, a little dubiously, "but I should have made sure you were not seriously hurt first."

Before Mrs. Roosevelt arrived the colonel was insistent that he be allowed to go to Oyster Bay shortly. After a talk with Mrs. Roosevelt, he said he would leave that question to her.

"It will probably be ten days at least before we go," she said. "It is too far distant to attempt a prophecy."

A more careful examination of the X-ray photographs taken of the patient disclosed the fact that his fourth rib was slightly splintered by the impact of the bullet lodged against it. This accounted for the discomfort that the colonel suffered.

Mrs. Roosevelt was insistent on taking her husband home at the earliest moment consistent with safety.

The colonel passed an easy day. He continued to exhibit the utmost indifference to the motives of Schrank, who sought his life. "His name might be Czolgosz or anything else as far as I am concerned," he said to one of his visitors. "I never heard of him before and know nothing about him."

To another friend he expressed the opinion that the man was a maniac afflicted with a paranoia on the subject of the third term. He showed no curiosity about him and did not discuss him, although he talked considerably about the shooting.

"You know," he said to Dr. Murphy, "I have done a lot of hunting and I know that a thirty-eight caliber pistol slug fired at any range will not kill a bull moose."

Before he went to sleep, Col. Roosevelt called for hot water and a mirror and sitting in bed, carefully shaved himself. Mrs. Roosevelt, tired out after her long journey, also retired early, at 10 o'clock.

The following bulletin, issued by the surgeons on the morning of October 15, described the wound inflicted by Schrank's bullet:

"Col. Roosevelt's hurt is a deep bullet wound of the chest wall without striking any vital organ in transit. The wound was not probed. The point of entrance was to the right of and one inch below the level of the right nipple. The range of the bullet was upward and inward, a distance of four inches, deeply in the chest wall. There was no evidence of the bullet penetrating into the lung. Pulse, 90; temperature, 99.2; respiration, 20; leucocyte count, .82 at 10 a.m. No operation to remove bullet is indicated at the present time. Condition hopeful, but wound so important as to demand absolute rest for a number of days."

(Signed)

"DR. JOHN B. MURPHY.

"DR. ARTHUR B. BEVAN.

"DR. SCURRY L. TERRELL.

"DR. R. G. SAYLE."

The arrival of Col. Roosevelt in Mercy Hospital, Chicago, was described by John B. Pratt, of the International News service, a correspondent traveling with the ex-President during the campaign, as follows:

"Any way, if I had to die, I wanted to die with my boots on." Lying on a hospital bed completely filled by his great bulk, Theodore Roosevelt made this answer to a question by Dr. Terrell.

He had just talked with the newspaper men who were with his party enroute. Terrell, coming in at the conclusion of the conversation, expressed the fear that the ex-President was exerting himself beyond his strength.

"You do too much," said Terrell. "The most uncomfortable hour I ever spent in my life was while I sat on that platform in Milwaukee wondering where that bullet was and in how imminent danger you were. How could you be so incautious as to make a speech then? It was all very well for you to say the shot was not fatal but how could you tell?"

The colonel grinned, raised his arm heavily, trying not to show the pain that came with every movement.

"I did not think the wound was dangerous," he said. "I was confident that it was not in a place where much harm could follow and therefore I wished to make the speech. Anyway, even if it went against me—well, if I had to die—" and the colonel chuckled grimly, "I thought I'd rather die with my boots on."

The newspaper men who were with him when out of the darkness came the bullet that still menaces his life, felt that in that sentence he had epitomized his unfaltering courage. Never once since has he wavered in courage. Physically overcome he once sank back, and came as near to fainting as so strong a man can. All the rest of the time he has been as serene as a man unhurt.

It was in the gray of this morning's daylight that we caught our first glimpse of him after the shooting. Standing in the corridor of his private car as it lay in the North-Western station in Chicago, we heard Dr. Terrell say:

"Now is a chance to see the old warrior, he is coming out."

The door of his state room creaked and swung open slowly. As it swung back within loomed the figure that attracts attention everywhere. The

colonel stepped out slowly, his shoulders thrown back and his bearing soldierly. He stretched out two fingers to one of the party.

"Ah, old comrade," he said, "shake. The newspaper boys are my friends," he added, as he proceeded toward the door of the car. "I'm glad to see them."

"You had a pretty rough time last night, colonel," suggested somebody.

"We did have a middling lively time, didn't we?" said the colonel with a broad grin.

"Pretty plucky of you," said another man. "Everybody agrees to that."

"Fiddlesticks," and the colonel stepped out on the platform and down the steps.

He had indignantly refused a stretcher and even balked at an ambulance, but finally agreed that this was the best means of conveyance to the hospital.

He walked past a silent crowd, a crowd that wanted to cheer, but did not dare, but stood, without a smile as he went by. To them all he waved a hand. Just as he was leaving the steps a flashlight flared forth, the sharp report of the powder startling everybody.

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Capt. A. O. Girard.

"Ah, shot again," said the colonel, without a tremor.

Before climbing into the ambulance he turned to the newspaper men who had come out to see him off.

"I want to see you newspaper men at the hospital at 3 o'clock. I want all the old guard there." Then he started up the steps of the automobile conveyance with a firm step and tried to seat himself firmly on the cushion. But he had counted on more strength than he possessed. With a smothered exclamation he sank back among them, his head dropping and his figure one of pathetic helplessness.

At 3 o'clock he welcomed the newspaper men sitting up in bed with his massive chest hidden beneath an undershirt.

"I came away in too big a hurry to get my pajamas," he explained, apologetically.

"Here they are, bless their hearts. They never desert me," the colonel cried, as the visitors were ushered in.

His face had lost the gray of the early morning and resumed its normal tint. He never looked better and certainly never looked larger. He filled the narrow hospital cot completely, from side to side, and from end to end.

Two beautiful rooms had been secured for him at Mercy Hospital, one of the biggest and finest institutions in the west. The four windows of the sick room faced two on Calumet avenue and two on Twenty-sixth street, in a quiet part of town, away from the smoke and the roar of the elevated trains. To make the air more salubrious an oxygen apparatus had been placed in the room, which liberated just enough gas to make the air fresh and to give it an autumn twang.

In response to a question as to how he felt, he replied with a laugh: "I feel as well as a man feels who has a bullet in him."

"But haven't you any pain?" asked someone.

"Well," the colonel said, dryly, "A man with a bullet in him is lucky if he doesn't experience a little pain."

Here Dr. Terrell, always on watch, held up a warning hand.

"You must not talk much," he said.

"I'll boss this job," said Roosevelt. "You go away and let me do this thing."

Just then the door opened to admit Elbert E. Martin, the herculean stenographer who had grabbed Schrank before he could fire a second shot.

"Here he is," cried the colonel, waving his hand, "here is the man that did it."

Martin had brought a lot of telegrams. The colonel, lying partly propped up adjusted the great tortoise shell glasses and proceeded to look them over. With one of them he seemed especially pleased. It came from Madison, Wis., and was as follows:

"Permit me to express my profound regret that your life should have been in peril and to express my congratulations upon your fortunate escape from serious injury. I trust that you will speedily recover.

(Signed)

"ROBERT M. LA FOLLETTE."

"Let me see that again," he said, after turning it back to Martin. When he had read it a second time he said: "Here, take this," and dictated:

"Senator Robert M. La Follette—Thanks sincerely for your kind expressions of sympathy."

Half an hour the colonel spent looking over and answering private telegrams, dictating always in a clear, strong voice. When he had done he talked with the newspaper men of former experiences of the kind he had just gone through and of cranks at Sagamore Hill and at the White House.

"But I never had a bullet in me before," he said.

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CHAPTER VI.

GETS BACK INTO CAMPAIGN.

October 17, convinced that he was beyond all possible danger, Col. Roosevelt resumed the active campaign from his sick room in Mercy Hospital by dictating a statement in which he requested his political opponents to continue the fight as if nothing had happened to him.

The colonel awoke feeling as he expressed it, "like a bull moose." In the afternoon he overcame Mrs. Roosevelt's objections to work long enough to send for Stenographer Martin and dictate the statement that put him back into politics.

Then he answered dispatches from President Taft, Cardinal Gibbons, and several other of those who had sent messages of sympathy.

He carefully reread the dispatch from President Taft and dictated this reply:

"I appreciate your sympathetic inquiry and wish to thank you for it."

"Sign that Theodore Roosevelt," he said to Martin.

To Cardinal Gibbons he sent this:

"I am deeply touched by your kind words."

To Woodrow Wilson: "I wish to thank you for your very warm sympathy."

His statement dictated to Stenographer Martin asking the campaign to continue despite Schrank's shot was as follows:

"I wish to express my cordial agreement with the manly and proper statement of Mr. Bryan at Franklin, Ind., when in arguing for a continuance of the discussion of the issues at stake in the contest he said:

""The issues of this campaign should not be determined by the act of an assassin. Neither Col. Roosevelt nor his friends should ask that the discussion should be turned away from the principles that are involved. If he is elected President it should be because of what he has done in the past and what he proposes to do hereafter.'"

"I wish to point out, however, that neither I nor my friends have asked that the discussion be turned away from the principles that are involved. On the contrary, we emphatically demand that the discussion be carried on precisely as if I had not been shot. I shall be sorry if Mr. Wilson does not keep on the stump and feel that he owes it to himself and to the American people to continue on the stump.

"I wish to make one more comment on Mr. Bryan's statement. It is of course perfectly true that in voting for me or against me, consideration must be paid to what I have done in the past and to what I propose to do. But it seems to me far more important that consideration should be paid to what the progressive party proposes to do.

"I cannot too strongly emphasize the fact upon which we progressives insist that the welfare of any one man in this fight is wholly immaterial compared to the greatest fundamental issues involved in the triumph of the principles for which our cause stands. If I had been killed the fight would have gone on exactly the same. Gov. Johnson, Senator Beveridge, Mr. Straus, Senator Bristow, Miss Jane Addams, Gifford Pinchot, Judge Ben Lindsay, Raymond Robbins, Mr. Prendergast and the hundreds of other men now on the stump are preaching the doctrine that I have been preaching and stand for, and represent just the same cause. They would have continued the fight in exactly the same way if I had been killed, and they are continuing it in just the same way now that I am for the moment laid up.

"So far as my opponents are concerned, whatever could with truth and propriety have been said against me and my cause before I was shot can with equal truth and equal propriety be said against me and it now should be so said, and the things that cannot be said now, are merely the things that ought not to have been said before. This is not a contest about any man; it is a contest concerning principles.

"If my broken rib heals fast enough to relieve my breathing I shall hope to be able to make one or two speeches yet in this campaign; in any event, if I am not able to make them the men I have mentioned above and the hundreds like them will be stating our case right to the end of the campaign and I trust our opponents will be stating their case also.

"THEODORE ROOSEVELT."

October 19, Gov. Hiram W. Johnson, of California, candidate for Vice-President on the National Progressive ticket, was summoned to Mercy

Hospital by Col. Roosevelt.

The governor hastened to the hospital and conferred with Roosevelt for an hour. The ex-President urged upon Johnson that he return to California to hold his office as governor. Johnson had two years to serve of his term and under the law he would forfeit the governorship if he did not get back. The law there provides that no governor shall absent himself from office for more than two months running. Johnson had been away all but a few days of that period.

"Governor, I realize the sacrifice you have made in keeping so long away from your office," began the colonel, in serious tone. "I am told that if you do not hurry back they will take the governorship away from you. Now, I want you to go back. Leave the campaign to me. I can handle it all right. Soon I'm going out on the stump and I'll lead the fight myself."

Gov. Johnson marveled at the bold idea that Roosevelt, convalescing from the bullet wound, would take command again.

"You can't do it, colonel," he protested. "You will need to build up your strength. I won't——"

"Fiddlesticks," interrupted the colonel. "You'll do what I say. I never felt any stronger in my life. It's all a matter of being able to breathe easier with this splintered rib. That won't bother me more than a few days. Then they can't hold me back."

Flatly Gov. Johnson informed Col. Roosevelt that he wanted to stay in the fight.

"I'm needed," he went on. "I'm going to let them take the governorship. I'll resign."

Leaning out from the arm chair in which he sat, Roosevelt whacked his right fist down on the table before him. A sharp pain went through the breast pierced by the bullet.

"I tell you, governor, you'll not do it," fairly cried the colonel, so vehemently that Mrs. Roosevelt, in the next room, stepped to the doorway.

"You must be quiet, Theodore," spoke Mrs. Roosevelt, lifting a warning finger.

"Yes, that's right," agreed the colonel, "but the governor here is recalcitrant and I've got to speak roughly to him."

After a brisk interchange of opinion as to the feasibility of the governor giving up the campaign the two violently taking opposite sides, bidding the colonel an affectionate good-bye, Gov. Johnson left the hospital. As he passed out to an automobile, Johnson said he had promised the colonel to talk the matter over with other leaders before deciding what to do.

"He insists that I return to California and I insist I won't," explained the governor. "We couldn't agree."

Later Gov. Johnson conferred at his hotel with William Allen White, Francis J. Heney and other Bull Moose leaders. The governor was obdurate in his decision to stick in the race.

"Col. Roosevelt is in no shape to take up the responsibility," he maintained. "It is but an evidence of his magnanimity that he urges me to return to California. I'd rather lost the job than desert the colonel now."

Attorney General U. S. Webb of California on October 20 issued the following opinion, however, which did away with possibility of Gov. Johnson losing his office:

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Elbert E. Martin.

"There is a code section in the state limiting the absence of the governor and other officials from the state to sixty days, but the legislature of 1911 by resolution, removed the limitations on the governor and other high state officials. In addition to that the constitution of the United States specifically provides the conditions under which a state official may be removed, and it does not include this particular condition. There is no reason why Gov. Johnson cannot remain outside the state as long as he sees fit and there is nothing the legislature can do to remove him for remaining away more than sixty days."

CHAPTER VII.

BACK AT SAGAMORE HILL.

The trip of ex-President Roosevelt from Mercy Hospital, Chicago, to his home at Oyster Bay, beginning the morning of October 21 over the Pennsylvania road is described here by one of the correspondents who traveled with him. Under date of October 21, he wrote at Pittsburg, Pa.:

"On a mellow autumn day whose warmth seemed to breathe a tender sympathy, Col. Roosevelt traveled from Chicago today on his way to Oyster Bay on the most extraordinary trip ever undertaken by a candidate for the presidency.

"Unable because of sheer weakness to show himself on the platform of his private car, the stricken Bull Moose leader, with blinds drawn in his stateroom, listened with throbbing heart to the soft murmuring of eager throngs as they clustered at the stations along the way. As the train rolled into Pittsburg tonight the colonel, shaken up by the jostling of the train, meekly confessed to Dr. Alexander Lambert, his New York physician, who with Dr. Scurry Terrell, are making the trip with him, that he was 'tired out.'

"'I'm going to put in a sound night of sleep,' he sighed, 'I'll be all right again in the morning.'

"The bullet nestling in the colonel's chest and the splintered rib gave him more discomfort than the wounded leader had counted on. As the train

jolted at times the ex-President experienced piercing pain. But he bore it without a whimper.

"When night came the physicians agreed that although the tumbling of the train had caused the colonel more worry than he would admit, he would suffer no ill effects.

"The ex-President's leisurely jaunt through Ohio, for he is running upon a twenty-four hour train, was in truth an occasion of tragic quiet. The waiting throngs which half anticipated that they would see the plucky third party fighter walk out onto platform of his car, stood in a respectful attitude as they learned that the colonel was unable to see them.

"Almost the whole day the ex-President lay on a soft bed in his state room, reading, or when that grew irksome, dropping into restful slumber. Outside of his family, his stenographer, John Martin and the latter's wife, who boarded the train at Lima, the colonel saw no one. He asked for quiet, feeling himself that he needed to conserve all the strength at his command for the long run to Oyster Bay.

"The ex-President started his jaunt homeward by fooling the newspaper men in Chicago. At Mercy Hospital the tip was allowed to filter out that the colonel would climb into an automobile at the front entrance. Camera men adjusted their machines and a flock of newspaper men waited.

"Instead, the ex-President was wheeled to a side door to an automobile ambulance, into which he pulled himself.

"'I fooled them that time,' chuckled the colonel to Dr. Lambert, who climbed in after him.

"While the colonel was driven to the train, Mrs. Roosevelt, Miss Ethel and Theodore, Jr., took an automobile. So as to avoid the crowd at the Pennsylvania depot, the ambulance was taken to the train by way of a yard, the colonel's private car being drawn up for it. Only a few yardmen were

there to salute the colonel as he stepped from the ambulance. They raised their hats and one of them cried:

"Colonel, good luck to you!' Roosevelt lifted his right hand to his hat and gave a military salute."

Concerning the ex-President's appearance in Madison Square Garden, New York, on the night of October 30, a press dispatch said:

"Bearing no outward sign of the bullet in his breast, Theodore Roosevelt tonight hurled himself back into the campaign at Madison Square Garden. He spoke for forty minutes to the biggest meeting he has ever addressed in New York and to one of the greatest gatherings ever seen in that historic auditorium.

"More than 15,000 men and women welcomed him. Another vast crowd waited all evening outside in the hope that they might catch a word or two from the colonel as he departed. They were disappointed, for his physicians, fearing too great a tax on his strength, refused to permit him to make more than one address.

"The crowd inside cheered for forty minutes when Roosevelt, at twenty minutes past 9 o'clock led his guards into the Garden, climbed the steps to the speaker's gallery and stood before them. Bandannas and American flags waved like a moving forest, the shouts of the crowd and the drumming of thousands of heels on the floor drowned the band and every air that has been sung in the campaign from 'Everybody's Doin' It' to 'Onward, Christian Soldiers,' boomed forth when the enthusiasts, wearied of plain cheering, of mooing like the moose, or of yelling: 'We want Teddy! We want Teddy!'

"The great hall whose galleries and arched ceiling were completely hidden with bunting and huge flags, made a marvelous picture as the colonel, leaning over the speaker's rail, his teeth snapping like a bulldog's, raised his left hand in first greeting.

"For three-quarters of an hour he stood there. Now and then recognizing a friend he would make a dash to the other end of the stand, a distance of twenty feet and wave his hand—always his left—in greeting.

"As he faced first to the left, then to the right, he awakened successive outbursts of cheers, and bandannas and flags were set in motion by sections, till red flushes ran over the crowd like waves.

"The colonel's speech was pitched in a solemn and impressive key. He made no direct allusion to the attack upon him. He made no attack upon any individual among his political foes. He named no names save those of Washington, Lincoln, Jefferson and Jackson.

"Deliberately avoiding the line of advance, which was punctuated with applause, he appealed for the votes of his auditors for the progressive cause, making no reference to himself and none to his achievements.

"With cheeks thinner than they were before the attack upon him, but with a brilliant color, with figure sturdy and erect, and with a voice that reached to every part of the hall, and never once cracked into the falsetto squeak that often characterizes it, the colonel seemed the picture of health. Not at all while he was speaking did he smile. All his gestures, save one or two were made with his left hand which, being farthest removed from the bullet wound, could be moved with impunity.

"Once or twice toward the end he brought his right hand down with a resounding slap on the rail of the speakers stand, but his face gave no indication that the gesture caused him pain. The flashlights which were set off at intervals during the address he faced without wincing.

"Col. Roosevelt was preceded by Senator Dixon, who presided, by Oscar Straus, candidate for governor in New York, and by Governor Johnson of California."

"Col. Roosevelt's physicians went into his state room to see him soon after the train left Englewood. They found him contentedly reading:

"Col. Roosevelt is resting well and is very comfortable.'

"So well, indeed, was the ex-President that the doctor said he did not bother to take his pulse and temperature."

Col. Roosevelt arrived at Sagamore Hill at 10 o'clock in the morning of October 22.

When the ex-President's physicians left him at dusk they gave out this bulletin, impressing their insistence that Roosevelt devote himself to solid rest:

"Col. Roosevelt has stood the journey well, but, of course, is tired. The wound is still open and oozing. Rest and quiet are essential to him to avoid possibilities of wound infection. He will be able to see no one tonight. While Col. Roosevelt is extremely anxious to take up the work of the campaign we are not willing to say at this time that that will be possible.

"JOS. A. BLAKE.

"GEORGE E. BREWER.

"ALEXANDER S. LAMBERT.

"SCURRY L. TERRELL."

The colonel was brought to Sagamore Hill in an auto from Syasset, L. I., without going to Oyster Bay, in order to avoid any crowd.

Flowers sent to Sagamore Hill by the school children of Nassau county were the only tokens of public welcome for the homecoming.

When he arrived at Sagamore Hill the colonel's wound was dressed and he went to bed at once, with instructions to remain quiet all day. The

physicians said the wound showed no ill effects from the trip.

Col. Roosevelt and his secretaries were busy on the train until late in the night of October 21, looking for an old speech of the colonel's on the trusts. This speech had been the basis of recent criticism by William J. Bryan, and after a secretary had unearthed it and Col. Roosevelt had gone over it he said he intended to reply to Mr. Byran's criticism either in a statement or in a speech.

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Automobile in Which Ex-President Roosevelt Stood when Shot.
Crosses Marked Where Col. Roosevelt and Schrank Stood.
George F. Moss, Owner and Driver of Automobile.

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CHAPTER VIII.

ARREST, APPEARS IN COURT.

Within five minutes after he had fired the bullet into ex-President Roosevelt's right side, John Flammang Schrank was on his way in the auto police patrol to the central police station, Milwaukee.

Those who overpowered Schrank were Elbert E. Martin, Capt. A. O. Girard, Col. Cecil Lyon of Texas, Sergeant Albert Murray of the Milwaukee police department and Detectives Harry Ridenour, Louis Hartman and Valentine Skierawski of the Milwaukee police department.

The thousands who were in the vicinity of the shooting clamored for Schrank's life.

Capt. Girard and Sergeant Murray fought off the crowd and literally dragged Schrank into the Hotel Gilpatrick through the main entrance, through the lobby and into the hotel kitchen.

Here Schrank was left in charge of Capt. Girard and Herman Rollfink while Sergeant Murray telephoned the central police station for the auto patrol. Upon its arrival Schrank was hustled into it and taken to the central station.

Schrank having disappeared, the crowd about the hotel hurried to the Auditorium. This vast building was filled to capacity, 9,000, and at least

15,000 were outside unable to even get to the doors, which had been closed and locked by attendants at 8 o'clock.

When Schrank was first questioned at the central station he declined to give his name. Within a short time, however, under supervision of Chief John T. Janssen, he submitted to an examination, which appears in full in another chapter.

Schrank necessarily was roughly handled immediately after firing the shot. He clung to the revolver until it was wrenched from him, and at one time he was beneath a pile of struggling men in the street car tracks immediately in front of Hotel Gilpatrick.

One of the detectives, in his efforts to get hold of Schrank, was carried down with Schrank beneath this struggling mass of men.

When Schrank arrived at the central station he was little the worse for his rough handling, except that his clothing was badly soiled, his collar torn off and his hair disheveled. He looked as though he were glad he had been rescued from the crowd crying for his life.

Searched at the central station the following letter was found in a coat pocket:

"To the People of the United States:

"September 15, 1901—1:30 A.M.

"In a dream I saw President McKinley sit up in his coffin pointing at a man in a monk's attire in whom I recognized Theodore Roosevelt. The dead president said—This is my murderer—avenge my death.

"September 14, 1912—1:30 A.M.

"While writing a poem some one tapped me on the shoulder and said—let not a murderer take the presidential chair, avenge my death. I could clearly see Mr. McKinley's features. Before the Almighty God, I swear that the above written is nothing but the truth.

"So long as Japan could rise to be one of the greatest powers of the world despite her surviving a tradition more than 2,000 years old, as Gen. Nogi demonstrated, it is the duty of the United States of America to see that the third term be regarded as a traitor to the American cause. Let it be the right and duty of every citizen to forcibly remove a third term.

"Never let a third term party emblem appear on an official ballot. I am willing to die for my country. God has called me to be his instrument, so help me God.

"INNOCENT—GUILTY."

On a sheet of paper taken from the man when he was searched at the central station, the police found a list of nine hotels where he is supposed to have stopped recently.

The following is the list: Mosely hotel, Charleston, S. C.; Planters hotel, Augusta, Ga.; Childs' hotel, Atlanta, Ga.; Plaza hotel, Birmingham, Ala.; Redmon hotel, Chattanooga, Tenn.; Third Avenue hotel, Rome, Tenn.; Bismark hotel, Nashville, Tenn.; Station hotel, Evansville, Ind., and the Normandy hotel, Louisville, Ky.

At 10:35 o'clock on the morning of October 15 Schrank was taken to District court before Judge N. B. Neelen. He admitted that he had fired the bullet which hit ex-President Roosevelt, and he was bound over to the December term of Municipal court, with bail fixed at \$7,500. Bail was later raised to \$15,000.

Before Schrank appeared in court District Attorney Winifred C. Zabel said:

"So far as I have been able to determine from several examinations, John Schrank is legally sane," declared District Attorney W. C. Zabel, in discussing Theodore Roosevelt's would-be assassin, yesterday.

"He has a perfect knowledge of right and wrong and realizes that the act he committed was against the law. Medically he may have a slight aberration, but only experts could determine that.

"Schrank will have as fair a trial under the law as any other man. He has been given ample time in which to prepare his case, and, if he does not engage an attorney himself, one will be appointed to defend him."

Schrank expressed no desire to be tried in a hurry. The revolver from which the shot had been fired, together with the shirt and underwear worn by Col. Roosevelt were brought into court and exhibited by Detective Louis Hartman.

At the suggestion of others, Judge Neelen ordered the revolver and bullets taken to Dean R. E. W. Sommers, Marquette university, for chemical analysis to determine whether the bullets were poisoned.

Schrank seemed unconcerned over the crime he had committed.

"You are charged with assault with intent to kill and murder," said District Attorney Zabel. "What do you plead, guilty or not guilty?"

"I am guilty," answered Schrank quietly.

The court then explained to Schrank that he was charged with a serious offense, and had the right to ask for an adjournment and time in which to obtain legal counsel and prepare a defense.

"I understand that," said Schrank. "I plead guilty and waive examination."

"Then you are bound over to the municipal court under bonds of \$5,000," said the court. Schrank was then asked if he wanted a speedy trial.

"No, I don't want one at once," was the reply. "I wish to have some time."

"We will give you plenty of time. You will be tried during the December term of the Municipal court."

As Schrank was being led back to the prisoners' "pen," one of the newspaper men standing, remembering that President McKinley died because of a poisoned bullet, reminded the court that it might be well to have the bullets in Schrank's revolver chemically analyzed.

"Oh, if that's the case, it makes it much more serious," said the court. "Infection might set in. I'll raise the bail from \$5,000 to \$7,500."

A crowd of not more than 200 was seated in the courtroom when Schrank's case was called, the general impression being that he would not be examined before October 16. When his name was called every one in the room pushed forward, and it was necessary for the deputies and policemen to use force to push them back of the railing.

When in the "bullpen" Schrank's fellow prisoners shrank away from him. They knew of his attempt to assassinate the former president, and he was an outcast, even among his own kind.

He was led from the courtroom by Sheriff Arnold and a special corps of deputies, the officials fearing violence, to the county jail, where he was lodged in a cell on the first floor.

Schrank on his arrival in Milwaukee registered at the Argyle hotel, 270 West Water street, and was assigned to room number 1. He paid for his

room in advance and was very seldom seen at the hotel thereafter.

His meals, according to the clerk, he took outside. The clerk said the only time the man was seen about the hotel was when he walked in and out.

He was registered under the name of "Albert Ross," which name he has registered under in a number of hotels at which he stopped while following Col. Roosevelt about the country.

Without a tremor in his voice and talking willingly in the central station, Schrank unfolded the fact that he had at one time been engaged to be married to Miss Elsie Ziegler, New York, one of the victims of the General Slocum steamboat disaster, in which over a thousand lives were lost.

As he spoke of the girl his voice softened and his eyes sought the floor of his cell. His lips seemed to quiver slightly, the first evidence of remorse since his arrest.

Asked if the fact that the girl had lost her life during the disaster had anything to do with the act he clenched his hands and with an angry jerk of his head almost shouted his answer to the questioner.

"She had nothing to do with it," he exclaimed. "She was a beautiful girl and I want you to understand that her soul is cleared from any part of this act."

The five sets of finger prints were taken by the police at the request of police departments of other cities.

The warrant under which Schrank was arrested read as follows:

"John Schrank, being then and there armed with a dangerous weapon, to-wit, a loaded revolver, did then and there, unlawfully, wilfully and feloniously make an assault in and upon one, Theodore Roosevelt, with said loaded revolver, with

intent, then and there, him, the said Theodore Roosevelt, unlawfully, willingly and feloniously and of his malice aforethought to kill and murder."

The crime with which Schrank still is charged reads as follows:

"Assault with intent to murder or rob. Section 4376. Any person being armed with a dangerous weapon who shall assault another with intent to rob or murder shall be punished by imprisonment in the state prison not more than fifteen years nor less than one year."

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CHAPTER IX.

APPEARS IN MUNICIPAL COURT.

November 13 Schrank appeared in Municipal court before Judge August C. Backus. Two sessions of court, lasting only a few minutes each, were necessary to dispose of Schrank's preliminary hearing. At 10 o'clock the court heard Schrank's plea of guilty, and took recess until 2 o'clock, when the following physicians were appointed to look into the prisoner's mental condition: Dr. F. C. Studley, Dr. W. F. Becker, Dr. Richard Dewey, Dr. W. F. Wegge, and Dr. D. W. Harrington, all of Milwaukee.

The court also appointed Attorney James G. Flanders to represent Schrank.

At both sessions of the court, Schrank appeared perfectly at ease, walking inside the bar with a jaunty air, chin up and a curious look on his face. His appearance had changed considerably since the night he shot the ex-President. Then his clothing was torn and bedraggled, his hair unkempt, face unshaven and his expression wild.

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Johnston Emergency Hospital, Milwaukee.

In Municipal court he was neatly dressed in a carefully pressed suit of blue serge, shoes shined, clean linen and spotless white tie, with a white handkerchief peeping out of a side coat pocket. He had been cleanly shaven and his hair was carefully pasted down, while in his hands he carried a new fedora hat and a raincoat.

As he was led to the front of the courtroom by Deputy Sheriff Albert Melms, everyone in the crowd stared at him, but the prisoner walked with a firm step, and looked neither to the right nor left. It was only when he was

called before the bar and asked to plead, that he wavered, and then only for an instant. Judge Backus ordered him to stand and listen to the charge made against him, reciting that "John Schrank, on Oct. 14, with malice aforethought, did attempt to kill and murder Theodore Roosevelt."

"What do you plead to that, guilty or not guilty?" asked District Attorney W. C. Zabel.

"I plead guilty to the shooting," answered the prisoner in a voice that was slightly husky.

"Did you intend to kill Theodore Roosevelt?" asked Mr. Zabel.

Here the prisoner's voice became steady again, and he answered:

"I did not intend to kill the citizen Roosevelt."

"Did you intend to kill the candidate Roosevelt?"

"I intended to kill Theodore Roosevelt, the third termmer," was the answer. "I did not want to kill the candidate of the Progressive party. I shot Roosevelt as a warning to other third termers."

"There we have it," broke in the court, and Schrank was told that he might take his seat.

District Attorney Zabel moved that the court either appoint a commission of alienists to examine Schrank or have him tried before a jury. Judge Backus announced that he would appoint a commission of five experts at 2 o'clock, and took a recess, ordering the deputies to take Schrank back to the county jail. As the prisoner arose to leave many of those in the courtroom rushed for the door, but all fell back when the court said:

"Let no man leave the courtroom until the prisoner has left the city hall."

At the afternoon session Schrank was simply brought in and allowed to sit at one of the tables. When the physicians who are to examine him arose to be sworn, he eyed them curiously, but evinced no outward signs of emotion.

The court allowed the alienists as much time as they desired to make the examination of the prisoner, and ordered the sheriff to allow them to see Schrank whenever they wished. The prisoner also was given an opportunity to confer with his attorney.

The decision which the alienists were to reach, as ordered by the court, was whether "the defendant, John Schrank, is sane at the present time."

District Attorney Zabel announced that the following had been subpoenaed as witnesses: Detectives Louis Hartman, and Valentine Skierawski; Dr. Robert G. Sayle and Dr. T. W. Williams, Emergency hospital, who attended Col. Roosevelt; Capt. A. O. Girard and John Campbell, Rescue Mission, an eyewitness.

Mr. Zabel received several letters and telegrams from New York asking for leniency, and commending Schrank's action.

Several were sent with the request that they be handed to the attorney who would defend the prisoner.

People all over the country sent letters to District Attorney W. C. Zabel advising him how to handle Schrank.

"Think of all the brains that are uniting with mine in trying to determine how to handle this case," said Mr. Zabel, with a laugh. "And the best part of it is that it's not costing the city or county a cent either. How do you like this one," handing over a letter which said:

"For God's sake, don't let any Catholic priest get near him."

Another said: "Hang him up by the thumbs. No punishment is too horrible for such a man."

A third man looked with suspicion upon the Socialist district attorney, and believed that he read something wrong in the statement that Schrank would not be placed on trial immediately.

"Probably Schrank is not so crazy after all," this man wrote. And then he insinuated that Schrank very carefully planned to commit the deed in a state where there is no capital punishment and in a county—the only one in the country—in which "there is a Socialist district attorney."

Still another advised the district attorney to look into the minutest details, as he saw some big rich and powerful influence back of Schrank which had urged him on to the crime.

"These are only a few of the letters I received from men who are probably in as bad a mental state as they seem to think Schrank is," said the district attorney.

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CHAPTER X.

SCHRANK DECLARED INSANE.

On November 22 Schrank was declared insane by the five alienists who had examined him. He appeared in Municipal court and was committed to the Northern Hospital for the Insane at Oshkosh, Wis., by Judge August C. Backus in the following order:

"FINDINGS OF THE COURT:

"The court now finds that the defendant John Schrank is insane, and therefore incapacitated to act for himself.

"IT IS THEREFORE ORDERED AND ADJUDGED, that the defendant John Schrank be committed to the Northern Hospital for Insane, near Oshkosh, in the county of Winnebago, state of Wisconsin, until such time when he shall have recovered from such insanity, when he shall be returned to this court for further proceedings according to law.

"AND IT IS FURTHER ORDERED, that all proceedings in this case be stayed indefinitely and until such recovery.

"IT IS FURTHER ORDERED, that the sheriff of Milwaukee county is hereby ordered to convey the said John Schrank to the said Northern Hospital for Insane, near Oshkosh, in the county of Winnebago, state of Wisconsin, and there to deliver him to

the superintendent thereof and the said superintendent is hereby ordered and directed to receive the said John Schrank as an inmate of said hospital and there to keep him until he has recovered from such insanity, when he shall be returned to this court for further proceedings as provided by law."

Schrank expressed the keenest disappointment both on the report of the insanity commission and also on the judgment of the court.

"Why didn't they give me my medicine right away, instead of making me wait," he exclaimed bitterly as he was led to the county jail. "I did it, and I am willing to stand the consequences of my act.

"I want to say now that I am sane, and know what I am doing all the time. I am not a lunatic, and never was one."

Schrank offered no defense. Before the judgment of the court was pronounced he was asked if he had any statement to make.

"I have nothing to say," he said clearly.

While Judge Backus was reading the judgment, Schrank sat with bowed head. His fingers twitched nervously, but otherwise he gave no outward sign. As the deputy sheriffs led him away, he stopped and insisted upon shaking hands with each one of the five alienists.

Although Schrank was not called to the witness stand during the inquisition yesterday afternoon, District Attorney W. C. Zabel introduced testimony to show Schrank's every movement in Milwaukee, from the time he arrived until the time he shot Col. Roosevelt.

This testimony tended to show that Schrank "filled up" on beer just before he committed the act, although each of the witnesses insisted that he was not intoxicated at the time he did the shooting. One policeman said that he was dazed, but was not intoxicated.

The testimony showed that Schrank spent the early part of the evening he shot Col. Roosevelt in the saloon of Herman Rollfink, 215 Third street, where he posed as a newspaper man "out on an investigating trip."

"Schrank came into the saloon at 3 o'clock in the afternoon and drank five or six beers," testified Paul Thume, a bartender. "He told me he was a newspaper man, and to prove it, he pointed to the newspapers in his pockets.

"We got to talking, and I told him I was going out west to earn some money. He advised me to go south to make money. He wanted a place to room, but when I recommended a room for \$1 a day, he kicked. Said he was willing to pay 75 cents.

"He came in again at 7 o'clock in the evening and we talked some more. He then asked the bar musicians to play some song, something with stripes in it, and then he bought each one a drink."

For the first time during the hearing, Schrank smiled. It started in a broad smile, and then extended until it covered his entire face. It developed that he asked the musicians to play the "Star Spangled Banner," which the bartender described as a song having "stripes" in it.

Schrank left the saloon only a few minutes before he did the shooting, after having again treated all to drinks.

The testimony of the barkeeper was substantiated by two musicians, Frank Galk and James Crawford, who said that Schrank danced around while they were playing.

Herman Rollfink told how he jumped on Schrank after the shooting and blocked the door to the kitchen in the hotel after Schrank had been carried in there.

Capt. Alfred O. Girard said:

"I saw Schrank in the crowd just as I was getting into Col. Roosevelt's automobile. I saw him as he raised the gun up between two men. I saw the flash, and almost simultaneously, I sprang upon him. After taking him into the hotel, we searched him, but found no other weapons."

Three policemen were placed on the stand as witnesses, and each one insisted that he was not detailed to service there, but had been attracted to the spot by the crowd.

This tended to show that Col. Roosevelt had no police protection while he was in Milwaukee.

Robert M. Lenten, clerk at the Argyle hotel, recognized Schrank as the guest who signed his name as Albert Ross.

"He came to the hotel about 10:15 Sunday night and I assigned him to room No. 1," he said. "He did not act unusual, and we talked as I showed him to his room. The room is right above the Milwaukee river, so I told him he had better keep away from the window, if he didn't want to fall into the 'Wabash.' That's the name we give to the river."

This struck Schrank as funny and he laughed again.

The report of the alienists was filed with the court just before 10 o'clock in the morning. It included fifty pages of typewritten matter, and its reading consumed nearly two hours. After the report was read, the alienists were placed on the stand and questioned by the district attorney.

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Judge August C. Backus.

Schrank listened to the reading of the report without the slightest sign of interest, until the clerk read the findings pronouncing him insane.

Schrank was taken to the Northern Hospital for the Insane, Oshkosh, by Deputy Sheriff Richard Muldenhauer and Fred Becker, bookkeeper in the sheriffs office, on the morning of November 25, at 11 o'clock.

The three left the sheriffs office in an automobile shortly before 11 o'clock and arrived at the Chicago & Northwestern depot, Milwaukee, a few minutes before train time.

Before leaving the jail Schrank asked for the sheriff and thanked him for his kindness during his confinement in the county jail. He also shook hands

with Jailer Adam Roth and deputies who have been with him during the trial.

Schrank's duties at the Northern Hospital for the Insane and are light and remain so until the physicians of the hospital have had ample time to observe him.

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CHAPTER XI.

SHOWS REPENTANCE BUT ONCE.

Although Schrank's bail finally was fixed at \$15,000, bail would not have been accepted. This was announced by District Attorney Zabel. One of the several reasons for raising the bail was that motion picture men had planned to pay Schrank's bail and secure his release long enough to once again go through the shooting for the purpose of making a motion picture film of the event.

"I absolutely refused to sanction such a thing," said the district attorney. "It is bad enough to have it happen once without perpetuating the deed by enacting it once again for the motion picture men.

"I do not begrudge the earning of the motion picture men. What I object to is the demoralizing effect such a picture film would have. It would tend to make a hero out of this man, and I don't propose that the young shall be allowed to worship him as a hero.

"I understand, however, that a motion picture concern, when it found how we had frustrated its attempts to secure an actual picture of Schrank actually reproduced a scene of taking Schrank from the county jail to the city hall by palming off another man who resembles Schrank.

"In order to reproduce a scene of taking him from the jail, they picked out a building that resembled the jail, the Ivanhoe temple. They reproduced Schrank emerging from the 'jail' between two bogus deputy sheriffs. Later

some one told me the same performance was repeated at the city hall to convey the impression that the would-be slayer was being taken into the city hall and up to the courtrooms."

During the time Schrank was confined in jail he showed signs of repentance but once, that was on Sunday, October 24, when religious services were conducted in the jail.

The Rev. Mr. Cavanam, a traveling evangelist, started the services shortly after 10 o'clock. Schrank, who a week before refused to attend services conducted by Christian Endeavorers, was one of the first to appear when a hymn was started.

At the close of the sermon Schrank turned away and walked to his cell with head bowed. He entered the cell and fell on his knees alongside his cot. Several of the prisoners who had been walking up and down the corridor stopped in amazement on seeing Schrank on his knees, but quietly walked away until he had finished.

When Miss Alice Evans, a soloist, sang a song, Schrank reappeared, and the prisoners noticed a happy look on his face which had not been visible before during his imprisonment. After the religious people had left the jail Schrank mingled more than had been his wont with the other prisoners, and seemed to be in high spirits.

When Gustave Struber delivered an address to the prisoners in German Schrank appeared to be one of the most attentive hearers, and shook hands with the speaker before he left the jail.

There is nothing about Schrank which portrays the human fiend.

On the contrary, he is a very ordinary type. There are hundreds of thousands men of his very type, and who are peaceable citizens.

The only way that Schrank differs from other men is in mind. He undoubtedly is a degenerate possessing a depraved and diseased mind, but

there is nothing in his physical make-up that would brand him as such.

Police Chief John T. Janssen, student of human nature, penetratingly studied and measured the man's features for hours during examinations, and arrived at the conclusion that the man was suffering from a condition of mind known as paranoia, pronounced the most dangerous form of insanity.

This mental disease makes a man a monomaniac. He is perfectly sane, except upon one subject, which controls him and pushes him forward, even in some cases, to murder.

In telling of his crime, there was nothing defiant about Schrank. He displayed no bravado. He told everything in a frank tone of voice—too frank, almost, as it raised the suspicion that probably Schrank was not a mad man.

There is nothing about him that would cause any passer-by to glance at Schrank twice. And his face is the most uninteresting part of him.

His face is fat and round—moon-shaped. His eyes are placed wide apart, but this effect is lost through ptosis, a species of paralysis of the eyelids, which gives the eyes a half closed appearance, and is responsible for the sleepy look in his face. It affects one eye more than the other and is responsible for that squint which has been designated as "a murderous squint" by sensationalists.

His nose is rather large and prominent. Continued application of the handkerchief has caused it to turn almost sharply to the left.

His weak mouth finishes off what would otherwise be a fairly good face. Cover mouth and chin and one will say that he has the strong face of the ordinary American workingman. His lips, for the most part, are closed, but in an irregular line, giving the idea that his jaws are hanging loosely.

Altogether, he is not a repulsive looking man. Merely a weak looking man. Laughs and grins come readily during his conversations.

The only remarkable feature about him is his knowledge of American history and politics. He is able to talk intelligently upon modern political questions, showing that he is a great reader along these lines.

The more one looks at him and studies him, the more one wonders what it is that could have pressed him forward to commit such a deed.

Nothing explains his weak character more than his hesitancy to fire the shot at Chattanooga. He had traveled miles to do it, and at the last minute his courage oozed out. The same thing happened in Chicago. He stood at Hotel La Salle with murder in his heart, but hesitated until it was too late.

And when he struck Milwaukee, he acted just like a boy afraid to coast down a big hill, who, finally impelled by the taunts of his comrades, closes his eyes and starts.

Look down through history and you find that the most atrocious crimes were committed by weak persons of the same caliber as John Flammang Schrank.

CHAPTER XII.

SCHRANK BEFORE CHIEF.

John Flammang Schrank was taken to the central police station, Milwaukee, immediately upon his arrest in front of the Hotel Gilpatrick. Under direction of Chief John T. Janssen, of the Milwaukee police department, the following examination of Schrank was conducted:

Chief. What is your name?

A. Do I have to tell that tonight, sir?

Q. Yes.

A. I have to?

Q. Yes.

A. I have given the man below the promise I will do that tomorrow, tell him all I know.

Q. Well, there is no reason for you to do that tomorrow, if you do it this evening it will facilitate matters.

A. I suppose I will inconvenience someone by not telling.

Q. Yes, you are helping a good deal by telling.

A. Well, I come from New York.

Q. What is your name?

A. John Schrank.

Q. When did you come here from New York?

A. I left New York on the twenty-first of September and I left for Charleston and I left my grip there in the Hotel Mosely; from Charleston to Augusta and from there to Atlanta and from Atlanta I think to Birmingham and over to Chattanooga, and from Chattanooga I went to Nashville and then to Evansville, and then to Louisville, and then to Chicago, and from Chicago here, and I arrived here Sunday at one o'clock.

Q. Why did you go to all those places?

A. Because I wanted to meet that man.

Q. What man?

A. Theodore Roosevelt.

Q. How long have you lived in New York?

A. About twenty-five years.

Q. What is your business?

A. Well, I am not doing anything now, I have been in the liquor business.

Q. Where?

A. In New York.

Q. What place?

A. Tenth street.

Q. Give us the number please?

A. Three hundred seventy, East Tenth street, between avenues B and C; I have been with my uncle; my uncle's name is Flammang.

Q. Are you a married man?

A. No, sir.

Q. How long have you been in the liquor business?

A. Well, ever since I was a boy. My folks were in business the time I come over here and I was twelve years old then.

Q. How old are you now?

A. Thirty-six.

Q. Well, what object did you have in following around and trying to meet Theodore Roosevelt?

A. Well, because I have been reading history and following up history and I have seen that this man Roosevelt is trying to break one of the old established traditions of the country, calling it a third termer, which he has no right to; he can create a third party and create all the offices, but to nominate himself it was absolutely out of the way and I think today that it is absolutely unnecessary to establish now and have the third tradition to exist and not to be violated by anybody.

Q. Well, what did you have in mind to do when you went around in these different places?

A. I had in mind to meet him and he escaped me every time; he escaped me in Atlanta and Chattanooga.

Q. He escaped what?

A. He has not come the way I expected, he did not come out the way I expected; if he goes in a hall today and speaks in a hall and he come in this way or that way he goes out a different way and the man got away.

Q. What did he escape from?

A. From the places I wanted to meet him?

Q. Why did you want to meet him?

A. Because I wanted to put him out of the way. A man that wants a third term has no right to live.

Q. That is, you wanted to kill him?

A. I did.

Q. Have you any other reason in wanting to kill him?

A. I have.

Q. What is that?

A. I had a dream several years ago that Mr. McKinley appeared to me and he told me that Mr. Roosevelt is practically his real murderer and not this here Czolgosz, or whatever his name was, Mr. Roosevelt is practically the man that has been the real murderer of President McKinley in order to get the presidency of the United States, because the way things were that time he was not supposed to be a president; all the leaders did not want him, that's the reason they give him the vice-presidency, which is political suicide; and that's what I am sore about, to think Mr. McKinley appeared to me in a dream and said, "this is my murderer and nobody else."

Q. Did you speak with anybody in New York about this before you left?

A. No, sir.

Q. You made your mind up to this all yourself?

A. Yes, because I am alone, although I own property in New York.

Q. What property?

A. I own property in four hundred thirty-three East Eighty-first street.

Q. What does it consist of?

A. It consists of an apartment house with ten tenants; it's estimated at twenty-five thousand dollars.

Q. Did you attend any political meetings in New York before you left?

A. I attended several, yes, sir; ever since I was coming across the country; I had political meetings in Evansville, Indiana, of the three political parties.

Q. Who furnished you with the funds that you needed to travel around the country?

A. I beg your pardon, I was just telling you I have property there and had the money.

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Winifred C. Zabel, District Attorney
Milwaukee County.

Q. Have you any money now?

A. No, sir.

Q. When did you run out?

A. I just took this three hundred dollars to go around and all I saved up is one hundred forty dollars.

Q. Where did you leave that?

A. I left that here.

Q. Well, why did you come here; oh, this was yesterday?

A. I came here Sunday at one o'clock in order to find out in the city where he was going to speak and where I could meet him.

Q. You never were married?

A. No, sir.

Q. You said a minute ago you weren't doing anything now; when did you go out of business?

A. I am out of business going on two years, living off the income of the property.

Q. And that is sufficient to keep you?

A. Sufficient to keep me as long as I keep in my limits.

Q. How much is the property worth?

A. Well, it has been worth for twenty-five, supposed to be worth at twenty-five and taxed at twenty-five thousand.

Q. How much is the income you derive from it?

A. Around eight hundred dollars a year.

Q. And do you live with your brother when you are at home?

A. I have no brother. I have been living for the past seven months in one hundred fifty-six Canal street, New York, that's a hotel.

Q. What is the name of the hotel?

A. White House they call it; the owner of the hotel is Jost, Gustav, Gustav Jost.

Q. How long you been living there?

A. I think seven months.

Q. Is there a bar connected with the place?

A. Oh, indeed.

Q. Have you been drinking lately?

A. No, sir; no, sir; that ain't my habit.

Q. What is your favorite drink when you do?

A. Beer.

Q. If you had your mind set upon shooting Mr. Roosevelt, how does it come that you had to follow him to so many places before you came here?

A. As I have been telling you a minute ago, he escaped me many a time, he escaped me in Chicago.

Q. By leaving the place where he spoke by some other door?

A. By some other door and I was watching and he didn't come out that way and it was advertised by the papers he would come on the Northwestern and instead he come on the St. Paul.

Q. Where did you buy the revolver?

A. In New York.

Q. When?

A. On Saturday the twenty-first.

Q. And you bought it with the object in view of shooting Mr. Roosevelt?

A. Yes, sir; exactly.

Q. Where did you buy it?

A. I could not really tell you where I bought it, in Broadway, I know it's below Canal street, but I could not tell you the name.

Q. What's the make?

A. Colt; thirty-eight caliber; it's where you turn the barrel to the side way, it's none of those you open this way.

Q. What kind of place, a hardware store or gun shop?

A. No, sir; nothing but guns; I paid fourteen dollars for it.

Q. Did you ever discuss this matter with any other person of what you intended to do?

A. No, sir; no, sir.

Q. You didn't speak to anyone?

A. I discussed as far as the political discussion is concerned, but I never give anybody a hint that I was going to do this, that was all my own make-up.

Q. You didn't tell anybody why you bought the revolver?

A. No, sir; nobody knew I bought a revolver.

Q. In this dream that you had, McKinley told you that it wasn't Czolgosz that killed McKinley, but it was Roosevelt?

A. Well, he says in this way, "this is my murderer."

Q. Did you ever meet Czolgosz or know him in his life-time?

A. No, sir; no, sir; how could I. I have been all that time since I have been here in New York.

Q. Did you know John Most when he was alive?

A. No, sir.

Q. Did you ever hear him talk?

A. No, sir.

Q. Did you ever hear Emma Goldman?

A. No, sir; I am not an anarchist or socialist or democrat or republican; I just took up the thing the way I thought it was best to do.

Q. You are not a member of any party?

A. No, sir; I thought there should be an example of the third term if it should exist any longer; Mr. Grant was refused and he was satisfied; this man was refused and he is not satisfied; it's gone beyond limits; if he keeps on doing this after election, he can't possibly carry a solid western state; the next thing we will have is a Civil War, because he will say the scoundrels and thieves and crooks stole my nomination and now they will steal my election, and they will take up arms in all the western states; we are facing a civil war just to keep him in a third term, in an illegitimate place.

Q. Where did you get all this idea from?

A. I have been reading history all the time.

Q. You don't find that anywhere in history that they stole his nomination and going to steal his election?

A. I don't have to read that in history; you must know in the Chicago convention it was in every paper, everybody could read it.

Q. You read it in the paper then?

A. He says it every time he speaks.

Q. What paper do you read at home in New York?

A. The World.

Q. Is that the only paper you read?

A. I read German papers and every paper I got, but the regular paper is the World.

Q. What country do you hail from?

A. Germany.

Q. What part of Germany?

A. Bavaria.

Q. What is the name of the place?

A. Two hours from Munich; Munich is the capital of Bavaria.

Q. What is the name of the place?

A. Erding.

Q. What schooling did you have?

A. Well, I have attended school in the old country and I attended night school in New York for about four winters; that's all the schooling I had.

Q. You haven't a very good education then?

A. Indeed I ain't.

Q. Have you always enjoyed good health?

A. Yes, sir; I am a healthy, sane man, never been sick.

Q. Never been sick?

A. No, sir.

Q. Ever been sick within the last year?

A. No, sir.

Q. Well, do you believe that that's a sane act that you committed this evening?

A. I believe that is my duty as a citizen to do, it's the duty of every citizen to do so.

Q. Well, how did you happen to get the idea that it was your duty among all the people that live in the United States?

A. I don't know; I thought maybe somebody else might do it before I got there.

Q. And you spoke to no one about your intention on all the route you took concerning this, nobody?

A. No, sir; nobody.

Q. Are you familiar with the law in New York with reference to carrying concealed weapons?

A. Yes, sir.

Q. What is it?

A. I know when I bought the gun the man told me, "I have to take that one screw out in order to make the trigger ineffective" and I told him not to do so because I was going to leave town the very same day, which I did.

Q. He didn't take it out?

A. No, sir; he didn't do it; I showed him the ticket for the steamship that I was going south the very same day and he said as long as I was going out the law didn't fit that.

Q. Where were you going to?

A. To Charleston.

Q. On the steamship to Charleston?

A. Yes, sir; I wanted to go from New York to New Orleans because I thought he was going to speak in New Orleans and I thought I would be too long on the road and he would be gone before I got there and I thought I would go and get him at Atlanta.

Q. What hotel did Mr. Roosevelt stop at in Charleston?

A. Sir?

Q. What hotel?

A. He hasn't been at Charleston; I went to Augusta and from Augusta to Atlanta.

Q. What hotel did he stop at at Atlanta?

A. I really could not tell you, I don't know; I think I left the memorandum downstairs where I stopped, but I don't think I could tell you where he

stopped.

Q. What hotel did he stop at at Chicago?

A. At Chicago, at Chicago he stopped, stopped at La Salle.

Q. Where did you stop?

A. I stopped at Jackson, Hotel Jackson.

Q. Where is he going to after he leaves here?

A. The way I read in the paper this morning he is going back to Chicago and from there to Indianapolis and from there to Louisville.

Q. What name did you register under at Augusta?

A. Walter Ross.

Q. What name at Atlanta?

A. All the way except Charleston I give my real name; the only time I give the right name is in Charleston where I left my grip; I saw it was a respectable house and I didn't have to stay away more than a week and now I have been away more than three weeks.

Q. Have you a check for it?

A. No, sir; I have no check; it is not a hotel, it is a boarding-house.

Q. What street is it on?

A. It is I believe on Meading street near Main.

Q. What place did you stop at since you have been in this city?

A. In this city I stopped here, let me see, what do they call that hotel again, right here on Wabash, small hotel.

Q. Blatz?

A. No, sir.

Q. St. Charles?

A. No, sir; small place, Argyle, that's on Third street.

Q. Did you have any baggage when you came here?

A. No, sir; I left all the baggage at Charleston.

Q. When you registered did they ask you whether you had any baggage?

A. No, sir; nobody asked me.

Q. Did you pay in advance?

A. I generally never stayed any longer than one or two nights and for every night I pay a dollar for my room; nobody asked me about baggage.

Q. You paid that after you registered at the Argyle?

A. Yes, sir.

Q. What room did you occupy?

A. In the Argyle I guess it was number one, right toward the Wabash River.

Q. Why do you call it the Wabash River?

A. Because the man told me it was; he said, "the only room I have left is the one facing the Wabash River."

Q. What is the name of this city?

A. This city, it's supposed to be Milwaukee; I feel very sorry that the trouble has happened in this city; I suppose I have made considerable trouble for you people and for the citizens of the town.

Q. Have you any relatives living in this country?

A. No, sir.

Q. Any in Germany?

A. Yes, sir; I think I have, I haven't been in correspondence for quite a while, I don't know if they are well.

Q. What relatives have you?

A. I have a mother living there.

Q. Mother?

A. Yes, brother and sister.

Q. At Erding?

A. No, they are at Tyrol.

Q. Switzerland?

A. Tyrol that is not Switzerland, that is Bavarian Tyrol.

Q. Have you ever been in trouble before?

A. No, sir; not that I remember.

Q. Ever been arrested for anything?

A. Not in my life.

Q. Have you ever been committed to an institution of any kind?

A. No, sir; never, I have always stayed out of trouble, I have never been in any trouble whatever, and this trouble I committed myself, now I am contented I did.

Q. You are not a bit sorry?

A. No, sir. You may look up the records of all New York police headquarters, because I have never been there, I have never been arrested there.

Q. What did you say your name was?

A. John Schrank.

Q. Did you tell anybody that you were going to leave your baggage there?

A. I told them people I was going to stay away for about three days.

Q. Did you make any arrangement for them to send it in case you wrote for it?

A. No, sir; I stopped there two days and paid eight dollars in advance for a week's board, and I dressed up and went away and I told the people I might be back in three days and of course ever since then they didn't hear anything of me and I guess if they do hear and I can communicate they will give it over and all perhaps they will charge is the storage.

Q. Why did you tell them you were going to be gone three days?

A. I didn't think it would take longer than three days when I would be away.

Q. Then you thought you would go back?

A. I thought I would be arrested, I couldn't tell.

Q. What does your grip contain?

A. Nothing but a suit of clothes and underwear and I got a deed to my property and as I told you the box where the gun is in and that's about all there is in.

Q. Are you a full citizen?

A. Sir?

Q. Are you a full citizen?

A. What does that mean?

Q. Got your second papers?

A. I never had my first, I come over here a minor; I got my papers when I was twenty-one, I think my paper reads July twenty-third, ninety-seven; I think that's what it reads.

Q. When did you first begin to think about this?

A. I began to think of it after the Chicago convention.

Q. What caused you to think of it?

A. I thought on account of calling a new convention and starting the third party that makes anybody think; what's the use of being a citizen if you don't take any interest in the politics of our country?

Q. What did you read in the paper that directed your mind to Mr. Roosevelt?

A. You read a lot of things in the papers and especially in the New York World; the New York World practically come out that the country is in

danger if he has the chair again.

Q. Did you read Harper's Weekly?

A. Harper's I don't read, no, sir.

Q. Did they say anything in particular that centered your attention on this act?

A. No, sir; not at all, perhaps a million people read it and didn't think anything and I just happened to read the matter over, I was interested from there.

Q. Editorial page?

A. Editorial page.

Q. You remember any particular editorial?

A. No, sir; I do not remember. I could not repeat it.

Q. Well, did you read anything else in any other paper except the World that made any impression on you of Mr. Roosevelt?

A. Well, in fact I have been following up all papers of the political views and I have been taking out the World as the right thing, she is right the way she talks and one paper I read, the New York Herald, and she never speaks about Theodore Roosevelt but the third term and she don't mention his name, only the third term.

Q. Did you ever apply for any position in the United States Government?

A. No, sir.

Q. Did you know Mr. Roosevelt when he was Police Commissioner?

A. I did, indeed I did. In those days we was and my folks were in the liquor business and they closed us up like the other people and I didn't feel any sympathy with them.

Q. Which particular place did he close up?

A. What do you mean?

Q. You say he closed up some place of your people, which one?

A. He closed up all places.

Q. Were you in the liquor business?

A. I was with my folks.

Q. With whom?

A. My uncle.

Q. He closed your uncle?

A. He closed everything and there was about two months there was nothing open and a policeman stationed at every door.

Q. That was after midnight and on Sunday?

A. It was not closed up on Sunday but during the week, I am not talking about the Sunday Law.

Q. And you thought that was not right?

A. Anybody encroaches on your right you think it is not right.

Q. How long ago was that?

A. Eighty-six he ran for Mayor against Henry George, I think it was nine-three or ninety-four.

Q. Did the fact of that act of his, of closing you up on Sunday, have anything to do with what you done tonight?

A. No, sir.

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Dr. Joseph Colt Bloodgood,
Johns Hopkins University.

Q. You never felt kindly toward him?

A. Yes, sir; I did until he started a third party.

Q. You thought he was infringing on your right?

A. Well, on everybody's right, every citizen's right, he had no right to do that; he could start a party and nominate every officer in there, but not put himself on for a third term, that was no way to do.

Q. Did you vote for him in nineteen hundred four or for Parker?

A. I voted Democratic.

Q. Parker?

A. Yes, sir.

Q. You a member of Tammany?

A. No, I am not a member, I am not a member of any political party; when they arrested me one man called me a Socialist.

Q. Did you oppose him in nineteen hundred four?

A. I voted against him; I never expected the man to draw as big a majority as he did.

Q. Did you make speeches against him?

A. No, sir.

Q. Talk against him?

A. The same as anybody else.

Q. You thought he wasn't liberal?

A. He was not liberal.

Q. You didn't like his attitude, you were against him?

A. Yes, sir.

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CHAPTER XIII.

WITNESSES OF THE SHOOTING.

The following statements of Wheeler P. Bloodgood, representing the Progressive National committee; F. E. Davidson, Milwaukee county chairman of the Progressive party, Capt. A. O. Girard and others set forth arrangements for Col. Roosevelt's speech in the Auditorium on the night of October 14, 1912, and present many facts concerning the shooting of Col. Roosevelt not before made public.

These statements were made to District Attorney W. C. Zabel during the examination of Schrank conducted by him on Oct. 16.

The purpose of this hearing was to ascertain if possible whether others were with Schrank in the plot to kill the ex-president.

While the examination developed a second man who was very anxious to get close to Col. Roosevelt during his stay in the Gilpatrick, no other evidence concerning this second man's connection with the shooting was developed.

The following statement by Attorney Wheeler P. Bloodgood was made on Oct. 16 to District Attorney Zabel:

As the acting national committee man of the Progressive party in Wisconsin, I called a meeting of the Executive Committee in connection with the address to be made by Col. Roosevelt in Milwaukee, Oct. 14. By direction of the committee, F. E. Davidson, county chairman of Milwaukee County of the Progressive party, was put in charge of arrangements for the meeting, and was directed to lease the main hall of the Auditorium in Milwaukee for the evening of Oct. 14.

After Mr. Davidson, who accompanied Mr. Norman L. Baker, state chairman, in engaging the hall and making other arrangements, had made his report, I discussed with him the question of proper police protection for Col. Roosevelt and his party while they were in Milwaukee, and Mr. Davidson informed me that he and Mr. Paul Heyl, whom he had appointed sergeant-at-arms, had taken this matter up with the police department of Milwaukee.

I went to Chicago on the morning of Oct. 14th, accompanied by H. E. Miles and others. Col. Roosevelt and his party came to Milwaukee. On the train from Chicago to Milwaukee I advised Colonel Lyon, of Texas, who was in charge of Col. Roosevelt's person, that we would be met at the depot in Milwaukee by Mr. Davidson, who was in charge of the arrangements for the meeting, and by others, and that they would request that Col. Roosevelt have his supper, at least, at the Hotel Gilpatrick. I advised them that Mr. Davidson had made all of the arrangements in Milwaukee for the meeting of the Colonel, and his care, between the time of his reaching the city and the holding of the meeting at the Auditorium. Col. Lyon and O. K. Davis strongly objected to Col. Roosevelt leaving his car, and said it was there that he should have his dinner and go directly from the car to the Auditorium.

When the Colonel's car reached Racine, Capt. Girard got on the train and spoke to me in reference to his acting as the Colonel's bodyguard while he was in Milwaukee. My recollection is that the Colonel was in the back part of the car when the captain got on board, and he at once recognized the captain and spoke to him as though he were greeting an old friend. Then

Capt. Girard had a talk with Col. Lyon and Mr. O. K. Davis, and it was understood that the captain would be with the Colonel during the whole time he was in Milwaukee, and it was understood that he was in charge of the Colonel's person.

When the train reached Milwaukee, Mr. Davidson got on the rear platform and was introduced by me to Col. Roosevelt, and he at once said to Col. Roosevelt:

"The boys are all anxious that you have your supper at the Hotel Gilpatrick, and we have made arrangements there so that you can rest. The hotel is not one of the best known hotels in Milwaukee, but it is a quiet and good place. The owner has been a great friend of the county committee and it would please us all very much if you would come."

The Colonel said to Mr. Davidson and to me that he had planned to stay in the car and go directly from the car to the Auditorium. As I recall it, Col. Lyon, O. K. Davis, Dr. S. L. Terrell spoke up and said:

"That is the arrangement, and that is what will have to be done."

Then the Colonel turned to Mr. Davidson and wanted to know whether these arrangements had been made, and whether the boys would be disappointed if he did not do what had been expected. Mr. Davidson said:

"We do not want to do anything that will inconvenience you, but I think they will be disappointed."

Whereupon the Colonel saluted and said:

"I am going."

The Doctor went back to get the Colonel's overcoat, and as soon as he put on his overcoat the Colonel, accompanied by Mr. Davidson, Capt. Girard upon one side and Col. Lyon on the other, went through the line of the marching club and got into the automobile. Col. Lyon requested of me

that the party be made a small one and not have a great many automobiles. They went directly to the Gilpatrick. At about twenty minutes to eight I went to the hotel with H. E. Miles, Frank M. Hoyt, Congressman H. A. Cooper, of Racine, Prof. Merriman, of Chicago, and others. When I reached the lobby of the hotel I talked with Capt. Girard and told him that I had another machine there and that I found there was only one machine in front of the hotel; that Mr. Moss, Mr. Taylor and I thought that machine should be used, and that I, with the others who had accompanied me, would walk from the hotel to the Auditorium, my understanding being that Col. Lyon did not want a large crowd to accompany Col. Roosevelt to the Auditorium. Capt. Girard told me that he understood that the party would be down and ready to start promptly, to reach the Auditorium at a few minutes after eight. Mr. Moss and Mr. Taylor were in the auto in which the Colonel was to drive from the hotel to the Auditorium. The machine that I had came through the crowd and got right close to Mr. Moss' and Mr. Taylor's auto.

I went immediately to the Auditorium and went in at the State Street entrance and went on the platform. Mr. Miles, state treasurer of the party, had called together Mr. Heyl, Mr. Davidson and some of the sergeants-at-arms and was making arrangements to take up a collection from the audience. Mr. Miles had started to go on the platform to announce this collection and the sergeants-at-arms proceeded to their various places to get instructions, and I went to the stage door.

Col. Roosevelt came and I knew nothing whatever of what had occurred; while I noticed the party accompanying him seemed excited. The Colonel showed no excitement at all, and I said to him:

"Wait a few minutes back of the stage while Mr. Miles takes up the collection. Mr. Donald Ferguson desires to have it."

The Colonel said:

"Mr. Bloodgood, I have been shot and there is a bullet somewhere in my body; the important thing is that nothing should be said or done to cause a

panic in the audience. I intend to deliver my address, or at least a part of it."

Col. Roosevelt then went back of the stage and requested us to go to the front and prevent any one saying anything. He said:

"It will only be a minute before I will be out."

I also heard the Colonel tell Mr. Cochems to say or do nothing that would frighten the people.

The appearance of the Colonel on the platform and the circumstances connected with it have been fully described. Col. Lyon, just before the address of Col. Roosevelt was made, suggested to me that it was very important that the crowd should not press around Col. Roosevelt and to make arrangements to prevent that. I went back and found three men who said they were detectives, and I asked them to come on the stage and to make arrangements so as to prevent the crowd from pressing around Col. Roosevelt. Mr. Cochems, in the mean time, had gone in front of Col. Roosevelt so as to catch him if he should fall, and had made all arrangements to prevent the crowd from rushing on the platform after the address was finished.

Col. Roosevelt, after the address, walked through the aisle, which was kept open from the stage door, to the automobile; as he got into the automobile he shook my hand and said that he wanted it made emphatic that he blamed no one; that the city authorities were not to blame, nor was any blame to be attached to any one that had charge of this meeting; that it was an accident and could not have been prevented; that it might have happened anywhere; and repeated the importance of making that clear, and that that was his feeling.

That was just before he left in the auto for the Emergency hospital.

The following statement was made by Capt. A. O. Girard, who was in the automobile when Col. Roosevelt was shot. The statement was made in the office of the district attorney on Oct. 16, 1912.

I was asked by the secretary of the Progressive State Central committee to go to Racine and meet the Colonel, having been with him in his department and been his body guard before, and take some papers down. The Colonel requested that I stay with him for the evening and after we got at the hotel I stood in front of the door so he wouldn't be disturbed, and also at the dining room door.

While sitting in the dining room door there was a slight, dark man who said he came there especially from New York to see the Colonel, and was very persistent and wanted to open the dining room door and see him at the table. I finally forced him away. He was sallow complexioned, 28 or 30 years of age, I imagine, had a dark overcoat on, not so extra well dressed, smooth face. I noticed his eyes particularly—they were rather shifty—and he was very, very persistent in getting to the dining room. He was a man of about five feet ten; this happened at 7 o'clock at the Gilpatrick dining room.

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Dr. R. G. Sayle,
Milwaukee.

I saw him after that after I had told him to go away; he got something to smoke at the cigar stand and then went out. I did not see him after that, things happened so rapidly.

The Colonel went upstairs and got his hat and coat on and came down. I cleared the way going out with Sergeant Murray, and I told the fellows on the other side of the automobile to get back; they were jammed up against the automobile; the Colonel started to get into the automobile.

Just as I put my foot on the step of the car, I saw this man raise his gun, stick it between two fellows' heads at the full extent of his arm, and Mr. Taylor can tell you the rest.

I started to get into the machine from the sidewalk, and Mr. Moss sat up on the seat to get out of my way, and Mr. Taylor laid back, as I remember it, to give him room; after he was laid back, I had my right foot on top of the car door. That is as far as I got into the machine. I saw this man extend his hand with this gun between two other men's heads. He reached as far as he could with it. The end of that gun was probably six feet raised to the level of his eye; he took a good aim. Everybody was watching the Colonel.

The moment I saw that arm go up I remember distinctly the flourishing of the gun almost in my face, and at the same time somebody else jumped from the other end of the machine. We were all on the ground together and then Sergeant Murray came up and Murray and I took the man over to the Colonel's seat, Murray having him by the arm and I by the throat. Mr. Martin had him by the other arm.

The Colonel said, "Bring him to me, bring him here," and we bent his head back so the Colonel could see him. Then they began to shout, "Lynch him, kill him."

The Colonel said, "Do not hurt him."

Before that, on the ground, the fellow tried to kick me and made it more difficult for us to get the man, and as a result I got most of the kicks.

After we took him to the Colonel, Sergeant Murray and I had a difficult thing to get that man away. I shouted to Murray: "Into the kitchen."

We fought our way through the dining room into the kitchen with two or three hundred fellows. Murray left the man in my care until he called the patrol wagon. Then I started for the Auditorium. After we went to the kitchen I searched the man again for possible other weapons. I did not find anything. He said: "My gun is gone; your people took it away from me."

I forced him down into a chair and held him down until the police got back.

(Mr. Zabel)—You accompanied the Colonel from the train to the hotel?

(Answer)—Yes.

(Mr. Zabel)—Did you notice the police protection?

(Answer)—They did not have enough men to keep the crowd away from the side of the Colonel. I think it was one of the ex-President's party who walked along side of the ex-President. When I got to the hotel I was of course pretty busy with the Colonel, and Sergeant Murray was there. Someone asked me to see if he could not get an officer to go with the carriage to the Auditorium and walk on the side the ex-President was. I called the Sergeant and he said he would find a man for me there. As to how many men were there, I do not remember. I know Sergeant Murray was there and I saw one other man.

(Mr. Zabel)—Any policeman assisting you and the sergeant in making the arrest of this fellow?

(Answer)—There was another officer there when we started to the hotel trying to keep the crowd back.

Francis E. Davidson, chairman of the Milwaukee County Progressive committee, made the following statements to District Attorney Zabel on Oct. 16:

Mr. Bloodgood called me over to his office and said that I was to take charge of the Roosevelt meeting in the Auditorium. Among other duties, I was to inform the police department and ask for protection for Col. Roosevelt while he was in the city. I went to the office of the chief of police with Paul Heyl, sergeant-at-arms, two days before the meeting. The chief of police was not in, but I was sent to the inspector. We told him that we wanted police protection at the depot, on the streets and at the Hotel

Gilpatrick for Col. Roosevelt, which was promised. In going away I did not think that he attached enough importance to what I told him, and I went back and asked him on account of conditions in the country I wanted extra police protection for the Colonel, and was informed that he had taken care of Col. Roosevelt before.

(Mr. Zabel)—When this car arrived in Milwaukee, what police protection was visible to you?

(Answer)—I think there were two or three policemen down at the station in uniform.

(Mr. Zabel)—Were there any plain clothes men that you recognized?

(Answer)—Not that I recognized.

(Mr. Zabel)—Are you familiar with them?

(Answer)—No.

(Mr. Zabel)—Where were they stationed?

(Answer)—One in front of the depot and one at the gate.

(Mr. Zabel)—Was the ex-President obliged to pass through the depot on his way out?

(Answer)—No, through the small gate.

I told Mr. Bloodgood that we had made arrangements which would prevent any one calling on Col. Roosevelt at the hotel, having a private room and also police protection.

(Mr. Zabel)—What protection did you notice when you came there?

(Answer)—I noticed a policeman at the door. There may have been plain clothes men.

The following statement was made to District Attorney Zabel on Oct. 16, by Thomas Taylor, who was in the automobile with Col. Roosevelt:

We had the honor of escorting the ex-President in our machine from the depot to the Gilpatrick. We left him there and we kept the machine in front of the main part of the hotel door all the time. While Mr. Moss was away I remained with the machine, and when he came back I went into the hotel.

As I came in, I asked where the Colonel was. They said he was in the dining room, and I talked to two or three of the committeemen there. After I got to one side there was a man about twenty-eight or thirty years of age, smooth face, fairly well dressed, who asked me if I could get him a ticket to the Auditorium.

I said, "Where are you from?" He said, "I am from New York." Well, I told him the tickets were all given out, and there was no way for him to get in unless he wanted to go immediately over to the hall and take chances with the rest.

The thing that struck me after that was that he did not go immediately over to the hall, but stood about talking. His appearance is just exactly as Capt. Girard described. He was a man that would weigh probably 145 pounds, five feet nine, probably nine and a half, smooth face, no emblems that I could see, but was very anxious about getting into that hall.

Soon after that another man came to me with the same request and wanted to know if I knew of any way he could get in. I told him the same story.

I said, "Where are you from, are you a stranger here?"

And he said: "I am from Ohio," but I do not recall what place.

I returned to the machine and had it all ready when the ex-President was seen coming down the stairs to the door. I turned on the power, opened the door and the Colonel came right along; Capt. Girard was right near him. Martin jumped into the machine first, and, turning his back, started to assist the ex-President. Capt. Girard stepped up, as he has described, and Henry F. Cochems had got in.

Just then, right to my side, I heard the very low report. I hunt a great deal and shoot, and the flash of a gun doesn't scare me but sets me instantly on my nerve.

Quick as a flash, I saw this man with his arm about so (indicating).

I was knocked down by Capt. Girard, and when I sprang to my knees Capt. Girard and Martin were on top of Schrank.

A dark man took Schrank's arm; he looked like a laborer. He grabbed him and seemed to be struggling with him. The laborer got hold of Schrank first; I think the captain was up as soon as any man.

I turned to the Colonel and he was just sitting in his seat. Henry F. Cochems put his arms around him. It was only for a second or two, and the Colonel rose up and said:

"Do not kill him; bring him here; bring him here."

He must have said that five or six times immediately after, and they brought the man back and bent his head back on the back of the machine. The ex-President looked into his eyes for a second or two and the ex-President shook his head, and then turned away. I turned to the ex-President and I said:

"Colonel, he hit you."

He said:

"He never touched me; he never touched me."

I said:

"You have a hole in your coat," and the Colonel put his hand to his side and said:

"He picked me; he picked me."

This did not scare him. Then he addressed the crowd and said:

"We are going to the hall; we are going to the hall; start the machine; go ahead; go on."

After we got up and turned on Wells street, we turned up about a block and a half and the doctor and some friend opened the front of Roosevelt's coat, and he turned then and saw the blood. Then he turned pale. That is the first time I saw him turn pale was when he saw that blood. Before we got to the Auditorium he had recovered as far as the paleness was concerned. He was immediately taken into a side room there.

(Mr. Zabel)—Did you have charge of taking the tickets at the Auditorium?

(Mr. Taylor)—I was one of the committee the same as the rest of the people that were around there with badges on; I had given out some tickets.

What strikes me as peculiar about this affair is that this man Schrank, claiming not to be familiar with the use of firearms, should be able to select the kind of revolver that was used, a 38-caliber Colt with a 44 frame, one of the most deadly weapons made.

I may explain that the frame being large enables the shooter to have a more deadly aim. The Colonel also remarked the same thing in regard to this weapon, 38-caliber, a 44 frame.

Col. Cecil Lyon held the gun up to us to look at, and it was an ugly looking weapon.

Reference: It will be noted was made by members of the Roosevelt party to a laboring man who struck Schrank's arm as he fired, and who was one of the men who struggled with Schrank immediately after the shot was fired. That man was Frank Buskowsky, 1140 Seventh avenue, Milwaukee. In an interview Buskowsky said:

"I was so excited when I realized that the man next to me had shot at Roosevelt that I felt like killing him, and I cried out at the top of my voice as I held him, 'Kill him, kill the d——n scoundrel.'

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John T. Janssen,
Chief of Police.

"The police must have thought that I meant Roosevelt, for when one of them came up to me he yelled, 'What in h——l is the matter with you?' and hustled me away.

"As I cannot speak good English, I could not explain that I had meant Schrank and not Roosevelt. I was so excited when the police took me away that way that I went immediately home.

"If I could have explained myself that patrolman would have heard something from me for the way he clubbed me on my head. My hat was smashed in.

"I came home, disgusted with the treatment I had received by the police. The next morning I read all about Martin capturing that man and it made me mad, for I was the first one to grab him and prevent him from shooting any more."

Buskowsky is a Bohemian and has been in America seven years, during which period he has been an enthusiastic supporter of the Bull Moose leader.

Affidavits corroborating what is set forth in statements presented were made by Donald Ferguson, of Goldfield, Nev.; Arthur W. Newhall, 812 State street, Milwaukee; Jacques R. Thill, 574 Jackson street, Milwaukee, and Sergeant Albert J. Murray, Milwaukee police department, and Abraham Cohen, 519 North avenue, Milwaukee.

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CHAPTER XIV.

A SECOND EXAMINATION.

Report of questions propounded by District Attorney Winifred C. Zabel, of Milwaukee county, and Wheeler P. Bloodgood, to, and answers given by, John Flammang Schrank, at the county jail, of the county of Milwaukee, Wis., in the presence of Sheriff Arnold, Donald Ferguson, Francis E. Davidson and others, commencing at 12:50 P.M. on the 16th day of October, 1912. Reported by Alfred O. Wilmot, court reporter, District court, Milwaukee county.

Mr. Zabel:

While you were living in New York what newspapers did you read?

A. I read the New York Herald and I read the New York World, and the New York Staats-Zeitung, a German paper.

Q. That is a German publication?

A. Yes, sir.

Q. Is that a morning paper?

A. Yes, sir; also evening edition.

Q. Did you read any of the Hearst publications?

A. No, sir.

Q. The New York American?

A. No, sir.

Q. New York Journal?

A. No, sir.

Q. What you read in the New York World and what is the other news——

A. Herald.

Q. And New York Herald did anything you read in those papers impress you in any way?

A. Well, it did in a way impress me, that means, I thought whatever I read in the paper was pretty much right, what the people were talking about this building of the new party and deserting the old party. You can read that in the newspapers and that is what I read and it must be right.

Mr. Bloodgood:

Q. Mr. Schrank, you remember I examined you at some length on Monday evening and you spoke of the New York Herald and New York World and the headlines that appeared in those papers, and that you have been reading them constantly, is that correct?

A. That is correct, yes, sir.

Mr. Zabel:

Q. Did you read those papers for the political items that were contained in them?

A. Well, in fact, not exactly for that. I read the papers the same as anybody else, and naturally things like those I took interest in every, and the items interested me in those articles.

Q. What headlines are still fresh in your recollection which you read? concerning political——

A. Oh, I could not just recall anything. Headlines doesn't amount to much. It is now and then perhaps, but it doesn't amount to much. It is just the item itself.

Q. Was there anything you read in those papers that gave you any distinct impression to kill Roosevelt?

A. No, sir; not at all. I cannot blame the papers whatsoever. I have done what I done on my own convictions.

Q. Well, were you not impressed by what you read in the New York papers as to the menace which Mr. Roosevelt would be to our nation?

A. No, sir; not by the papers, hardly. I thought my own opinion about that.

Q. Do you remember reading anything in those papers in which Mr. Roosevelt was described either as a tyrant or as a traitor?

A. Oh, no.

Q. Or his ingratitude or words to that effect?

A. No; there might have been a few criticisms that says I am It Or Me and I and that is about all, but that doesn't impress much on anybody.

Q. When you say that—— You started to say before that you were much opposed to Mr. Roosevelt deserting the old party and building up a new party—— What old party did you have in mind?

A. The Republican party.

Q. Were you interested in the Republican party?

A. No, sir; I was not interested.

Q. Ever vote the Republican ticket?

A. Yes, sir; I have several times.

Q. On National elections?

A. National elections.

Q. Ever vote for Mr. Roosevelt?

A. No.

Q. Municipal elections were you——

A. A democrat.

Q. Democrat for what particular reason?

A. Well, as long as we were in the liquor business there in New York it was almost natural that we should vote the Tammany rule because every liquor dealer needs protection.

Q. On account of what?

A. Account Sunday law, because we was selling Sundays beer that we could not sell unless you belonged to that organization. You will have the police after you all the time. I suppose you know that as well——

Q. Did you ever contribute?

A. Well, we had to contribute at times—yes, sir. There would be a different way to contribute.

Q. Did you ever give money to the organization?

A. No, not to the organization.

Q. Or to the police?

A. There is a different way of doing that. If you didn't do it willingly of course there would be a way. They will be around one of those nice Sundays and arrest you and naturally there will be two there and they will impress a charge against you in a manner that will get you out in case you paid them. I have been doing that several times, gave each one five dollar bill or ten dollar bill and they won't press the charge.

Q. This money was to be used for what purpose?

A. That I could not tell.

Q. The men that came around on that mission were they police officers or politicians?

A. Well, regular officers, specials, what takes these Sunday——

Sheriff Arnold:

Mr. Zabel, did anybody here send for a man named Moss?

Mr. Bloodgood:

Yes. Send him in.

Q. Did you ever contribute anything to the Republican campaign fund?

A. No, sir; I had no reason.

Q. Was ever any contribution solicited of you by Tammany Hall or by the Police?

A. No, sir.

Q. Now isn't it a fact that a good deal of your feeling against Roosevelt was created by what you read in the papers?

A. It was not created, no, sir.

Q. Well, was it to a large measure influential?

A. I could not just deny that it had some influence but not to be decisive.

Q. Not decisive.

A. No, sir.

Q. Didn't it make you feel angry and unfriendly?

A. Not any worse than what I was.

Q. Didn't make you feel any worse or more unfriendly?

A. No, sir.

Q. Toward Roosevelt?

Mr. Bloodgood:

Q. How long have you been reading the New York Herald?

A. Oh, I believe since I am able to read.

Q. And the World?

A. Also.

Q. Now you said the other evening that papers you principally read were those two—was that correct?

A. Correct.

Q. Now did you read them during August of this year. You were in New York then?

A. Yes, sir.

Q. And state what impressed you in particular—what you saw in the New York Herald in August—at about that time of the formation of the new progressive party in Chicago?

A. Well, in fact I cannot remember much. I could not be very much impressed by the New York Herald because the Herald is a very conservative paper. The Herald is not what they call the Yellow press and the only excuse the Herald had is simply to say, Well, the Third Termer, that is all.

Q. Now what in the New York World impressed you during that time?

A. From that time?

Q. During that time.

A. Well, as I have said before, there was no special impression nohow. It was only the same as anybody else could read, which was to be found in the editorials or the man was building up a new party and was deserting and he cries that he stole the nomination away from him, such as that; as anybody else would read. That didn't make any serious impression on me.

Q. Now, when did you write out these statements that was in your pocket?

A. On the 14th of September.

Q. Wrote it all out on that day?

A. Yes, sir.

Q. Every bit of it?

A. Yes, sir.

Q. From the beginning to the end? Answer my question.

A. Yes, sir.

Q. Yes, or no?

A. Yes, sir.

Q. And the very statements the police found in your pocket was written by you and all of it on the 14th day of September, 1912?

A. Yes, sir.

Q. Now in your pocket was found a statement in regard to the various places that Col. Roosevelt was to speak. Where did you get that from?

A. Oh, every day in the papers. Just as I followed the towns. I generally bought a paper there the same day or the next morning and that would just about give me the information where I could meet him next.

Q. That was in your own handwriting, that statement?

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Mrs. Theodore Roosevelt.
From "Vanity Fair"

A. Yes, sir.

Q. The other night when you were examined with reference to that you said you hadn't written it out?

A. Which. Written out?

Q. That statement they found in your pocket.

A. That I hadn't wrote it out? Well, who should have written it out?

Q. You said you hadn't written it out in your own handwriting or on the typewriter?

A. On the typewriter.

Q. Is that in your own hand?

A. Well, in the first place I cannot handle a typewriter and in the second place who else should furnish that or who else should write it?

Q. That was——

A. In fact I suppose if you compare the two of them there must be some likeness. I don't profess that I write the same all the time or every time, but I think that was written on one day.

Mr. Zabel:

You——

A. I think it is one and the same writing.

Q. How did you happen to compose those articles?

A. Because it was the 14th of September, the day McKinley died and the day I had that vision I completed my will-power that I was going to do that what I did.

Q. You made up your mind then?

A. Yes, sir.

Q. There wasn't anything you read in any papers that caused you to do that?

A. No, sir.

Q. Where was it you wrote those articles?

A. In New York.

Q. In your room?

A. Yes, sir.

Q. Ever read them to anyone?

A. No, sir.

Q. Ever mention the fact of having written them to anyone?

A. No, sir.

Q. Ever show them to anybody?

A. No, sir.

Q. Anybody help you compose those articles?

A. No, sir.

Q. Ever talk to anybody before that that you intended to do that?

A. No, sir; no, sir.

Q. Now, how was it you come here from Chicago?

A. Chicago. To here?

Q. Yes. Who was it came with you here from Chicago?

A. Nobody came here with me.

Q. Wasn't you traveling with somebody?

A. Indeed not.

Q. Didn't somebody keep you posted as to where he was going?

A. No, not at all. My God I am 36 years old and I am not crazy, the same as the papers has stated. I ought to be able to follow——

Q. Did you attempt to get tickets to get in the Auditorium?

A. No, sir; I didn't. I waited outside in front of the Auditorium. Yes, is that the Auditorium in Chicago—— No, that is the Coliseum.

Q. Is that—— I mean in Milwaukee?

A. No, I didn't intend to go there at all.

Q. Did you go inside of the Hotel Gilpatrick?

A. No, sir.

Q. Ever talk to any of these gentlemen (referring to those present)?

A. No, sir; to none of them, unless they have questioned me here Monday, I don't know. I have never seen them before.

Mr. Bloodgood:

Q. Were you at the depot at about quarter of six on Monday night?

A. On what depot?

Q. In Milwaukee, when Mr. Roosevelt came to Milwaukee.

A. No, sir; I was not.

Q. Where were you at quarter to six?

A. Quarter to six. I was standing in front of the Gilpatrick.

Q. Did you go down to Chicago and Northwestern depot?

A. Chicago-Lake Shore depot—around four o'clock, but not later.

Q. And how long did you stay there?

A. I didn't go to the depot—as far as that goes. I went to the last street and I walked around this way up to the hill and came back to the town. I didn't go into the depot.

Q. What time was that?

A. Four o'clock, I believe it was.

Q. On Monday afternoon?

A. Yes, sir.

Q. Now you left New York on what date?

A. On the 21st. 21st of September.

Q. Upon what railroad?

A. I took the ship.

Q. What transportation company?

A. I really don't know which it was.

Q. Well, what dock did you leave from?

A. I could not tell you, Mister, what dock. I know the steamship's name was Commache (Commanse, so pronounced).

Q. Where bound for?

A. For Charleston. No, it was bound in fact for Florida, but it stopped at Charleston.

Q. You got off at Charleston?

A. Yes, sir.

Q. What day did you reach Charleston?

A. I reached that on Monday—Monday, I believe at five o'clock.

Q. In the afternoon?

A. In the afternoon; yes, sir.

Q. Did you expect Col. Roosevelt at Charleston?

A. No, I didn't.

Q. What was your purpose in going to Charleston?

A. Well, my original intention was to go to New Orleans, and reading the papers I found that he was changing his way of traveling and so this that before the steamship comes to New Orleans why I wouldn't be following him there any more—he would be gone, so I thought I would take Charleston and then get to Atlanta, perhaps I can meet him at Atlanta.

Q. Where did you stay there?

A. At a boarding house by the name of Mosley House.

Q. Do you know the street?

A. I believe it is Merlin street, near Main.

Q. How long did you stay there?

A. I stayed there Monday and I stayed there Tuesday, I think I did. I guess I left the next day.

Q. Well, where did you go to from Charleston?

A. Charleston I went to Augusta.

Q. Where did you stay at Augusta?

A. At Augusta I stayed in the Planters Hotel. I have got it in that slip, if I make a mistake it ain't my fault, but I got it all down in every city where I stopped, so if I make a mistake——

Q. You put that down on a slip from time to time?

A. Yes, sir.

Q. As you went along?

A. Yes, sir. I might make a mistake now, and you think I am making you a false statement.

Q. Did you meet anyone at Charleston whom you knew?

A. No, no; I was a perfect stranger there.

Q. Did you meet anyone at Savannah, Georgia?

A. Augusta.

Q. Augusta?

A. No, I was a stranger there. At every place. I didn't know anybody to go to.

Q. Did you go to the hotel where Col. Roosevelt was staying at those places?

A. No, I didn't. I could not tell where he was going to stop. I could not tell that every time. Now the same as his coming from New Orleans I took a trip down to Birmingham I thought sure he was going to stop at Birmingham. Instead of that he changed his way and he went way to Macon, Georgia. That is the way he deceived me half a dozen times after it was advertised that I could meet him there and there.

Q. What day did you get to Chicago?

A. Chicago. I arrived if I ain't mistaken, now I might not tell the truth but I guess it, I think it was Friday.

Q. Friday morning?

A. Friday dinner time, if I ain't mistaken.

Q. Now what did you go over to the La Salle Hotel where Col. Roosevelt
——

A. I was over to the La Salle, but not in the hotel.

Q. You didn't go inside of the hotel?

A. No, sir.

Q. Where did you stand?

A. On the street, the same as here, on the street.

Q. In front of the entrance?

A. Yes, sir.

Q. Waiting to hear whether he was coming out?

A. No, I didn't wait for him to come out because he got there in the morning—I think he did, in the morning, yes, at ten o'clock he got there. I seen him go in and I never seen him go out.

Q. You saw him go out or go in at ten o'clock Saturday morning?

A. Yes, sir.

Q. Where were you standing?

A. On the street with the rest of the crowd.

Q. Did you try to get your revolver there?

A. No, sir.

Q. What prevented you from drawing?

A. Well, I thought it is his reception that might have a bad feeling on the city of Chicago, giving him a reception like that; I thought I might have plenty of chance to get at him later on if it wouldn't be just at the reception.

Q. Let me understand you what prevented you from drawing.

A. I says because it was the reception—— There was so many people receiving him and I suppose the city of Chicago would like to give him a decent respectable reception. It would look awful bad if at the reception he would have got shot down, I says to myself that wouldn't go, I might get a better chance.

Q. You knew there was a death penalty in Illinois?

A. No, sir; I never knew anything like that.

Q. How near were you to him when he passed you that morning at the La Salle?

A. How near? It was on the other side of the street.

Q. Is that the nearest you got to him?

A. Yes.

Mr. Zabel:

Did you carry your revolver at that time in your pocket?

A. No.

Q. You had one that you——

A. In here (indicating hip pocket).

Q. Where did you go—to the Coliseum—— Why did you go to the Coliseum if you didn't intend to shoot him in Chicago?

A. Indeed I did intend to. I am just telling you I didn't intend to do it that morning when he was being received there. I thought I would get a better chance.

Q. So it was a matter of chance or was it a matter of your wanting to kill him in front of the hotel?

A. When he was being received?

Q. Do you mean by that that you didn't want to kill him in front of the La Salle but that you were perfectly willing to kill him when he was away?



F. C. Studley, D. W. Harrington,
Richard Dewey, Chairman,
W. F. Becker, William F. Wegge—
Members of Sanity Commission.

A. I was willing to kill him, that is all, but I was I just wasn't willing to kill him at the reception. I told you that three times I didn't want the city of Chicago to feel sore that a stranger comes along at the beginning——

Q. Just a matter of the time?

A. Yes, sir.

Q. Now that he had—— That was Saturday morning?

A. Yes, sir.

Q. Now when you went—— Did you go to the Coliseum?

A. Yes, sir.

Q. Where did you stand—— How near were you to him?

A. Well, as near as I could get in the crowd. As near as the crowd let me get there, mostly in the middle of the street.

Q. Well, how near were you to the automobile?

A. I could not see the automobile coming. They came in a different way. I was in the main entrance and they came on the side way.

Q. You were standing at the main entrance?

A. Yes, sir.

Q. Where did you have the gun——here?

A. Here. In here.

Q. In your vest pocket?

A. Yes, sir. Here is the hole (indicating exhibiting a hole in the lower left hand vest pocket).

Q. Right through here?

A. And down in the trousers.

Q. And you were waiting at the main entrance?

A. Yes, sir.

Q. What time did you get to that main entrance?

A. I could not tell you now, sir.

Q. Well, approximately.

A. Well, perhaps half an hour before he came.

Q. You were right by the portal or door?

A. No, sir; I was in the middle of the street.

Q. You intended to shoot him right from the street?

A. Yes, sir.

Q. Now then, when you found he came into the other entrance what did you do then?

A. I went up. I could not do nothing. I had to wait until he comes out.

Q. Did you wait until he came out?

A. Yes, sir.

Q. Where did you wait?

A. At the main entrance again.

Q. And you were there then when the speech was over?

A. Yes.

Q. Did you get near him then?

A. No, I didn't. He didn't come out the main entrance.

Q. You were all ready to shoot him then at the main entrance?

A. Well, I was there, I expected him to come there.

Q. Now, after you found he didn't come out through the main entrance, where did you go?

A. Went home.

Q. Went to the hotel. How long did you stay there at the main entrance?

A. Until he came out.

Q. Well, how did you know which way he would come out?

A. I could not know—that is why I was—I was at the main entrance, I expected him to come out there.

Q. Where were you standing then, in the street?

A. Yes, sir.

Q. By the automobile?

A. No. I was standing at the front entrance. I didn't know his automobile. Automobile don't wait all the time, anyhow, I didn't see it or I forgot.

Q. Now then, where did you learn that he was coming to Milwaukee?
From the papers?

A. Yes, sir.

Q. You came up to Milwaukee at what hour?

A. Twelve o'clock, noon time.

Q. Now, on Monday night, did you go and inquire of the—— Did you talk to Mr. Moss, who is in charge of one of those automobiles?

A. Never spoke to that gentleman. Never spoke to anybody.

Q. Did you go up and ask anyone whether Mr. Roosevelt was going to get in this car?

A. No, sir; nothing like that.

Q. Now there was a big car right back of this car in which the Colonel was when you shot him—there were two automobiles, smaller cars in which the Colonel got and a larger car right back of him.

A. Might be.

Q. Well, did you speak to the chauffeur in the car back of the Colonel's and ask him whether he was going to sit in that car?

A. I didn't do anything of the kind. Didn't ask anybody. I didn't speak to anybody. It was always my principle not to speak to anybody unless a man bids me the time then I answer him, but why should I speak in that way?

Q. Now, what other place did you see the Colonel besides in Chicago, in front of the La Salle other than on Monday night?

A. I saw him in Chattanooga.

Q. Chattanooga, Tenn. Was that the time the automobile was going so fast?

A. Yes, sir; that was the time.

Q. How near were you to him then?

A. I was near enough when he came out but I could not stay within reach.

Q. You were standing in front of the entrance?

A. In front of the entrance.

Q. With your revolver ready to shoot him then?

A. Yes, sir; I was always ready to shoot him.

Q. Now, did you see him as he went in or came out that day at Chattanooga?

A. When he came out the entrance.

Q. After he finished his speech?

A. No, I didn't go there to see him there.

Q. But you say you saw him at——

A. I saw him going out the Chattanooga depot, out of the railroad station, going to his hotel.

Q. At the railroad station?

A. Yes, sir.

Q. You went there just as you went to the railroad station in Milwaukee?

A. No, I didn't go to Milwaukee.

Q. Well, you said you went down to the lake shore station at four o'clock?

A. Yes, at four o'clock, but I didn't go down there to see him coming in.

Q. Now at Chattanooga did you go down to the railroad station?

A. No, I didn't have to go down. I just stopped at the other side in the hotel.

Q. How near were you at Chattanooga?

A. I was near enough to shoot him.

Q. Why didn't you shoot him at Chattanooga?

A. Well, I didn't shoot him at Chattanooga because it was a new thing to me. I didn't just exactly have courage enough to do it and he started off so fast in his automobile and I thought maybe there is a better chance.

Q. How near were you to his automobile in Chattanooga?

A. Why, from there to there, about ten feet.

Q. Were you as near as you were the other night?

A. Yes, sir.

Q. Were you standing in the street?

A. Yes, sir.

Q. Did you start to draw your revolver then?

A. No, sir.

Q. Your courage left you then?

A. For a moment it did.

Q. Were there any policemen standing around you at Chattanooga?

A. Yes, there was some, keeping the crowd back.

Q. And were you on the sidewalk or in the street?

A. In the street, off of the entrance.

Q. Did you get right next to his automobile?

A. No, sir; I could not get next——

Q. You were about ten feet away from him?

A. Yes, about half a dozen other people in front of me.

Q. And your courage had left you at that time?

A. For a moment it did.

Q. When his automobile started off did you start to go after him?

A. No, sir.

Q. Did you see him again in Chattanooga?

A. No, sir.

Q. After that time. Now, when did you see him next after Chattanooga?

A. That was the last time I saw him until in Chicago.

Q. Until in Chicago. Did you see him any time prior to the time you saw him at Chattanooga?

A. No, sir.

Q. So the only three times you were within reach of him was in front of the La Salle Hotel in Chicago, Saturday morning?

A. Yes, sir.

Q. And at the Chattanooga depot?

A. At the depot.

Q. And then in Milwaukee Monday night? Is that correct?

A. That is correct.

Q. And since the 21st of September up to the 14th of October the only times that you were within reach of or even saw the Col. Roosevelt were the three times you have mentioned?

A. Yes, sir.

Q. Was he in any of the cities you were in at the time you were there excepting Chicago, Chattanooga and Milwaukee?

A. Not at the time I was there. He was there either before or after me.

Q. So those were the only three——

A. That I had a possible chance to shoot him, yes.

Q. Now state again, when he was at the La Salle Hotel, could you have shot him then?

A. Yes, sir.

Q. You were near enough to have shot him at the La Salle?

A. Yes, sir.

Q. What prevented you from shooting him, was it that your courage gave way?

A. No, sir; not my courage didn't give way. As I said I didn't want to do it because it is his coming-in reception—man is getting there—I didn't want to do it for that sake. I thought I'd get a better chance.

Q. Was it because of the fact you desired a better chance or you didn't want to do it on that particular occasion?

A. On that particular occasion. I didn't want to do it. Yes, sir.

Q. And at Chattanooga it was a matter of personal courage with you—your nerve failed you?

A. Just for a moment it failed me, yes, sir.

Q. Have you been accustomed to using firearms?

A. No.

Q. Had you ever shot a revolver?

A. I have shot a revolver several times during the 4th of July, that is about all, but I never handled it much. I don't know how to shoot. I didn't know whether I shot the man or not.

Q. How was it you got a 44 frame for a 38-caliber gun?

A. 44 frame?

Q. For a 38-caliber gun?

A. Well, my dear man, you know more about a gun than I do. I don't know anything about that. I bought that in that place that is a gun shop and they got all new ware and he told me it was a 38-caliber and I paid \$14. Whatever the housing of it was I don't know.



Hotel Gilpatrick.

Q. You speak of housing—you are familiar with revolvers?

A. You are telling me a 44 casing.

Q. That is what you call a housing?

A. Well, that is what I meant—that is what I understand—casing—unless you mean the box where it was laying in.

Q. No, I am talking about the housing—frame?

A. I never knew they could use a 38 on a larger casing, could they? How is it possible that they can have a 38 cartridge in a 44, in a larger casing than that?

Q. Well, that is what you did—44 frame?

A. You found a different revolver than mine.

Q. Who did you discuss the question of the formation the character of revolver. Who did you talk with over that?

A. What?

Q. As to what sort of a revolver to buy?

A. To nobody. I didn't have to talk to nobody.

Q. How did you happen to get the 38?

A. I asked for it.

Q. Why didn't you ask for a 32?

A. I don't know. I tell you the other one I had home was a 38.

Q. Oh, you had another one home?

A. Oh, not now, that is years ago. If I had that home I didn't have to buy it. I got the thing in storage. It is in the storage house if you want to get it. Stored with the stuff.

Q. Where is your stuff stored?

A. In New York.

Q. Whereabouts?

A. 80th street, I guess, and Third avenue.

Q. Well, what warehouse?

A. Well, you got to wait now until my grip comes here from Charleston. I got the whole thing.

Q. Have you sent for your grip?

A. I don't know. You gentlemen—told me that you are tending to that.

Q. Can't you give us the name of the warehouse?

A. I could not give it to you now.

Q. What have you stored there?

A. Five-room furniture from the old folks of mine.

Q. And your revolver?

A. Why, everything, of course, that belongs to the house.

Q. How long had you had that revolver?

A. I don't know. I could not tell you.

Q. Are you sure it is stored there?

A. Unless they stole it. I know I stored it there.

Q. Did you have a receipt for the different articles you stored there?

A. Sure. I can show you that as soon as—but of course the revolver is not marked on that because the revolver is in one of the drawers, I suppose.

Q. You don't know when you got that revolver?

A. I could not tell you.

Q. Have you ever shot it?

A. I shot it, I believe twice or three times during the 4th of July celebration out in the yard.

Q. Had you ever shot this revolver?

A. No, sir.

Q. You shot it the other night. Where did you buy the bullets that went in that gun?

A. The same place with the gun.

Q. How many cartridges did you have?

A. Did I have? Well, I bought a box of them and paid 55 cents for it.

Q. Where are the rest of the cartridges?

A. They are in the grip.

Q. Oh, they are in your grip in Charleston?

A. As soon as it comes over you can see it all.

Q. You didn't bring extra cartridges with you?

A. Yes, sir; I had. I took some out. I had five in the gun and I had six with me in my pocket.

Q. Did they find those?

A. They have got it in the police station.

Q. They have got those cartridges in the police station. Now, who hit your arm—did somebody hit your arm?

A. I don't think so.

Q. When you were coming—who was the first man to get hold of you—that great big man?

A. I could not say who it was. I simply shot and I don't know whether I hit the man or not or whom I hit, but I know the first thing I went down and a whole lot on top.

Q. When you aimed the revolver at Roosevelt was there anybody standing on each side of you?

A. Yes.

Q. Did you stick the gun between the heads of two people?

A. Yes.

Q. Did you say any word?

A. No, sir.

Q. When you fired?

A. No, sir; I said nothing.

Q. Talk—— Did you try to pull the trigger again?

A. No, sir.

Q. You were knocked down before you could pull it again?

A. Yes, sir; I was.

Q. You would have pulled it again?

A. Perhaps I would. I don't know.

Q. Well, now in your grip have you any literature—any papers?

A. I have a book in there, yes, a memorandum book.

Q. Did you have any newspapers which you carried about—did you cut out clippings out of the newspapers?

A. Oh no, no. I didn't do it.

Q. Did you have any record that Col. Roosevelt that you cut out of his acts when he was commissioner of police?

A. Oh no, no. You think I'd carry that here, if I wanted to carry that with me ever since 1893 when he was commissioner—you are crazy or I must have a whole book.

Q. Well, did you keep any?

A. No, sir; nothing at all. I didn't take that much interest.

Q. How do you mean, you didn't take that much interest?

A. I didn't feel that way about him then when he was police commissioner.

Q. When did you first commence to feel that way?

A. I felt it in Chicago.

Q. That was the first time?

A. The first time, yes, sir.

Q. When was that?

A. In fact, the first time I felt against him was when I had that dream against him the time McKinley died and then I thought I really could not believe in dreams, I could not go to work and shoot a man down because all dreams don't come true.

Q. When was that?

A. That was the same night or the evening that Mr. McKinley died.

Q. How long did you feel that way about it?

A. I felt about it. Well, have at least two weeks.

Q. Did you see Col. Roosevelt at that time?

A. No, sir.

Q. Did you go to Washington?

A. No, sir.

Q. Did you follow him about at all?

A. No, sir.

Q. Had you ever seen him personally prior to the time——

A. No, sir.

Q. Had you ever seen him when he was in New York?

A. No, sir.

Q. When was the first time you ever saw Col. Roosevelt?

A. At Chicago. In Chattanooga.

Q. At Chattanooga. The first time you ever saw him?

A. Yes, sir.

Q. Personally the first time you were ever near him?

A. Yes, sir.

Q. You mean to say all the time you were living in New York and the times he has been going back and forth from New York you have never seen him at all?

A. No, sir.

Q. Did you ever go out to Oyster Bay?

A. No, sir.

Q. Did you ever go over to the Outlook office?

A. I don't know where that is.

Q. Well, that is a publication—Mr. Abbott's weekly publication in New York.

A. I don't know where it is. I could not even find it. I know quite some streets in town, in the neighborhood. I have never been interested in that. I didn't know that Roosevelt had anything to do with the Outlook at all.

Q. Well, you knew where his office was in New York?

A. Whose office?

Q. Col. Roosevelt.

A. At the time he was police commissioner?

Q. No, since he was president—he has been going back and forth in New York——

A. Since he has been on his third term here.

Q. I say he has been back and forth in New York?

A. How could I know his office?

Q. While he was in New York after the meeting of the Progressive party in Chicago you knew that, didn't you?

A. I don't think so. I thought he was to Oyster Bay. I don't think that I ever read of it that he was in New York city.

Q. He went to his office to the Outlook office?

A. I have never been looking for him then, sir.

Q. You weren't looking for him then?

A. No, sir; I wouldn't know where to find his office.

Q. When you read of the formation of the party in Chicago what papers did you read that in?

A. The same papers.

Q. New York Herald and the World?

A. Yes, sir.

Q. What you read about it then, did that rouse you up to anger at all?

A. Well, not exactly anger but I was getting more and more convinced that this man's ambitions is nothing else but a blow to McKinley's death and he wants to get a third term and he shouldn't have it, and that is all.

Q. When did you make up your mind to that—in August?

A. I made up my mind pretty much in August and then I was corroborated during the vision I had on the 14th day of September.

Q. When you say you made your mind up pretty much in August after the meeting of the party, what do you mean by that, that you thought of killing him then?

A. Yes, sir, I thought of killing him then.

Q. In August. Had you made any plans then to kill him?

A. No, I had made none until the 14th.

Q. And you thought then of doing this same thing?

A. I thought about it, yes, sir; although I was making up my mind as to how or whether I would do it and I thought about it.

Q. What time in August was that that you thought about it—just after you read in the papers?

A. Yes, sir.

Q. After the formation of the party?

A. After the formation of the party—wasn't that the 7th of August?

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Schrank in County Jail.

Q. What particular thing in the accounts of the papers impressed you at that time that gave you or caused you to make up your mind?

A. Nothing particular but simply the fact that he built the new party; that he was going to take a third term presidency.

Q. Did you have any grip with you when you went to Chicago?

A. No, sir.

Q. You had no baggage when you went to that hotel?

A. I never had any baggage since I left it in Charleston.

Q. Bought no underwear?

A. Yes, I bought underwear, certainly, and I threw the old underwear away.

Mr. Zabel:

I think that is all.

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CHAPTER XV.

REPORT OF THE ALIENISTS.

The report of the sanity commission follows:

To the Honorable A. C. Backus, Judge of the Municipal Court of Milwaukee County:

Pursuant to your appointment of the undersigned on the 12th day of November, 1912, as a Commission to examine John Schrank with reference to his present mental condition, we respectfully submit our report.

This report consists of:

First: The examination of John Schrank with reference to his personal and family history, his present physical state, and his present mental state.

Second: Inquiry by means of data furnished by the New York Police Department, the Magistrate of Erding, Bavaria, reports furnished by the Milwaukee Police Department and other officials brought in contact with him, and certain documents furnished by the defendant himself, and others found in his possession, some of which are herewith submitted as exhibits, duly numbered.

Third: Summary and conclusions arrived at.

PERSONAL AND FAMILY HISTORY.

Age 36. Single. Born in Erding, Bavaria, March 5, 1876. Father born in Bavaria, and mother born in Bavaria. Occupation, bar tender and saloonkeeper. No regular occupation in the last one and one-half years. Education, common schools in Bavaria from the seventh to the twelfth year; three or four years in night school in New York, in English.

In early life a Roman Catholic; not a practical Catholic for the past 15 years.

His father died at the age of 38 of consumption; was a moderate drinker; the mother living at the age of 56 or 57. One brother and one sister living, in good health. One brother and one sister died in infancy.

A sister of mother insane, suffered from delusions of persecution; died of softening of the brain, so-called, in 1904, in Gabersee Asylum, Bavaria. Certified by Magistrate of Erding, Bavaria.

Patient states he was never seriously sick. Knows of no serious accident or injury. Never suffered from headaches.

Lived with grandparents from three to nine years of age; worked in a vegetable garden during that time, and then returned to parents.

HABITS.

Denies excesses; no use of tobacco until two years ago, never more than five or six cigars a day, average two or three cigars. Has generally taken about five pint bottles of beer in twenty-four hours, of late years. For two years, in 1902-1903, drank no intoxicants at all. He states he drank to slight excess at most half a dozen times a year. Never used drugs of any kind. Denies all venereal diseases, and presents no physical evidence of them. His usual habit was to retire before 10 o'clock at night.

PRESENT PHYSICAL STATE.

Height 5 feet 4½ inches in stocking feet. Weight, 160 pounds, with clothing. Is right-handed. Head presents no scars or injuries or evidence of injuries or irregularities of cranial bones; normal in shape, except measurements over left parietal bone from ear to median line at vertex is 1.25 centimeters larger than the right. Cephalic index 80. Cranial capacity normal. External ears normal in shape. Holds head slightly tilted to left. Shape of hard palate, mouth and teeth normal. Maxillary bones normal except lower jaw slightly prognathic. Blonde hair. Eyes, bluish gray. Complexion fair. Tongue, slight yellowish coating, edges clean. Appetite and general nutrition good. Stomach, digestion, bowels normal. Sleep good. State of heart and arteries normal. Blood pressure 125 to 130 systolic; 115 to 120 diastolic. Pulse 82-86. Temperature Nov. 12, 1912, P.M., 99.4. Nov. 14, normal. No scars on genitals. Urine practically a normal specimen.

NEUROLOGICAL.

The Eyes—Light, accommodation and sympathetic reflex present, but somewhat slow. Slight inequality of pupils, right distinctly larger than left. Color sense normal. No contraction of visual field. Slight horizontal nystagmus in both eyes on extreme outward rotation of the eyeballs. (Pupils equal and normal Nov. 20th, 1912.)

After above symptoms ascertained, 1.40 grain euphthalmine inserted, and examination of eye grounds showed no optic atrophy. The right eye ground (retina) was slightly higher in color than the left.

Hearing very acute, both sides.

Sense of taste and smell normal.

Tactile, pain, temperature and weight sense normal.

Deep Reflexes—Knee, reflex, right, irregularly present, regular on reinforcement; knee, left, absent; brought out by reinforcement irregularly.

Myotatic irritability of forearm, right markedly heightened; left slightly heightened.

No ankle-clonus.

Superficial Reflexes—Abdominal reflex present. Epigastric reflex absent. Cremasteric reflex, active both sides. No Oppenheim reflex. No Babinski reflex. Plantar reflex: right markedly heightened; left heightened.

Musculature—Arm and leg showed slightly diminished power on right side. The left side stronger, though subject right-handed.

Dynamometer, right 90, 90 (two tests); and left 100, 100 (two tests).

No Romberg symptom, and no inco-ordination of upper and lower extremities.

Gait and station normal.

Slight tremor of fingers, noticeable under mental excitement. At times slight tremor of lips.

EXAMINATION OF PRESENT MENTAL STATE.

Tests for attention show normal conditions.

Tests for memory, general and special, show normal conditions.

Tests for association of ideas and words showed special bearing upon his delusional state.

Logical power good, except as limited by his delusions.

Judgment the same.

Has no "insight" as to his own mental condition.

Emotional tests show tone of feeling exalted.

Orientation correct as to time and place.

Delusions present, as subsequently set forth.

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CHAPTER XVI.

FINDING OF THE ALIENISTS.

We find that John Schrank came to New York at the age of 12, and lived with his uncle and aunt as foster parents, who kept a saloon at 370 East Tenth street, New York City.

Before coming to this country he had 5 years of the public schools of his native village in Bavaria, and after arrival in this country his only schooling was such as he could obtain at night schools in New York during 3 or 4 years.

Up to this time no peculiarity had been observed in him, from any evidence available. We note the fact that he was most especially interested in history and government, as illustrated by political writings and by the Bible. He speaks frequently of his very great admiration for the character of George Washington.

At 15 or 16 years of age he became greatly interested in poetry. This perhaps corresponds to the period of development at which eccentricities are wont to appear.

He represents that in the saloon in which he worked he was chiefly engaged in supplying beer to residents of neighboring tenements; that there was no gambling or other immoral conduct practiced or encouraged in this business place. He went on for over 12 years as barkeeper. His uncle and aunt had during this time accumulated means for the purchase of a small

tenement. At the death of the uncle and aunt in 1910 and 1911 the defendant came into possession of this property.

In the last year and a half has not been in any regular business or employment, and spent his time in long walks about New York and Brooklyn, during which he meditated upon poetical compositions, and political and historical questions, jotting down ideas upon loose slips of paper as they came to him, night or day, forming the basis of his poems. He spent his evenings in a saloon, retiring early. The average daily quantity of stimulants or beer taken by him was insufficient to produce intoxication. He also states that in 1902 and 1903, for a period of nearly 2 years, he drank no intoxicants at all.

He states that in 1901, between 1 and 2 o'clock in the morning of the day after President McKinley's death he experienced a vivid dream, in which he appeared to be in a room with many flowers and a casket, and saw a figure sit up in the casket, which he says was the form and figure of the assassinated President McKinley, who then pointed to a corner of the room, and said, "Avenge my death." He then looked where the finger pointed and saw a form clad in a Monkish garb, and recognized the form and face of this individual as the form and face of Theodore Roosevelt.

At the time this made a strong impression, but was not dwelt upon especially except in the light of later events.

Prior to the nomination of Colonel Roosevelt for the Presidency in the year 1912, he had felt great interest in the political campaign, and had read articles expressing great bitterness toward the idea of a third term, and toward Colonel Roosevelt personally in the newspapers of New York, and after the period when the nomination of Colonel Roosevelt began to be actively agitated, meditated more deeply upon these matters. He had always studied with the greatest interest the questions of free government, as illustrated by the Declaration of Independence, and Washington's Farewell Address. In this connection, the Monroe doctrine also assumed great importance in his mind, and the converse thereof, the duty of this nation to

refrain from war of conquest; and out of these meditations grew what he elaborated into his declaration as to the unwritten laws, or "The Four Pillars of our Republic," namely (1) the Third Term Tradition, (2) the Monroe Doctrine, (3) that only a Protestant by creed can become president, (4) no wars of conquest. This document, hereunto annexed as Exhibit 1, fully sets forth his views on these subjects.

These "four unwritten laws" had assumed in his mind a character of sacredness. They were "sacred traditions" to be maintained at all hazards, and, as subsequently appeared, even the hazard of life.

The following are some quotations from this document:

"Tradition is an unwritten law."

"I would doubt the right of a court to have jurisdiction over a man who had defended tradition of his country against violation."

"The oldest of these traditions is the 'third term tradition,' it has never been violated and is an effective safeguard against unscrupulous ambition, but never before has been established a test case of its inviolability as a warning to coming adventurers."

"For the first time in American history we are confronted by a man to whom practically nothing is sacred, and he pretends to stand above tradition."

"Anybody who finances a Third Term Movement should be expatriated and his wealth confiscated."

"The dangers in this campaign are these, the third termer is sure that the nomination has been stolen, and that the country and the job belongs to him, therefore, if he gets honestly

defeated in November he will again yell that the crooks of both parties have stolen the election and should he carry a solid West, he and the hungry office-seekers would not hesitate to take up arms to take by force what is denied him by the people, then we face a Civil War, * * * * * and that he who wilfully invites war deserves death. We would then be compelled to wash out the sin of violating the Third Term with the blood of our sons. Yet this is not the gravest danger we are facing. We have allowed an adventurer to circumtravel the Union with military escort with the torch of revolution in his hands to burn down the very house we live in."

"Have we learned no lesson about a one man's rule experienced in France with such disastrous results as the end of the reign of Napoleon I and Napoleon III."

"Are we trying to establish here a system like our ancestors have done in Europe, which all revolutions of a thousand years could not abolish."

"Are we overthrowing our Republic, while the heroes of the French revolutions, and the martyrs of 1848 gladly gave their lives to establish Republican institutions."

"The abolition of the Third Term tradition is the abolition of the Monroe doctrine also."

"Hardly any revolution has started without pretending that their movement was progressive."

"The prudence of our forefathers has delivered to us an equally sacred unwritten law which reads that no president should embrace another creed than Protestant, if possible, a sect of the English Church. I am a Roman Catholic. I love my religion but I hate my church as long as the Roman parish is not

independent from Rome, as long as Catholic priests are prevented from getting married, as long as Rome is still more engaged in politics and accumulation of money contrary to the teachings of the Lord. The Roman Catholic Church is not the religion for a president of the United States."

"The Fourth unwritten law, which is practically supplementary to the second, we find in George Washington's Farewell Address, where he advises us to live in peace with your neighbor. We have no right to start a war of conquest."

In his examination in this connection he stated as follows: "Four-fifths of the United States would take up arms to defend the Third Term tradition. Trying to get perpetual power and dictatorship would justify killing."

He also said he would be justified to the same extent, that is, by killing, a man who would seek the presidency and was a Roman Catholic; and also for a man who would start a war for conquest; and he thought also of the possibility of foreign powers to help Roosevelt possibly to annex the Panama Canal and break down the Monroe Doctrine. He said he believed the country would be facing a civil war if Roosevelt went on as he had done.

He gives as a reason for his present attack upon Roosevelt, that he did not wish to give him (Roosevelt) an opportunity to plead that no defense of the Third Term tradition had been made in 1912 should he aspire to another term in 1916. Asked as to how he reconciled his act with the commandment "Thou shalt not kill," he replied that, "religion is the fundamental law of human order, but to kill to try and do a good thing, and to avenge McKinley's murder, justifies the killing."

The proof of his position came to him in his dream and in his vision.

"Roosevelt's ambition and conduct proves to every man that he was back of McKinley's assassination in some way or other."

The defendant says that he prayed God to find a leader among men who would take this responsibility, and he expected all along someone else would do this thing, but no one did it, and as he was a single man of 36, without a family, and thought the deed was a good deed, and it made no difference to him, he was willing to sacrifice his life for that end, even if he were torn to pieces by the mob. He therefore concluded that it was his mission, and desired to make of this a test case.

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Henry F. Cochems.
(Who was in the Automobile with Col. Roosevelt when the Ex-President
was Shot.)

He thinks the election returns corroborate the fact that the people have been awakened to the idea of no Third Term.

In the progress of the campaign, when the progressive movement had taken shape, and Colonel Roosevelt had been nominated as the head of a third party, and on August 7th, 1912, the dream which had come to him in 1901, as above related, began to assume more importance, and special significance in his mind. He felt extreme agitation on this subject continuously. On the morning of September 15th, 1912, the anniversary of the date of his dream in 1901, having retired as usual the night before with his manuscript by his bedside, he suddenly awakened between 1 and 2 A.M., with the completion of a poem entitled "Be a Man" uppermost in his mind.

We insert the poem at this point:

1. Be a man from early to late
 When you rise in the morning
 Till you go to bed
 Be a man.
2. Is your country in danger
 And you are called to defend
 Where the battle is hottest
 And death be the end
 Face it and be a man.
3. When you fail in business
 And your honor is at stake
 When you bury all your dearest
 And your heart would break
 Face it and be a man.
4. But when night draws near
 And you hear a knock
 And a voice should whisper your
 Time is up; Refuse to answer
 As long as you can
 Then face it and be a man.

He found his ideas were taking shape, and getting up he sat writing, when he suddenly became aware of a voice speaking in a low and sad tone, "Let no murderer occupy the presidential chair for a third term. Avenge my death!" He felt a light touch upon his left shoulder, and turning, saw the face of former President McKinley. It bore a ghostlike aspect. This experience had a decisive effect in fixing in his mind the iniquity of the third term, and from this time he questioned as to his duty in the matter, and he finally regarded this vision and its connection with the exact anniversary of the dream as a command to kill Roosevelt, and as an inspiration. When asked by us whether he considered this as imagination or as inspiration and

a command from God, while showing some reluctance to claim the vision as an inspiration, he finally answered decisively that he did.

When asked whether a man had a right to take a weapon and hunt down a man who had violated tradition, he submitted his written statement in reply, which is hereto annexed as Exhibit 2, some quotations from which are as follows:

"I should say where self-sacrifice begins the power of law comes to an end, and if I knew that my death during my act would have this tradition more sacred I would be sorry that my life was spared so convinced am I of my right to act as I did that if I were ever a free man again I would at once create an Order of Tradition."

"I presume you men would declare Joan d'Arc, the Maid of Orleans insane because the Holy Virgin appeared to her in a vision."

"When we read that God had appeared to Moses in the shape of a burning thorn bush, then again as a cloud, we will find many people who doubt the appearance of God to man in human or other shape."

"Why then in cases of dire national needs should not the God appear to one of us in vision."

The defendant states that at no time and under no circumstances did he communicate to anyone his intention. In fact, he kept it as an inviolable secret and took measures to throw off the scent persons who might inquire about his leaving New York. The defendant stated in this connection that he did not wish to commit the act in New York, as it would then be claimed that he had been "hired by Wall Street" and in that way the real purpose of the act would be obscured.

CHAPTER XVII.

SCHRANK DESCRIBES SHOOTING.

(BEFORE SANITY COMMISSION.)

On September 21, 1912, he left New York City, having first borrowed \$350, and purchased a 38-caliber revolver, for which he paid \$14. His efforts from this time were continuous to come within shooting distance of Colonel Roosevelt. He missed him at Chattanooga and at Atlanta, and then went to Evansville, where he remained seven days awaiting Colonel Roosevelt's return to the West. He then sought to come within range of Colonel Roosevelt in Chicago, and states that he waited for him at the exit of the building, where he spoke, but found afterwards that he had left by a different exit. He then preceded him to Milwaukee, arriving here at 1 o'clock P.M. the day preceding the attack.

On the evening of the shooting Schrank arrived at the hotel, where he had learned Colonel Roosevelt would stay, in advance of the time he was expected to start for the place of meeting. When a crowd began to collect around the automobile awaiting Colonel Roosevelt at the curb, he went into the street, standing near the automobile in a line just behind the front seat on the left hand side opposite the chauffeur's seat. He says,

"Seeing him enter the automobile and just about to seat himself, I fired. I did not pick any particular spot on his body. The crowd was all around me

and in front of me. The next minute I was knocked down, but was not rendered insensible, and the gun was knocked out of my hands."

The defendant insists that he said nothing during his assault. He was then dragged to the sidewalk, and getting on his feet was hurried into the hotel, and the doors were locked. Here he said nothing, and was taken by the police through the back door to police headquarters.

From the examination at police headquarters, made at 9:25 P.M., October 14, 1912, by the Chief of Police, John T. Janssen, we find that he objected to telling his name, but did so when it was insisted upon. We also find that his statements made to the police concerning his following and attempting to gain access to Colonel Roosevelt, and his visits to various localities correspond, and his explanations of his acts agree with those made to us.

Some of his statements to the Chief of Police, are as follows, as extracted from document submitted herewith, marked Exhibit 3.

Q. Why did you want to meet him?

A. Because I wanted to put him out of the way. A man that wants a third term has no right to live.

Q. That is, you wanted to kill him?

A. I did.

Q. Have you any other reason in wanting to kill him?

A. I have.

Q. What is that?

A. I had a dream several years ago that Mr. McKinley appeared to me and he told me that Mr. Roosevelt is practically his real murderer, and not this here Czolgosz.

Q. Did you know Johann Most when he was alive?

A. No, sir.

Q. Did you ever hear him talk?

A. No, sir.

Q. Did you ever hear Emma Goldman?

A. No, sir; I am not an anarchist or socialist or democrat or republican; I just took up the thing the way I thought it was best to do.

(It seems worth while to note that the defendant differs from many assassins of rulers or prospective rulers in having no anarchistic ideas or connections, but rather that he intended to be an upholder of established government.)

"Mr. Grant was refused" (a third term) "and he was satisfied; this man was refused and he is not satisfied; it's gone beyond limits; if he keeps on doing this after election, he can't possibly carry a solid Western state; the next thing we will have a civil war, because he will say the scoundrels and thieves and crooks stole my nomination, and now they will steal my election, and they will take up arms in all the Western states; we are facing a civil war just to keep him in a third term."

Q. Where did you get all this idea from?

A. I have been reading history all the time.

Q. What schooling did you have?

A. Well, I have attended school in the old country, and I attended night school in New York for about four winters; that's all the schooling I had.

Q. You haven't a very good education then?

A. Indeed I ain't.

Q. Have you always enjoyed good health?

A. Yes, sir; I am a healthy sane man, never been sick.

Q. Well, do you believe that that is a sane act that you committed this evening?

A. I believe that is my duty as a citizen to do, it's the duty of every citizen to do so.

Q. Well, how did you happen to get the idea that it was your duty among all the people that live in the United States?

A. I don't know, I thought maybe somebody else might do it before I got there.

Q. And you spoke to no one about your intention on all the route you took concerning this, nobody?

A. No, sir; nobody.

While in jail the prisoner prepared a written defense, which we submit herewith as Exhibit 4, and we extract certain sentences from the same, as follows:

"Gentlemen of the Jury, I appeal to you as men of honor, I greet you Americans and countrymen and fathers of sons and daughters. I wish to apologize to the community of Milwaukee for having caused on October 14th last, great excitement, bitter feeling, and expenses."

"Gentlemen of the Jury: When on September 14th last I had a vision, I looked into the dying eyes of the late President McKinley, when a voice called me to avenge his death, I was convinced that my life was coming soon to an end, and I was at once happy to know that my real mission on this earth was to die for my country and the cause of Republicanism."

"You see that I have appeared here today without assistance of a counsellor at law, without any assistance save that of God, the Almighty, who is ever with him who is deserted, because I am not here to defend myself nor my actions."

"The law I have violated for which you will punish me is not in any statute book."

"The shot at Milwaukee which created an echo in all parts of the world was not a shot fired at the citizen Roosevelt, not a shot at an ex-president, not a shot at the candidate of a so-called prog. pty. (Progressive party), not a shot to influence the

pending election, not a shot to gain for me notoriety; no, it was simply to once and forever establish the fact that any man who hereafter aspires to a third presidential term will do so at the risk of his life."

"If I do not defend tradition I cannot defend the country in case of war. You may as well send every patriot to prison."

(As showing the erratic reasoning of the defendant, the following passage, intimating that the assassination of President McKinley was a part of a conspiracy to elevate Colonel Roosevelt to a permanent control of the destinies of the United States, we quote further:)

"Political murders have occurred quite often, committed by some power that works in the dark and only too frequently of late the assassin was classed as an anarchist, but the real instigators could never be brought to justice. Whoever the direct murderer of President McKinley has been it could never be proven that he has ever been affiliated with any anarchistic or similar society, but we may well conclude that the man who in years after willingly violated the third unwritten law of the country whenever he thought it profitable to change his creed while president, perhaps to the mother of monarchies."

(From the remarks of the prisoner in our examination of him, we find by "the mother of monarchies" that he refers to the Roman Catholic Church.)

We further quote:

"Such was his fear that his machine, built up in 7½ years will be destroyed over night, that he threatened not to leave the chair unless he were allowed to nominate his successor."

"Gentlemen of the jury: The 3t (third term) 'never again will I run for pres.' (president) has a parallel in the history of Rome. Whoever read the history of Julius Caesar knows that this smart politician while elected dictator managed to become so popular with the people that they offered him the kingly crown, but J. Caesar knew that he had to bide his time, that the rest of Senators know of his ambition, and after refusing three times he knew they would offer it to him a fourth time, and when then he accepted it he was murdered for ambition's sake."

"He" (Colonel Roosevelt) "was ambitiously waiting for the Government at Washington to start a military intervention in Mexico, but the leaders of the Republican party feared that the 3t (third term) would muster an army of volunteer Rough Riders and return at election as the conquering hero."

"The danger even more grave than civil war is the possibility of intervention of foreign powers, who may help the 3t (third term) in order to keep the Union disunited and separated." * *
* * * *

"We would at once realize that we are surrounded by a pack of hungry wolves ready to destroy this hated Republic, ready to destroy Monroe Doctrine, ready to annex the Panama Canal and the great land of the brave and free, the home many millions free people, the dream of all heroes and martyrs for political freedom to 1848 would have ceased to be owing to the ambitions of one man, and one man's rule. I hope that the shot at Milwaukee has awakened the patriotism of the American nation."

"I have been accused of having selected a state where capital punishment is abolished. I would say that I did not know the laws of any state I travelled through. It would be ridiculous to fear death after the act as I expected to die during the act, and

not live to tell the story, and if I knew that my death would have made the third term tradition more sacred, I am sorry I could not die for my country."

"Now, Honorable Men of the Jury, I wish to say no more, in the name of God go and do your duty, and only countries who ask admission by popular vote and accept the popular vote never wage a war of conquest murder for to steal abolishes opportunity for ambitious adv. (adventurers).

"All political adventurers and military leaders have adopted the career of conquering heroes wholesale murder, wholesale robbers called national aggrandizement. Prison for me is like martyrdom to me, like going to war. Before me is the spirit of George Washington, behind me, that of McKinley."

(The last sentence the prisoner explained, was written hastily, and he expected to revise it.)

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CHAPTER XVIII.

CONCLUSION OF COMMISSION.

From the testimony of the jailor who had been in charge from the date of Schrank's arrest to the present date, we learn that he was a quiet, pleasant man, well-behaved in all respects, and fastidious as to dress and food, uniformly cheerful and happy. It was noticeable that he showed much less concern or anxiety as to his fate than the average prisoner. This is also corroborated by the examination of a detective concerned in his arrest.

The impression we have derived from the demeanor of the prisoner in our several examinations is that he is truthful in his statements and shows no desire to conceal anything. He undoubtedly has an elevated idea of his importance, but is free from bombast. In the course of his examination when the question of his views or opinions about himself came up he drew from his pocket the document herewith submitted as Exhibit 4, which he says he prepared as a defense, saying: "Perhaps I can help you, Gentlemen." He has shown every disposition to assist us in arriving at facts. He shows a knowledge and command of the English language unusual in a foreigner who has only had very limited schooling. He is self-confident, profoundly self-satisfied; is dignified, fearless, courteous and kindly. He shows a sense of humor and is cheerful and calm under circumstances that severely test those qualities. Beneath all of this is an air which is illustrated by his concluding sentence, that the spirit of George Washington is before him, that of McKinley behind him. He gives the impression that he feels himself to be an instrument in the hands of God, and that he is one of the band of

historic heroes paralleled by such characters as Joan d'Arc and other saviours of nations. He undoubtedly considers himself a man of heroic mold. At no time did he express or exhibit remorse for his act.

SUMMARY.

We have limited the scope of our investigations to the questions that we have been asked to determine and summarize briefly: John Schrank, age 36 years, single, barkeeper and saloon keeper, and of limited educational opportunities, with insane heredity (see Exhibit 5), was born in Bavaria, on March 5, 1876, and came to this country twelve years later. Apparently he developed normally, but early in life showed a particular fondness for the study of the histories of this and other countries, and also for the composition of poetry. In the course of his studies of history, and especially of the Constitution of the United States, and of Washington's Farewell Address, he developed the belief that this Republic is based upon the foundation of four unwritten laws, to which he also refers as the "Four Sacred Traditions," as is more fully set forth in the preceding report.

In 1901 he had a very vivid dream, which at that time he recognized as only a dream, the memory of which has frequently recurred to him ever since. In the course of a pre-convention campaign, the belief that the four unwritten laws or the "Four Sacred Traditions" are in danger comes to him, and later, upon the nomination of a presidential candidate by the Progressive Party, he begins to attach particular significance to the dream he had in 1901. He meditates deeply upon this and, in the course of a few weeks there appears to him a vision accompanied by a voice which, in effect, commands the killing of the man through whose acts and machinations he believes the sacred traditions to be endangered, and who, he also believes is, through a conspiracy, concerned in the assassination of a former president. He continues to ponder upon the subjects set forth, awaiting the appearance of a person who would carry out the act suggested by the vision, but shortly arrives at the conclusion that he, and not someone

else, is the chosen instrument. He at once sets forth to accomplish his mission, following his victim until he finally comes up with him.

During his examination as to his sanity, he conducts himself in perfect accord with his beliefs, and expresses a regret at not having died at the hands of the mob if such a result would have proven of benefit to his chosen country.

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CHAPTER XIX.

SCHRANK DISCUSSES VISIONS.

(BY JOHN FLAMMANG SCHRANK.)

Has a man a right to take a weapon and hunt down a man who has violated tradition? In answer to this I would like to ask the gentleman the following question. How and by what means would you expect to withhold from a man that right. You know that according to the old Roman law the atonement for the taking of a life has been the giving of a life, and to this day our power of state with the laws and instruments for punishment is limited to the taking of man's life there is no severer penalty than death sentence. Now then when a man concludes to take a weapon and hunt down another man and he then willingly sacrifices his own life in defense we say of tradition, does such man then not willingly give what otherwise the law could take from him, is then not the right with him, I should say where self-sacrifice begins to power of law comes to an end and if I knew that my death during my act would have this tradition more sacred.

I would be sorry that my life was spared, so convinced am I of my act to act as I did, that if I were ever a free man again I would at once create an order of tradition sole purpose to defend it.

You gentlemen claim that you would think a man insane, that could have such things as a vision appear to him. There might be exceptions, but I disagree with you in making this the rule. Then I presume you men would

declare Joan d'Arc the Maid of Orleans insane because the Holy Virgin appeared her in a vision. France as a nation passed in those days through a grave trial, her very existence as a nation was at stake. To our shame we must admit that while we prosper and are far from danger we hardly ever give it a thought, that all our comfort is granted to us by God the Almighty, and it is an old saying that when the danger is over the saints are mocked. But in days of hard stress, dire need and want, we at once knew that we are indebted to a power above us, we at once realize that we are sinners, we feel that our good spirit is a small particle to the Holy Spirit God that we are helpless children and related to the good father God. We then pray with innermost contrition that God may forgive, that God may enlighten one of us that God may find a leader among us.

And such is the mercy of God that for the repentance of one man for the acknowledgement for one good deed, God will forgive the sins of a whole nation. When we read about the destruction of Sodom Gomorrha, when Lot asked the Lord, wouldst Thou spare these cities if there were ten honorable and just men within its walls and God answered, if I could find one honorable and just man I would spare that people.

We may conclude from these words that God had long before this forsaken them when a nation is confronted with grave trials it is then nearing the boundary line of God's patience, no doubt the people of Sodom had arrived there and God had weighed their deeds and found them too light he would not enlighten one of them to be a leader and who would impress upon his people to come back to the safe avenue of God and leave the road of destruction. In our health and prosperity we are too easily over-confident and self-possessed when we read that God had appeared to Moses in the shape of a burning thorn bush, then again as a cloud, we will find many people who doubt the appearance of God to man in human or other shape. When I see a tree growing out of rocks it appears to me as if God spoke to me that he wants all people to live a temperate life as it requires but little to live and proper as is shown in that tree. Now then does God appear to us in our journey through this life. Has he ever appeared to you. Has there never

been a time when you would say, O what a lucky dog I was that I did not do this or that. Have you ever refused for some reason an invitation to a joy ride, a pleasure trip or others, and after you would find one or the other of your friends killed while you escaped. Everyone of us is confronted at once in life with a grave trial which requires all the good in you to overcome temptation and find the right way out of it, is not this the secret assistance of God the Almighty when you appeal to Him and He weighs your deeds and either enlightens you or punishes Science discoveries. When then in cases of dire national needs should not God appear to one of us in vision the greatest injustice.

(Schrack's copy is followed closely in all presented here from his pen.)

ALIENISTS' CONCLUSIONS.

Our conclusions are as follows:

First—John Schrack is suffering from insane delusions, grandiose in character, and of the systematized variety.

Second—In our opinion he is insane at the present time.

Third—On account of the connection existing between his delusions and the act with which he stands charged, we are of the opinion that he is unable to confer intelligently with counsel or to conduct his defense.

Dated, Milwaukee, Wisconsin, Nov. 22nd, 1912.

Respectfully submitted,

RICHARD DEWEY, M. D.,
Chairman.

W. F. BECKER, M. D.

D. W. HARRINGTON, M. D.
FRANK STUDLEY, M. D.
WM. F. WEGGE, M. D.
Commissioners.

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CHAPTER XX.

SCHRANK'S DEFENSE.

John Flammang Schrank expected to conduct his own defense before a jury, if tried for his assault upon ex-President Roosevelt.

This is demonstrated by the fact that he had prepared a defense to be read to the jury. In this defense he alluded to the fact that he "is not represented by counsel."

This defense is remarkable in that it shows clearly the thought which overcame his mental strength.

Schrank's defense is presented as he wrote it, with the exception of two or three corrections to enable readers to realize what Schrank is trying to say. The defense was prepared by Schrank in the county jail. He was writing it when it was reported that he was writing verse. The defense follows:

Gentlemen of the jury: I appeal to you as men of honor. I greet you Americans and countrymen and fathers of sons and daughters. I wish to apologize to the community of Milwaukee for having caused on October 14 last great excitement, most bitter feeling and expenses. I wish to apologize to you honorable men of the jury that I am causing to you this day unpleasantness in asking you to pass a verdict in a matter which should have better been tried by a higher than earthly court.

Gentlemen of the jury, when on September 14 last during a vision I looked into the dying eyes of the late President McKinley, when a voice called me to avenge his death, I was convinced that my life was coming soon to an end, and I was at once happy to know that my real mission on this earth was to die for my country and the cause of Republicanism.

Gentlemen of the jury, you see that I have appeared here today without the assistance of a counsellor at law, without any assistance save that of God the Almighty, who is ever with him who is deserted, because I am not here to defend myself nor my actions. I am here today to defend the spirit of forefathers with words what I have defended with the weapon in my hand, that is the tradition of the four unwritten laws of this country. Tradition is above written statute, amended and ineffective. Tradition is sacred and inviolable, irrevocable. Tradition makes us a distinct nation. Order of tradition. The law I have violated for which you will punish me is not in any statute book. Gentlemen of the jury, the shot at Milwaukee, which created an echo in all parts of the world, was not a shot fired at the citizen Roosevelt, not a shot at an ex-President, not a shot at the candidate of a so-called Progressive party, not a shot to influence the pending election, not a shot to gain for me notoriety. No, it was simply to once and forever establish the fact that any man who hereafter aspires to a third presidential term, will do so at the risk of his life. If I cannot defend tradition I cannot defend the country in case of war. You may as well send every patriot to prison. It was to establish a precedent for the third term tradition, which for the first time in the history of the United States one man dared to challenge and to violate.

Gentlemen of the jury, the third term tradition is the most sacred, because it has been established by the greatest champion of liberty in all ages past and to come by our first President, George Washington, when he modestly declined a third term nomination by saying that two terms are enough for the best of Presidents. The two great American political parties have since guarded this tradition most jealously, have regarded it as a safeguard against the ambitions of probable adventurers. The great

Republican party, the party of an Abe Lincoln, the party of the new U. S., that party as a medium between government and the people, the party to which we are greatly indebted for our achievements and our greatness among the family of nations, it was that party that was destined to give birth to and to nurse the first offender of that tradition, who gradually proved to be the evil spirit of the country, and that great party which was born during a national crisis and which had bravely faced and overcome many a grave trial, nobly faced the coming storm and survived it with its honor unimpaired.

Gentlemen of the jury, when we inquire into the past of that man, we will find that his ambitious plans have all been filed and laid down long before he has been President. All doubt that these plans were towards establishing at the least a perpetual presidency in these United States have been removed during last summer, when a certain senator unearthed from within the library of the white house a written document deposited there during the third term's presidency. This document was an order for repairing to be done in the white house, and this order closed with the following words: "These alterations should be done, to last during my lifetime." When the third term was informed of the finding of this document, he admitted and absorbed the all-important matter by simply saying: "Some people have no more brains than guinea pigs."

Gentlemen of the jury, his rough rider masquerade during the Spanish-American war was his first important step towards his goal, it gained for him the governorship of the Empire state and that important office made him an influential factor in the councils of the Republican party. During his term as secretary of the navy he gained the popularity among the men in that branch of the mailed fist of the country by increasing the salaries of those men, who might some day be of vital benefit to his cause. The Republican leaders of those days were soon aware of the dangerous ambitions of this man and also knew that this man would never be safe enough to fill the highest office of the nation, for this reason these men thought it wise to make him vice-Presidential candidate on the same ticket

with McKinley, for it must not be new to you that the office of a vice-President has always been regarded as the suicide to a man's political ambitions. But, gentlemen of the jury, now came the time when a man's ambitions blindfolded him to all reason. The desire to overcome the obstacle robbed him of his sane judgment, and in such a case the spoiler invites himself, political murders have occurred quite often, committed by some power that works in the dark and only too frequently of late the assassin was classed as an anarchist, but the real instigators could never be brought before justice. Whoever the direct murderer of McKinley has been it could never be proven that he has ever been affiliated with any anarchistic or similar society, but we may well conclude that the man who in years after so willingly violated the first unwritten law, which is the third term tradition, may have readily promised to violate the third unwritten law of the country whenever he thought it profitable to change his creed while president, perhaps to the mother of monarchies.

Gentlemen of the jury, a man's first presidential term begins when he takes the oath of office and constitutes a full term if it will only last twenty-four hours after oath and a man's third term is his third when he seeks it or is given to him twenty years or more after his second. When Roosevelt took the oath of office at McKinley's departure, he had ceased to be a Republican. He at once began to build a political machine of his own. It was then in fact that his one man party so-called Progressive party was born, parts of which we find later in the insurgents, handicapping Mr. Taft wherever they could. Later in August at the convention of treason he took the material where and as he found we see him trying hard to bring the money power of the union into his service, we find him extorting large sums for his political campaigns from the so-called despicable trusts, since then we became accustomed to look upon every man of wealth and the great industrials corporations who have been and are today of incalculable value and benefit to our national welfare, as nothing more or less than contemptible criminals, whom he offended in the most profane language during his crusade against them, if they refused to become a part of his machine. At the decline of his second term the remainder of the Republican

party, those who had not been absorbed by "my policies" could no longer be in doubt as to the third term's real intentions, and for the first time the third term realized the magnitude and importance of the third term tradition and most men of influence in those used their power to scare him out of office at the same time comforting him with the fairy tale that if not succeeded by two consecutive terms another term would not be a third term but such was his fear that his machine built up in seven and a half years would be destroyed over night, that he threatened not to leave the chair unless he were allowed to nominate his successor.

Gentlemen of the jury, now comes the time when the third term committed his second crime against friends, party, nation and republic. With his innermost conviction that his successor would be incompetent, incapable and that he would commit so many blunders while in office that at the expiration of his term the people would unanimously demand the renomination of the third term, he thought to remove that obstacle of the third term and to make it appear that he was not ambitious and that a renomination would have to be forced upon him, he solemnly declared, "Never again will I run for president," but again ambition had blindfolded him and robbed him of his judgment of men in selecting William H. Taft as his successor although his most intimate friend Mr. Taft was aware of his oath of office and his duties toward the nation, there never was a whiter man in the white house and no one ever more deserved a re-election as an honor for his services to the country against the revolutionary machine of the third term in the house and senate than William H. Taft.

Gentlemen of the jury, the third term, "never again will I run for president," has a parallel in the history of Rome. Whoever read the history of Julius Caesar, knows that this smart politician, while elected dictator, managed to become so popular with the people that they offered him the kingly crown, but Julius Caesar knew that he had to bide his time, that the rest of senators knew of his ambition, and after refusing three times, he knew they would offer it to him a fourth time, and when then he accepted it, he was murdered for ambition sake. Never again will I run for president and

under no circumstances, said this man, and four years later we find him eagerly seeking renomination at Chicago, to his friends, who advise him to run, he didn't have the heart to tell that if he were not a man of word he could never be a man of honor, but what shame lies in between his never again and his profane declaration that the crooks, thieves, scoundrels and liars had stolen the nomination from him, although he knew that the party could not give him what they had a third term not to give for the great Republican party determined to sooner go down to defeat than to violate the third term yet.

Gentlemen of the jury, the third term had license to create a new party and be the power behind the throne and perhaps lead his party to victory. But having been deceived by the selection of his successor and having removed the mask he determined to insist on a third term. Had we lived in a time of panic, general disorder, strikes with armies of unemployed, most likely the third term would have an easy walkin. He was anxious waiting for the government at Washington to start military intervention in Mexico, but the leaders of the Republican party feared that the third term would muster an army of volunteer rough riders and return at election as the conquering hero.

Gentlemen of the jury, the danger of the third term was less in his probable election than in his sure but close defeat. The man who cried of the theft at Chicago would never submit to the verdict on November 5, however honest it may be; he would again yell robbery, and if he carried a solid west as was then expected, he would give way to his fighting nature and try to take the presidency on the battlefield and so invite civil war, yet, Ab. Lincoln said that war is hell, and that he who wilfully invites war deserves death. Do we realize the horrors of civil war; are we willing to wash out the sin of violating the third term with the blood of our sons imagine torn from home, family and parents, from prosperity to dire want in order to place a man to the presidency he is legitimately not entitled to? Yet, gentlemen of the jury, the United States may still be able to subdue the rebels the danger the more grave than even civil war is the possibility of

intervention by foreign powers, who may help the third term in order to keep the union disunited and separated for we must know that our strength is not in our army and navy, money power, our strength is in our union, we would at once realize that we are surrounded by a pack of hungry wolves ready to destroy this hated republic, ready to destroy Monroe doctrine, ready to annex the Panama canal and the great land of the brave and free, the home many millions free people, the dream of all heroes and martyrs for political freedom to 1848 would have ceased to be owing to the ambitions of one man and one man's rule.

I hope that the shot at Milwaukee has awakened the patriotism of the American nation, that it has opened their eyes to the real danger and shown them the only safe way out of it as is proven by election returns in the great Democratic party the north, south, east and west is once more and more solidly united and proudly can we prove to the nations of the world that the spirit of 1776 is still alive and shall never die, and that self-government is an established fact and a success.

I have been accused of having selected a state where capital punishment is abolished. I would say that I did not know the laws of any state I traveled through, it would be ridiculous for me to fear death after the act, as I expected to die during the act and not live to tell the story and if I knew that my death would have made the third term tradition more sacred, I am sorry I could not die for my country.

Now, honorable men of the jury, I wish to say no more, in the name of God, go and do your duty, and only countries who ask admission by popular vote and accept the popular vote never wage a war of conquest, murder for to steal abolishes opportunity for ambitious adventurers, for all political adventurers and military leaders have adopted the career of conquering heroes, wholesale murder, wholesale robbers called national aggrandizement. Prison for me is like martyrdom to me, like going to war.

Before me is the spirit of George Washington, behind me that of McKinley.

CHAPTER XXI.

SCHRANK'S UNWRITTEN LAWS.

The following are John Flammang Schrank's four unwritten laws, "The Pillars of the Republic," he calls them. They are presented exactly as written by Schrank, and as incorporated in the report of the alienists.

BY JOHN FLAMMANG SCHRANK.

When in the course of human events, it becomes necessary for one people to dissolve the political bonds which have hitherto connected them with another, due respect to mankind requires that we should declare the cause of such action. In these modest lines our forefathers have at once laid out the roads on which we should travel, it demonstrates their willingness to consult the opinions of others, as well as it duly respects the rights and feelings of others. In these critical days it is more than necessary to call the attention of the nation to the three wonderful documents which have established our people as an independent nation and under their guidance laid down in these documents we have become the most powerful nation on earth. The Declaration of Independence; The Constitution, and the farewell-address of George Washington. The most sacred custom of all nations has ever been their reverence for their ancestors, the honor they pay to their dead, and the utmost respect to the good deeds who live after them, these customs observed hundreds of years handed down from one generation to another, we have come to call the traditions of a people. Tradition is an unwritten law when it concerns a whole nation, it is above the written

statute, I would doubt the right of a court to have jurisdiction over a man who has defended tradition of his country, against violation. As we are not an original nation or race, the founders of the republic were the sons of the nation whose language we speak, it is tradition with us especially that identified us as a nation. This nation has four unwritten laws, the oldest and most sacred, because established by Geo. Washington, is the third term tradition, it has never been violated and is an affective safe-guard against unscrupulous ambition, but never before has been established a test case of its inviolability as a warning to coming adventurers. In the present campaign for the first time in American history we are confronted by a man to whom practically nothing is sacred and pretends to stand above tradition. This man abused our constitution, he wants it amended until it is abolished. If our constitution is too old and in the way of progress after we have grown to be a rich nation with it, then the ten commandments so many thousand years old, must be a useless piece of junk. He has abused our highest Courts, he has spoken in the profanest language of our legislators, he has abused our best and most venerable citizens, calling them liars and scoundrels, he has shamefully abused our president, thereby undermining the dignity of the office, how can we expect our foreign born citizens to respect our institutions when an ex-President circumtravels the Union telling everybody that those honorable men at Chicago were thieves and crooks. Shall the people rule, is one of his demagogic phrases, yet he knows that in the very sense he wants this catchword to be understood is an impossibility, the people and herewith I mean the rich as well as the poor never rule in a republic, they cannot rule, they have no time to rule, therefore they elect a body of honorable men to do the ruling to the benefit of all, in other words they entrust a body of men with their government, that is why Grover Cleveland said that a public office is a public trust. And a political party is the medium between the people and the elected government, and any party that should nominate a man in violation of the third term tradition does no longer deserve to be a party entrusted by the people. This third term tradition could have been of more value to the country had he lent his advice and honest opinion to his party and our president who eagerly sought his advice, for a man's honest advice is his ideas and

convictions but with man's ideas it is like digging a pan of sand from a river from the gold regions, the sand must be sifted and filtered, there might be one or more grains of gold found in it. A man's ideas must pass through the brains of other men, to be sifted and filtered and every grain of gold found will be appreciated, but a man who claims that he knows it all better, is equal to saying that his pan of sand is all gold. The third term claims that it is not a third term, if not followed by two consecutive terms, then a second term would not be a second, if given to man 8 years after his first, I wonder what to call such term, after a while he will tell us that a monarchy in this country is not a monarchy if the monarch is a native born; let it be established now and forever that it is a man's third term if he has twice been in office and if each time only twenty-four hours after taking oath and if third term is given to him or he seeks it twenty years after the second. If the third term thought that the republican party whom he hailed from needed chastisement because she refused to violate tradition in his favor, he had the right to create a third party, nominate all officials for same and be the very soul and power behind the throne, but when it became evident that the whole party movement was only enacted to give him a third term, he had forfeited his citizenship and his life. Anybody who finances a third term movement should be expatriated and his wealth confiscated. It is ridiculous to say that if he is defeated in November it is also a verdict of the people to uphold the third term tradition, as we may as well say it is the verdict of the people to abolish the third term if he wins in November, the third term tradition has never been before the people as an issue to vote and for this reason it should never be put before them. It is almost a certainty, that if voted upon last year, the people would have declared in favor of upholding the tradition, while it is dead sure that if we were living this year in a panic, a business depression, with hundreds of thousands out of work instead of a general prosperity, the third term would walk in over the decision of the previous year. The dangers in this campaign are these, the third term is sure that the nomination has been stolen and that the country and the job belong to him, therefore if he gets honestly defeated in November he will again yell that the crooks of both parties have stolen the election, and should he carry a solid West, he and the hungry office seekers would not

hesitate to take up arms to take by force what is denied him by the people, then we face a civil war, and it was Ab. Lincoln who said that war is hell and that he who wilfully invited war deserves death. We would then be compelled to wash out the sin of violating the third term with the blood of our sons. Yet, this is not the greatest danger we are facing. We have allowed an adventurer to circumtravel the Union with military escort, with the torch of revolution in his hands to burn down the very house we live in while we should be aware that we are surrounded by a pack of wolves ever ready to jump on us. Does anybody think that the European powers would sit idly while we are disunited, would a certain power hesitate to help the third term and make good the gravest mistake that power has made in 1861 by not keeping this country disunited and separated while we are just getting ready to become their greatest competitor on the seas after the completion of the Panama Canal. Our strength is not in our Army or Navy nor in our Money power, our strength is in our Union. In Union alone can we uphold the Monroe Doctrine our second unwritten law so much hated and dreaded by all the world. The sister republic's Transvaal and Orange Free State were not destroyed because it was the connecting link between Egypt and the Cape, not because gold was found, no, but because Great Brit. could not allow a second United States to establish a Monroe Doctrine on African soil. Reciprocity would have profited both the Union and Canada but England fears a too close a relation between the two nations and Premier Leurier's sin was that he was first a Canadian, second an American and third a Britisher, he had to be replaced by a man who is in the first, second, and third place a Britisher. The outcome of the present campaign interests the powers more than us, all actions of Congress or Cabinet are sooner known in the Cabinets of Europe than we hear about them. There is today a "Cato" in the Senate of every country and in the folds of his cloak he has concealed several figs of unusual size, everyone of these figs represent one of our great American Trusts, and he concluded every speech with Carthage must be destroyed. With our Union destroyed we would cry with the Israelites in the desert: Lead us back to the meat pots of Egypt, give us a thousand trusts sooner than one third term. If we think that we need a one man's rule, whose place cannot be filled by another among millions intelligent citizens,

then it were about time that we got a licking from somewhere. What are we about to do, do we want the great building we have helped to build tear down and give everybody a brick, the people which is only the present generation cannot do what they want, for what they have and what they are they are greatly in obligation to the past and earlier generations who also helped to build up, therefore this generation called the people cannot do as they please which is so ardently advocated by the third term. Have we learned no lesson about a one man's rule experienced in France with such disastrous results as the end of the reign of Napoleon I and Napoleon III.

We are trying to establish here a system like our ancestors have done in Europe which all revolutions of a 1,000 years could not abolish, it would be useless to forcibly remove a third president because the system would then be established. Are we under no obligation to the heroes of all wars for freedom and independence, are we overthrowing our republic while the heroes of the French revolutions and the martyrs of 1848 gladly gave their lives to establish republican institutions. May God enlighten the nation, may the spirit of 1776 still be alive, and when they tell us that there is a Rome on the other side let them understand that U. S. A. is not Carthage. In this campaign we may observe that prosperity is as dangerous to our institutions as hard times are, people are too busy making money, they gradually lose all interest in politics, unless a third term tells them that government is only medium to enrich them still more, how else can we explain his remark that Mr. Perkins wants his children to live better in this country after his departure, a millionaire's children can only live better when the third term party doubles the millions of their father. In this critical time I find that men have more interest in the baseball results than to register, think and vote. But of course some people have no more sense than three guinea pigs. His movement is not progressive, they are insurgents, insurgents and revolutionary. Hardly any revolution has started without pretending that their movement was progressive.

The abolition of the third term tradition is the abolition of the Monroe Doctrine also. In this Doctrine we are overtaking the guardianship over all

republics on the American continent against Foreign encroachments. Naturally the third term would prove too in 1916 that the fourth term is only his second, to do this he would have to become the conquering hero, we would commit the same faults France did 100 years ago National aggrandisement, yet France no larger today than before Napoleon I. The fourth term could hardly gather laurels in a European or Asiatic war the natural consequences would that South America would become the field of his actions. We have upheld the Monroe Doctrine without the consent of these countries so she could prevent those nations from inviting a European power to protect them by declaring that inasmuch as the third term tradition is abolished, the Monroe Doctrine is no longer binding, because they are more afraid of the third term than they would be of any foreign prince. The prudence of our forefathers has delivered to us an equally sacred unwritten law which reads that no president should embrace another Creed than Protestant if possible a sect of the English church. I am a Roman Catholic. I love my religion but I hate my church, as long as the Roman parish is not independent from Rome, as long as Catholic priests are prevented from getting married, as long as Rome is still more engaged in politics and accumulation of money contrary to the teachings of the Lord, the Roman Catholic church is not the religion for a president of the United States. The separation of state from church in France has sufficiently proved that Rome and republic are enemies.

The fourth unwritten law which is practically supplementary to the second we find in George Washington's farewell address where he advises us to live in peace with your neighbor. We have no right to start a war of conquest with any nation and our relations to the South American republic can be improved if we remove their fear of a steady conquest by us by observing this law. Does it not look ridiculous that established governments in this enlightened age sends thousands of unfortunates to prison as punishment for murdering, for to steal and rob, while these same nations are armed with all describable weapons like so many bandits ever ready to jump at each other's throat. What else is war but murder for to rob that which belongs to others. Since men have learned to work they have no

more right to war. The salvation of the human family must be worked out by international Commercialism the sooner all industrial establishments of the world unite like in the days of the Hansa can the social questions be solved. International Commercialism must have individual legislation and jurisdiction, independent from national legislation, but must be acknowledged by all states and the United States is the only power ruled by commercialism without a mailed fiat and will be the first to recognize International Commercialism for this alone will abolish and distribute wealth more fair and just, and work to a higher state of civilization.

JOHN SCHRANK.

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CHAPTER XXII.

UNUSUAL COURT PRECEDENT.

Judge August C. Backus' method of conducting the Schrank case has established a precedent for such cases, and the action of the court in establishing a new form of procedure has met with favorable comment on the part of lawyers, alienists, court officials and editors all over the world.

Instructing the commission of five alienists in its duties Judge Backus said:

Gentlemen of the Commission:

"You have been appointed as an impartial commission to examine into the present mental condition of the defendant John Schrank, who is charged with the crime of assault with intent to kill and murder Theodore Roosevelt, with a loaded revolver, on the 14th day of October, 1912, in the city and county of Milwaukee and state of Wisconsin.

"The court in this proceeding will finally determine the issue. I have decided to take this method of procedure instead of a jury trial, because as a rule in trials by jury the case resolves itself into a battle of medical experts, and in my experience I have never witnessed a case where the testimony of the experts on one side was not directly contradicted by the testimony of as many or more experts on the other side. Where men especially trained in mental and nervous diseases disagree, how can it be expected that a jury of

twelve laymen should agree? Such testimony has been very unsatisfactory to the jury and to the court, and generally very expensive to the community.

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James G. Flanders,
Attorney for Schrank.

"Bear in mind, gentlemen, that your appointment has not been suggested by either counsel for the state or for the defendant, or by any other party or, source directly or indirectly interested in this inquisition. You are the court's commission, and you must enter upon your duties free from any bias or prejudice, if any there be. You should assume your duties, and I know you will, with the highest motives in seeking the truth, and then pronounce your judgment without regard to the effect it may have upon the state or upon the

defendant; in other words, in your inquiry and deliberation you are placed on the same plane as the judge.

"If any person seeks to influence you or talks to you as a commission, or to any member of the commission, who is not duly requested to appear before you, report him to the court so that an order to show cause why he should not be punished for contempt may issue.

"If there be any witnesses you desire, the court will command their attendance. The court will grant you the services of a phonographic reporter so that everything that is said and done may appear of record.

"This commission may now retire, select a moderator and proceed with the inquiry.

"Now, gentlemen, perform your duties fairly and impartially and render such findings to the court as your consciences and your judgments approve.

"The question for your determination is, 'Is the defendant John Schrank sane or insane at the present time?'"

Editorial comment from three newspapers is herewith presented as showing the general trend of comment on the course followed by Judge Backus:

The Milwaukee Free Press said:

"The findings of the alienists appointed by Judge Backus to determine the mental condition of Schrank were foreseen. There has been little doubt at any time of the derangement of that unfortunate man. This fact, however, does not detract from appreciation of the excellent and novel course pursued by Judge Backus in taking advantage of the statute that permitted him to

submit the question of Schrank's sanity to a body of alienists appointed by himself instead of leaving the question to a jury at the tender mercy of alienists employed alike by state and defense.

"The judge justified his procedure in these words, when instructing the examining physicians:

"I have decided to take this method of procedure instead of a jury trial, because as a rule in trials by jury the case resolves itself into a battle of medical experts, and in my experience I have never witnessed a case where the testimony of the experts on one side was not directly contradicted by the testimony of as many or more experts on the other side. Where men specially trained in mental and nervous diseases disagree, how can it be expected that a jury of twelve laymen should agree? Such testimony has been very unsatisfactory to the jury and to the court, and generally very expensive to the community."

"Worse than that. It has been a scandal to the medical profession, a source of travesty to judicial procedure and all too often a means of defeating the ends of justice.

"The very course pursued by Judge Backus was advocated by President Gregory of the American Bar association not very long ago, and the outcome in this instance at least is such as to recommend its adoption by the bench wherever the statutes permit."

The Chicago Record-Herald said:

"It is notorious that 'expert testimony' is too often confused and confusing testimony which jurors and judges feel themselves bound to disregard in favor of mere horse sense. The stated experts are matched or overmatched by the experts for the defense, and the conflict of 'scientific' testimony assumes in many cases the proportions of a public scandal.

"Hence the 'Wisconsin idea' as applied by Judge Backus of Milwaukee, who is presiding over the trial of John Schrank, is an admirable one. Under a statute of Wisconsin a judge may summon a certain number of experts and make them officers of the court. They testify as such officers, and presumably the state pays them reasonable fees. Under such a plan as this there is no temptation to strain science in the interest of a long purse, and impartial opinions is likely to be the rule.

"Statutes similar to that of Wisconsin are needed in all other states. 'Expert testimony' has long been a byword and reproach. Of course, under Anglo-Saxon jurisprudence no defendant can be deprived of the right to call witnesses of his own choosing, and after all a medical expert is only a witness who gives opinions instead of facts. Still, a law which authorizes the court to call truly impartial experts would not seem to be 'unconstitutional.' It is certainly not unfair or unreasonable from the lay point of view."

The Saturday Night of Toronto, Ont., said:

"In the stress attending on matters of greater moment which have been occupying the attention of the daily press of late, the judicial wisdom of Mr. A. C. Backus, municipal judge of the city of Milwaukee, charged with the task of trying John

Schrank, the man who attempted to slay Col. Roosevelt, has been overlooked.

"Nevertheless, he established a precedent with regard to the trial of prisoners where insanity is the only defense, that should be copied not only by every state of the American Union, but by every province of Canada.

"It was not generally known that the laws of the state of Wisconsin gave a presiding justice the plenary powers he has exercised, but every good judge who has presided over cases where alienists have been employed to furnish testimony must have yearned for similar authority.

"In the Schrank case Judge Backus decided to eliminate all direct testimony by alienists, and to constitute such experts into an auxiliary court who should co-operate with him in the final judgment of the case.

"His auxiliary, consisting of five physicians, was directed to elect a moderator who would preside over their deliberations and decide the issues of sanity or insanity in case of a deadlock.

"It would be difficult to say what objection could be taken to this system in any case where alienists are subpoenaed. It is even possible that by carefully protecting the rights of the prisoner the same system could be worked out in any case where medical testimony beyond the mere proving of the crime is required. In many murder cases physicians have been heard swearing to contrary positions until the jurors, disgusted with the confusion of the testimony, have simply thrown up their hands, neglected their duty to consider the reasonable facts of the case, and allowed murderers to go free.

"Judge Backus has taken a forward step in the administration of justice on this continent, and it is to be trusted that the effects of it will be far-reaching."

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